

Short Title	Session and Chapter
Food and Drugs Act, 1955	4 & 5 Eliz. 2. c. 16.
Food and Drugs (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 30.
Finance Act, 1956	4 & 5 Eliz. 2. c. 54.
Transport (Disposal of Road Haulage Property) Act, 1956	4 & 5 Eliz. 2. c. 56.
British Transport Commission Act, 1956	4 & 5 Eliz. 2. c. lxxiv.
Transport (Railway Finances) Act, 1957	5 & 6 Eliz. 2. c. 9.
Rating and Valuation Act, 1957	5 & 6 Eliz. 2. c. 17.
House of Commons Disqualification Act, 1957... ..	5 & 6 Eliz. 2. c. 20.
British Transport Commission Act, 1957	5 & 6 Eliz. 2. c. xxxiii.
British Transport Commission Act, 1958	6 & 7 Eliz. 2. c. xlv.
Local Government Act, 1958	6 & 7 Eliz. 2. c. 55.
Tribunals and Inquiries Act, 1958	6 & 7 Eliz. 2. c. 66.
Highways Act, 1959	7 & 8 Eliz. 2. c. 25.
British Transport Commission Order Confirmation Act, 1959	7 & 8 Eliz. 2. c. xxxvi.
British Transport Commission Act, 1959	7 & 8 Eliz. 2. c. xlv.
Wages Councils Act, 1959... ..	7 & 8 Eliz. 2. c. 69.
Road Traffic Act, 1960	8 & 9 Eliz. 2. c. 16.
British Transport Commission Act, 1961	9 & 10 Eliz. 2. c. xxxvi.
Local Government (Financial Provisions, etc.) (Scotland) Act, 1962	10 & 11 Eliz. 2. c. 9.

CHAPTER 47

Education (Scotland) Act, 1962

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An Act to consolidate the enactments relating to education in Scotland. [1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PROVISION OF EDUCATION BY EDUCATION AUTHORITIES

Primary, Secondary and Further Education

1.—(1) It shall be the duty of every education authority to **secure** that adequate and efficient provision is made throughout their area of all forms of primary, secondary and further education. Provision of educational facilities by education authorities.

(2) The Secretary of State may make regulations prescribing the standards and general requirements to which every education authority shall conform in exercising their functions under the foregoing subsection.

(3) Primary, secondary and compulsory further education provided in public schools and junior colleges under the management of an education authority shall be without payment of fees :

Provided that if the authority think it expedient they may charge fees in some or all of the classes in a limited number of

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primary and secondary schools, so, however, that the power to do so may be exercised only where it can be exercised without prejudice to the adequate provision of free primary and secondary education in public schools in which no fees are charged, or in other schools the managers of which agree, in respect of such payment by the education authority as may be agreed, to admit and educate pupils free of charge on the nomination of the education authority.

(4) It shall be the duty of an education authority to secure that the facilities for primary, secondary and further education provided for their area include adequate facilities for recreation and social and physical training.

(5) It shall be the duty of an education authority to make or otherwise secure adequate and suitable provision for the technical education of blind persons ordinarily resident in their area who are capable of receiving and being benefited by such education.

(6) It shall be lawful for an education authority to provide a child guidance service in child guidance clinics or elsewhere. The function of the service shall be to study handicapped, backward and difficult children, to give advice to parents and teachers as to appropriate methods of education and training and in suitable cases to provide special educational treatment for such children in child guidance clinics.

Primary
education.

2.—(1) Subject to section five of this Act primary education shall be given in primary schools or departments.

(2) In this Act “primary education” means progressive elementary education in such subjects as may be prescribed in that behalf in regulations made under subsection (2) of the last foregoing section, regard being had to the age, ability and aptitude of the pupils concerned, and includes—

(a) training by appropriate methods in schools and classes (hereinafter referred to as “nursery schools” and “nursery classes”) for pupils between the age of two years and such later age as may be permitted by the said regulations;

(b) special educational treatment;

(c) the teaching of Gaelic in Gaelic speaking areas.

(3) The provision of primary education in nursery schools and nursery classes shall be deemed to be adequate if such provision is made at centres where sufficient children whose parents desire such education for them can be enrolled to form a school or class of a reasonable size.

Secondary
education.

3.—(1) Subject to section five of this Act secondary education shall be given in secondary schools or departments.

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(2) In this Act "secondary education" means progressive courses of instruction of such length and in such subjects as may be approved in terms of the regulations made under subsection (2) of section one of this Act as appropriate to the age, ability and aptitude of pupils who have been transferred from primary schools and departments and to the period for which they may be expected to remain at school and includes—

- (a) special educational treatment;
- (b) the teaching of Gaelic in Gaelic speaking areas.

(3) The provision of secondary education shall be deemed to be adequate if a reasonable variety of courses is provided from which the parent of a pupil may select a course from which, in the opinion of the education authority, the pupil shows reasonable promise of profiting.

4. "Further education" includes—

Further
education.

- (a) compulsory part-time and in exceptional cases full-time courses of instruction approved in terms of the regulations made under subsection (2) of section one of this Act given in colleges (hereinafter referred to as "junior colleges") to young persons not exempt from attendance under subsection (8) of section forty-five of this Act and designed to enable them to develop their various aptitudes and capacities and to prepare them for the responsibilities of citizenship;
- (b) voluntary part-time and full-time courses of instruction for persons over school age;
- (c) voluntary leisure-time occupation, in such organised cultural training and recreative activities as are suited to their requirements, for persons over school age; and
- (d) the teaching of Gaelic in Gaelic speaking areas.

5.—(1) In this Act "special educational treatment" means education by special methods appropriate to the special requirements of pupils who suffer from disability of mind or body, and shall be given in special schools approved by the Secretary of State for the purpose, or by other means so approved. Special
educational
treatment.

(2) The arrangements made by an education authority for the special educational treatment of pupils of any category within the meaning of section sixty-two of this Act shall be such as to ensure, as far as practicable, that the education is given in an appropriate special school or by other appropriate means.

(3) Regulations made under subsection (2) of section one of this Act may prescribe the requirements to be complied with as a condition of approval as a special school, and as to the withdrawal of approval from any special school which fails to comply with requirements so prescribed.

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Recreation and
social and
physical
training.

6.—(1) For the purpose of securing adequate facilities for recreation and social and physical training, an education authority may establish, maintain and manage, or assist the establishment, maintenance and management of, camps, holiday classes, playing fields, play centres and other places (including playgrounds, gymnasiums and swimming baths not appropriated to any school or educational establishment) at which facilities for recreation and for such training as aforesaid are available for persons receiving primary, secondary or further education. They may also organise games, expeditions and other activities for such persons, and may defray or contribute towards the expenses thereof.

(2) An education authority, in making arrangements for the provision of facilities or the organisation of activities under the powers conferred on them by the last foregoing subsection shall, in particular, have regard to the expediency of co-operating with any voluntary societies or bodies whose objects include the provision of facilities or the organisation of activities of a similar character.

Provision of
educational
facilities to be
in accordance
with schemes.

7.—(1) The functions of an education authority under the foregoing provisions of this Act shall be exercised in accordance with schemes prepared as hereinafter provided and approved by the Secretary of State under section seventy of this Act, except where such functions relate to—

- (a) further education as described in paragraphs (b) and (c) of section four of this Act other than such voluntary part-time or full-time courses of instruction for persons over school age as the Secretary of State may direct ; or
- (b) such facilities as are mentioned in subsection (1) of section six of this Act ; or
- (c) special educational treatment other than in special schools.

(2) It shall be the duty of an education authority within such time as may be prescribed to prepare and submit for the approval of the Secretary of State a scheme or schemes for the exercise of their powers and duties under the foregoing sections of this Act.

(3) An education authority may at any time, and shall if and when so required by the Secretary of State, prepare and submit for his approval a revised scheme or modification of an existing scheme under this section.

(4) In considering and determining for the purposes of any scheme for the provision of primary and secondary education what amount of public school accommodation or additional

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public school accommodation is required for their area, an education authority shall have regard to and take into account every school, whether public or not, and whether situated in the area or not, which, in their opinion, gives, or will when completed give, efficient primary or secondary education, and is, or will when completed be, suitable and available for the education of the pupils in their area.

(5) An education authority shall for the purposes of the last foregoing subsection have power to call upon all head teachers and managers of schools other than public schools for such information and for access to and delivery of all such documents as shall to the education authority appear to be necessary to enable them to discharge their duties under this Act, and an education authority may from time to time appoint fit and proper persons to procure such information and to inspect such documents.

(6) In the preparation of any scheme for the provision of primary and secondary education, an education authority shall, in particular, have regard to the expediency of securing the provision of boarding accommodation, either in boarding schools or in hostels, for pupils for whom education as boarders is considered by their parents and by the authority to be desirable.

(7) In the preparation of any scheme for further education, an education authority shall have regard to such of the following considerations as may be relevant—

- (a) to any facilities for such education provided for their area by universities, central institutions, colleges of education, educational associations, and other bodies and to the need for consultation with any such organisations as aforesaid and with the education authorities for adjacent areas; and the scheme may include such provisions as to the co-operation of any such bodies or authorities as may have been agreed between them and the authority preparing the scheme;
- (b) to the need for consultation with persons concerned or engaged in crafts, industries, commerce or other employments in their area;
- (c) to the need for securing the adequate provision of technical education and, keeping in view the requirements of the crafts, industries, commerce and other employments in the area and the provision therefor made elsewhere, to the need for the establishment of local technical colleges offering courses of suitable standard;
- (d) to the expediency of securing the provision of boarding accommodation, either as part of a junior college or in hostels, for pupils for whom residence at a distance

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from their homes is necessary in order that the greatest advantage may be derived from compulsory further education; and

(e) to the desirability of securing the provision of residential colleges for other forms of further education.

(8) Where general arrangements under section fifty of this Act are part of the measures to be taken by the authority to secure the adequate provision of primary or secondary or compulsory further education for persons resident in any part of their area, information regarding the said arrangements shall be included in the appropriate scheme prepared under this section.

**Religious
instruction.**

8.—(1) Whereas it has been the custom in the public schools of Scotland for religious observance to be practised and for instruction in religion to be given to pupils whose parents did not object to such observance or instruction, but with liberty to parents, without forfeiting any of the other advantages of the schools, to elect that their children should not take part in such observance or receive such instruction, be it enacted that education authorities shall be at liberty to continue the said custom, subject to the provisions of section nine of this Act.

(2) It shall not be lawful for an education authority to discontinue religious observance or the provision of instruction in religion in terms of the last foregoing subsection, unless and until a resolution in favour of such discontinuance duly passed by the authority has been submitted to a poll of the local government electors for the education area taken for the purpose, and has been approved by a majority of electors voting thereat.

(3) A poll under the last foregoing subsection shall be by ballot and shall be taken in accordance with rules to be made by the Secretary of State, which rules may apply with any necessary modifications any enactments relating to parliamentary or local government elections.

**Conscience
clause.**

9.—(1) Every public school and every grant-aided school shall be open to pupils of all denominations, and any pupil may be withdrawn by his parents from any instruction in religious subjects and from any religious observance in any such school; and no pupil shall in any such school be placed at any disadvantage with respect to the secular instruction given therein by reason of the denomination to which such pupil or his parents belong, or by reason of his being withdrawn from any instruction in religious subjects.

(2) The time or times during which any religious observance is practised or instruction in religious subjects is given at any meeting of the school shall be specified in a table approved by the Secretary of State.

10.—(1) Where the parent of any pupil who is a boarder at any public school, junior college or other educational establishment under the management of an education authority requests that the pupil be permitted to attend worship in accordance with the tenets of a particular religious denomination on Sundays or other days exclusively set apart for religious observance by the religious body to which his parent belongs, or to receive religious instruction or to practise religious observance in accordance with such tenets outside the working hours of the school, junior college or other educational establishment, the education authority shall make arrangements for affording to the pupil reasonable opportunities for so doing, and such arrangements may provide for affording facilities for such worship, instruction or observance on the premises of the school, junior college or other educational establishment, so however that such arrangements shall not entail expenditure by the education authority.

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Safeguards
for religious
beliefs.

(2) Any requirements prescribed by regulations made under subsection (2) of section one of this Act with respect to special schools shall be such as to secure that a pupil shall in no case be compelled to take part in religious observance or to receive religious instruction contrary to the wishes of his parent.

11.—(1) An education authority shall provide free of charge for all pupils who are given free education at schools or junior colleges under their management or at other schools in accordance with subsection (3) of section one of this Act books, writing materials, stationery, mathematical instruments, practice material and other articles which are necessary to enable the pupils to take full advantage of the education provided. The authority may also make similar provision, with or without charge, for other pupils resident in their area and attending any school or other educational establishment.

Provision
of books,
materials
and special
clothing free
of charge.

(2) For the purposes of the last foregoing subsection, a pupil in respect of whose education fees are charged in a school or class managed by an education authority shall be deemed to be given free education if the authority remit his fees, or pay his fees or grant a scholarship, bursary or allowance under section forty-nine of this Act which is not less in amount than the amount of the fees, or if an award not less in amount than the amount of the fees is made to the pupil by the governing body of any educational endowment as defined in section one hundred and thirty-five of this Act, and it is a condition of the said award that the candidates require financial assistance, or if a combination of such remission, payments, grants or awards together amounts to or exceeds the amount of the fees.

(3) It shall be in the power of an education authority to provide—

(a) for pupils in attendance at any school, junior college or other educational establishment under their man-

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agement, articles of clothing suitable for physical exercise or for other activities of the school, college or establishment for which special clothing is desirable, and

- (b) for persons who make use of facilities for physical training made available to them by the authority under subsection (1) of section six of this Act, articles of clothing suitable for physical exercise.

**County
library
service.**

12.—(1) It shall be lawful for the education authority of a county, as an ancillary means of promoting education, to make such provision of books by purchase or otherwise as they may think desirable, and to make the same available not only to the pupils attending schools, junior colleges or other educational establishments in the county, but also to the adult population resident therein.

(2) For the purposes of this section, an education authority may enter into arrangements with the managers of public libraries.

**Provision
of hostels.**

13. An education authority shall have power to provide and maintain hostels for pupils attending day schools or young persons attending junior colleges or other educational establishments in their area, and shall if required by the Secretary of State exercise, in accordance with such conditions as he may prescribe, the power hereby conferred.

**Power to
provide
education
elsewhere
than at an
educational
establishment.**

14. If an education authority are satisfied that by reason of any extraordinary circumstances a pupil is unable to attend a suitable educational establishment for the purpose of receiving education, they shall have power, with the approval of the Secretary of State, to make special arrangements for him to receive education elsewhere than at an educational establishment.

Transference of Schools to Education Authorities

**Transference
of endowed
schools to
education
authorities.**

15.—(1) The governing body of any school providing a course of secondary education extending over at least three years administered under a scheme approved in terms of the Act of 1882, or under any Act or any Provisional Order confirmed by Act of Parliament, may, with a view to the maintenance of such school as a school providing a course of secondary education extending over at least three years, resolve to transfer the management thereof, together with the school buildings, and the revenue of the school from endowments in whole or in part, or, where the endowments are held solely for the purpose of such school, together with the endowments, to the education authority of the education area in which the school is situated. The education authority shall have power to receive the same, to manage the school as a school providing a course of secondary education extending over at least three years, and to make good any deficiency in the income of the school as managed by them.

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(2) Where the Secretary of State is satisfied that the revenue of any school administered as aforesaid, being of a yearly value on an average of the three years immediately preceding of not more than one thousand pounds, is insufficient to maintain the school in a condition of satisfactory efficiency as a place of secondary education, the Secretary of State shall cause a local inquiry to be held and may, after considering the report of that inquiry, issue an order transferring the management of the school, together with its buildings and revenue or endowments, as the case may be, as aforesaid to the education authority if the education authority are willing to undertake the same, and the education authority shall in such case have power as aforesaid.

(3) The Secretary of State may by order make provision for all matters which appear to him necessary or proper for giving full effect to any transfer under this section, including provision for the determination of any existing trust whose whole endowments are so transferred.

(4) A resolution by a governing body under this section shall not take effect unless it is confirmed by a subsequent meeting called for that special purpose with not less than three weeks notice by circular sent to each member of the governing body and held not sooner than one month nor later than two months after the date of the first meeting, and at such second meeting the requisite majority to secure confirmation shall be not less than the absolute majority of the governing body.

16.—(1) It shall be lawful for the person or persons vested with the title of any school established after the twenty-first day of November, nineteen hundred and eighteen, to which section eighteen of the Act of 1918 would have applied had the school been in existence at that date, with the consent of the trustees of any trust upon which the school is held and of the Secretary of State, to transfer the school together with the site thereof and any land or buildings and furniture held and used in connection therewith, by sale, lease or otherwise, to the education authority, who shall be bound to accept such transfer, upon such terms as to price, rent, or other consideration as may be agreed, or as may be determined, failing agreement, by an arbiter appointed by the Secretary of State upon the application of either party.

Transference
of denomina-
tional schools
to education
authorities.

(2) The consent of trustees to the transference of a school to an education authority under this section may be given by a majority of not less than two thirds of the trustees present at a meeting duly summoned for that purpose. The transference may be effected by an ordinary disposition or other deed of conveyance by the persons vested with the title, recorded in the register of sasines, and no stamp or other duty shall be exigible on such disposition or other deed; and the persons whose consent is hereby required need not be parties to the

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conveyance, and the validity of the transference and the title of the education authority shall not be subject to challenge on the ground that the requisite consents were not duly given, unless such challenge shall be judicially made within six months after the recording of the deed of conveyance.

(3) The existing staff of teachers in a school transferred under this section shall be taken over by the education authority and shall as from the date of transfer be placed upon the same scale of salaries as teachers of corresponding qualifications appointed to corresponding positions in other schools of the same authority. Any question which may arise as to the due fulfilment or observance of any provision or requirement of this subsection shall be determined by the Secretary of State.

*Provision, Maintenance and Equipment of Schools
and other Buildings*

Provision,
maintenance
and equipment
of schools and
other buildings.

17.—(1) It shall be the duty of an education authority to provide for their area, in accordance with any scheme under section seven of this Act for the time being in force in the area, sufficient accommodation in public schools (whether day schools or boarding schools), junior colleges and other educational establishments under their management to enable them to carry the said scheme into effect.

(2) In any case where the Secretary of State is satisfied, upon representations made to him by the education authority of any education area, or by any church or denominational body acting on behalf of the parents of children belonging to such church or body, and after such inquiry as the Secretary of State deems necessary, that a new school is required for the accommodation of children whose parents are resident within that education area, regard being had to the religious belief of such parents, it shall be lawful for the education authority of that area to provide a new school.

(3) An education authority shall maintain and keep efficient every public school, junior college and other educational establishment under their management, and shall from time to time provide such additional accommodation as may be necessary to carry out the provisions of any such scheme as aforesaid.

(4) An education authority may, for the purposes of their duty under this section, provide, alter, improve, enlarge, equip and maintain schools, junior colleges and other educational establishments outwith as well as within their area.

(5) An education authority may provide, alter, improve, enlarge, equip, maintain and furnish houses and hostels, with such outbuildings and gardens as they think expedient, for teachers and other officers employed by them (whether or not employed in or about an educational establishment).

18.—(1) Subject to the provisions of this section and with the approval of the Secretary of State an education authority shall have power for the purpose of reducing the risk of accident to pupils going to or returning from schools or other educational establishments in their area and under their management, or while actually present at such schools or establishments, to do work to improve the safety of any private road which is used by these pupils or which is in the vicinity of such a school or establishment, and to provide or arrange for the provision of safety barriers at or near the entrances to such schools and establishments.

PART I

Improvements
as to premises
of educational
establishments
for the safety
of pupils.

(2) Any work for the purpose of the last foregoing subsection may be undertaken by the education authority in co-operation with any other person.

(3) For the purpose of subsection (1) of this section an education authority may enter on and carry out work on any land:

Provided that where an education authority propose to carry out any such work on land which is in possession of another person, the authority shall obtain the consent of the owner and of the occupier of such land, or shall satisfy the Secretary of State that the owner or the occupier cannot be found.

(4) Where an education authority propose to provide or arrange for the provision of safety barriers for the purpose of subsection (1) of this section on any road, the authority shall—

(a) if it is a public road, obtain the consent of the authority responsible for the maintenance of such road;

(b) if it is a private road, consult the authority responsible for the maintenance of public roads in the area in which that private road is situated.

(5) For the purposes of this section the expression “public road” means a road or street managed and maintained by the Secretary of State or by a county or town council, and the expression “private road” means any road, street or path other than a public road, and includes any ford or bridge over which a private road passes.

19.—(1) The Secretary of State may make regulations prescribing standards applicable to the premises or equipment of schools, junior colleges and other educational establishments under the management of education authorities, and such regulations may prescribe appropriate standards for such types of schools, junior colleges and other educational establishments as may be specified in the regulations.

Requirements
as to premises
of educational
establish-
ments.

(2) If the Secretary of State is satisfied, after consultation with the education authority, that it is impracticable or would be unreasonable to apply the standards prescribed under the foregoing subsection to the premises or equipment of a particular school, college or establishment, he may make an order prescribing modified standards for such school, college or establishment.

PART I

(3) Every education authority shall secure that any premises or equipment provided by them for a school, junior college or other educational establishment conform to the standards applicable to the school, college or establishment.

(4) Where the premises or equipment of any school, junior college or other educational establishment under the management of an education authority do not conform to the standards applicable to the school, college or establishment, it shall be in the power of the Secretary of State, after consultation with the education authority, to direct that the premises or equipment be brought into conformity with the said standards within a period to be specified in the direction; and it shall thereupon be the duty of the education authority to comply with the direction.

(5) With a view to securing that the premises and equipment of schools, junior colleges and other educational establishments under the management of an education authority are maintained in such a condition as to contribute to the good health of the pupils, it shall be the duty of an education authority to cause their medical officers as part of their ordinary work from time to time to inspect and to report to them upon the said premises and equipment, and in making the said inspections the medical officers shall have special regard to the lighting, heating and ventilation, and to the sanitary arrangements.

Acquisition
of land and
execution of
works.

20.—(1) In order to enable them to execute any of their functions, an education authority may from time to time—

- (a) acquire, whether by way of purchase, feu, lease, excambion or donation, any land whether situated within or outwith the area of the authority;
- (b) erect and furnish buildings or execute any other works on any land belonging to them, or on land leased by them;
- (c) convert, alter, enlarge or improve any existing building or other works belonging to the authority or leased by them:

Provided always that paragraphs (b) and (c) of this subsection shall not of themselves authorise the authority to do anything contrary to the conditions contained in the title to or lease of any such land, buildings or other works.

(2) For the purpose of the acquisition of land by an education authority under this Act, the Lands Clauses Acts, except in so far as they relate to the purchase and taking of land otherwise than by agreement, shall be incorporated with this Act.

(3) An education authority may be authorised by the Secretary of State to purchase land compulsorily for the purposes of this Act, and the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, shall apply in relation to any such compulsory purchase as if this Act had been in force immediately before the commencement of that Act.

(4) In this section, and in the Lands Clauses Acts as hereby incorporated, the expression "land" includes water and any right or servitude in or over land or water.

PART I

Management of Denominational Schools

21.—(1) Any school transferred to an education authority under subsection (1) of section eighteen of the Act of 1918 or under subsection (1) of section sixteen of the Act of 1946 or subsection (1) of section sixteen of this Act shall be held, maintained and managed by the education authority as a public school. Management of denominational schools.

(2) In any such school the education authority shall have the sole power of regulating the curriculum and of appointing teachers:

Provided that—

- (i) all teachers appointed to the staff of any such school by the education authority shall in every case be teachers who satisfy the Secretary of State as to qualification, and are approved as regards their religious belief and character by representatives of the church or denominational body in whose interest the school has been conducted ;
- (ii) subject to the provisions of section nine of this Act, the time set apart for religious instruction or observance in any such school shall not be less than that so set apart according to the use and wont of the former management of the school.

(3) For each such school the education authority shall appoint as supervisor of religious instruction, without remuneration, a person approved as regards religious belief and character as aforesaid, and the supervisor so appointed shall report to the education authority as to the efficiency of the religious instruction given in such school, and shall be entitled to enter the school at all times set apart for religious instruction or observance.

(4) In every such school the education authority shall give facilities for the holding of religious examinations.

(5) The foregoing provisions of this section so far as applicable, shall have effect in relation to any school provided by an education authority under subsection (8) of section eighteen of the Act of 1918 or under subsection (2) of section seventeen of the Act of 1946 or under subsection (2) of section seventeen of this Act as they have effect in relation to schools transferred to an education authority as mentioned in subsection (1) of this section, subject to the modification that the time set apart for religious instruction in any school so provided shall be not less than that so set apart in schools in the same education area which have been transferred as mentioned in subsection (1) of this section.

PART I

(6) Any question which may arise as to the due fulfilment or observance of any provision or requirement of the foregoing provisions of this section shall be determined by the Secretary of State.

Discontinuance and Moves of Educational Establishments

Discontinu-
ance and
moves of
educational
establishments.

22.—(1) Subject to any special conditions attaching thereto and to any scheme under section seven of this Act relating thereto, an education authority may—

- (a) sell, feu, excamb or let any land vested in them; and
- (b) with the sanction of the Secretary of State discontinue, or change the site of, any educational establishment under their management, or part thereof.

(2) If at any time after the expiry of ten years from the transfer of a school under section eighteen of the Act of 1918, or under section sixteen of the Act of 1946 or section sixteen of this Act, or from the provision of a new school under the said section eighteen or under subsection (2) of section seventeen of the Act of 1946 or under subsection (2) of section seventeen of this Act, the education authority by whom the school is maintained are of opinion that the school is no longer required, or that, having regard to the religious belief of the parents of the children attending the school, the conditions prescribed in subsections (1) to (4) of section twenty-one of this Act ought no longer to apply thereto, the authority may so represent to the Secretary of State, and if the Secretary of State, after such inquiry as he deems necessary, is of the same opinion and so signifies, it shall be lawful for the education authority thereafter to discontinue the school, or, as the case may be, to hold, maintain and manage the same in all respects as a public school not subject to those conditions:

Provided that—

- (i) in the case of any school which has been transferred as aforesaid to an education authority, that authority shall in either of those events make to the trustees by whom the school was transferred, or to their successors in office or representatives, such compensation (if any) in respect of the school or other property so transferred as may be agreed, or as may be determined, failing agreement, by an arbiter appointed by the Secretary of State upon the application of either party; and
- (ii) if before the expiry of ten years from the transfer of any such school, the education authority are of

opinion as aforesaid and so represent, and the trustees by whom the school was transferred, or their successors in office or representatives, formally intimate to the Secretary of State that they concur with the authority in their opinion as represented, then in such case, if the Secretary of State is of the same opinion and so signifies, it shall be lawful for the education authority forthwith to discontinue or to hold, maintain or manage the school as aforesaid, subject to the like provision with respect to compensation.

PART I

Co-operation between Education Authorities and Others

23.—(1) An education authority may, and shall, if required by the Secretary of State, make arrangements for co-operation or combination with another education authority in the performance of any duty or the exercise of any power under this Act, and an education authority and any other local authority may make arrangements for co-operation or combination in the exercise of any functions which the authorities have respectively power to exercise; and any scheme submitted to the Secretary of State under this Act may include provision for such co-operation or combination.

Co-operation
in the
performance
of functions.

(2) Where any question, difference or dispute arises between authorities in regard to or out of any such arrangements as aforesaid, the same shall be determined by the Secretary of State, and it shall be the duty of such authorities to comply with any such determination or any direction given for the purpose thereof.

(3) Any education authorities, or education authorities and other local authorities, may from time to time join in making such arrangements with regard to the conduct and management of their business, and the distribution of such business among their officers, and the joint use of offices or buildings, or otherwise, as shall seem to them, in the whole circumstances of the case, to be most effective and economical.

(4) In this section the expression "local authority" means a county, town or district council.

24.—(1) An education authority shall have power to provide, in or in connection with any public school, junior college or other educational establishment under their management, primary, secondary or further education and other services under this Act for any pupil belonging to the area of some other education authority.

Provision by
education
authority for
education
of pupils
belonging to
areas of other
authorities.

(2) Where an education authority or the managers of any school not conducted for private profit situated in the area of that authority have provided primary or secondary education

PART 1

with or without other services for any pupil belonging to the area of some other authority, the education authority or the managers, as the case may be, may, if a claim therefor is made within the prescribed period, recover from that other authority such contributions in respect of such provision as may be agreed by the authorities concerned or by the authority and the managers concerned, as the case may be, or, in default of such agreement, as may be determined by the Secretary of State, who shall have regard to the estimated cost of such provision:

Provided that, if in the case of any pupil the Secretary of State is satisfied, having regard to all the circumstances including the religious belief of the parents, that there was no sufficient reason why he should not have attended a school provided by the authority of the area to which he belongs, the Secretary of State may, on the application of that authority, direct that no contribution shall be recoverable in respect thereof under this subsection.

(3) The Secretary of State may make regulations prescribing the areas to which particular classes of pupils receiving primary or secondary education are to be deemed to belong for the purposes of this section and any such pupil to whom the regulations apply shall be deemed to belong to the area determined in accordance with the regulations. Any other pupil receiving primary or secondary education shall, for the aforesaid purposes, be deemed to belong to the area in which his parent is ordinarily resident, and any pupil receiving further education shall be deemed to belong to the area in which he himself is ordinarily resident:

Provided that any pupil who becomes ordinarily resident in any area wholly or mainly for the purpose of attending an educational establishment providing further education shall be deemed to belong not to that area but to any area to which he was deemed to belong immediately before he became so resident.

(4) Where on the first day of January, nineteen hundred and forty-seven, or at any subsequent date it was or is the practice of an education authority or of the managers of a school situated in the area of that authority to provide for the primary or secondary education of pupils belonging to the area of another education authority, then, whether contributions have been recovered under subsection (2) of section twenty-four of the Act of 1946 or this section or not, they shall not be entitled to discontinue such practice except after giving such notice as the Secretary of State may, in the event of a dispute, consider reasonable.

(5) Nothing in this section shall be construed as preventing the payment by agreement between education authorities or

between an education authority and the managers of an educational establishment not conducted for private profit of contributions in respect of education and other services under this Act provided by one authority on behalf of another or by such managers on behalf of an authority in cases where the authority or the managers by whom the education or services are provided are not entitled to recover contributions under this section.

PART I

25.—(1) It shall be lawful for every education authority to contribute to the maintenance of any school or other educational establishment not under their own management which is included in the scheme under section seven of this Act, and in which the teachers are remunerated at a rate not lower than the rate for teachers of similar qualifications employed by the authority, and to make a reasonable representation of the authority on the governing body of any such school or other educational establishment (where such representation is not already provided for) a condition of any contribution other than a contribution required by subsection (3) of this section.

Contributions
to maintain-
ance of certain
schools and
institutions

(2) The Secretary of State may by order make such modifications in the provisions of any trust deed or other instrument relating to any school or other educational establishment in receipt of contributions under the last foregoing subsection as may be necessary to enable provision to be made for such representation as aforesaid, and any such trust deed or other instrument shall, so long as such contributions continue to be paid, have effect subject to any modifications so made.

(3) Every education authority shall continue to contribute to the maintenance of any school within their education area but not under their own management which at the twenty-first day of November, nineteen hundred and eighteen, was recognised by the Scottish Education Department as an intermediate or secondary school, so long as such school continues to be recognised as a school providing a course of secondary education extending over at least three years or at least five years as the case may be. The amount so contributed shall be not less than the contribution made to such school in terms of paragraphs (a) and (b) of subsection (4) of section seventeen of the Act of 1908, in respect of the financial year ending on the fifteenth day of May nineteen hundred and fourteen, by any secondary education committee whose powers and duties are vested in that education authority:

Provided that the amount of the contribution required to be made under this subsection shall not exceed the amount by which the income of such school from all other sources falls short of the expenditure.

PART I

(4) Any question arising as to the application of the last foregoing subsection to any school or as to the amount of any contribution so made or to be made shall be determined by the Secretary of State.

(5) Every education authority shall contribute in each year towards the aggregate expense of the committees and other bodies for the training of teachers constituted under section seventy-seven of the Act of 1946 or section eighty-one of this Act such sum as the Secretary of State may determine, being a sum proportioned to the number of certificated teachers in the service of each education authority on the thirty-first day of March in each year.

(6) It shall be lawful for every education authority to contribute to the maintenance of any educational institution or agency, where such contribution appears to the education authority desirable for the educational benefit of persons resident within the education area of the authority.

(7) It shall be lawful for an education authority to make payments to the managers of schools other than public schools in order to secure the admission thereto and education therein free of charge of pupils nominated by the education authority.

Contributions
to universities.

26.—(1) An education authority may contribute to the maintenance of any university.

(2) An education authority may provide financial assistance to any university for the purpose of improving the facilities for further education available for their area.

Promotion of Educational Developments

Educational
research.

27. An education authority may make such provision for conducting or assisting the conduct of research as appears to the authority to be desirable for the purpose of improving the education provided for their area.

Educational
conferences.

28. Subject to any regulations made by the Secretary of State, an education authority may arrange or organise, or participate in the arrangement or organisation of, conferences or meetings for the discussion of questions relating to education, and may expend such sums as may be reasonable in paying or contributing towards any expenditure incurred in connection with conferences or meetings for the discussion of such questions, including the expenses of any person authorised by them to attend any such conference or meeting.

PART II

RIGHTS AND DUTIES OF PARENTS AND FUNCTIONS OF EDUCATION
AUTHORITIES IN RELATION TO INDIVIDUAL PUPILS*General Principle*

29.—(1) In the exercise and performance of their powers and duties under this Act, the Secretary of State and education authorities shall have regard to the general principle that, so far as is compatible with the provision of suitable instruction and training and the avoidance of unreasonable public expenditure, pupils are to be educated in accordance with the wishes of their parents.

Pupils to be
educated in
accordance
with the wishes
of their
parents.

(2) A parent shall not be entitled to select a course of secondary education for his child from which in the opinion of the education authority (confirmed by the Secretary of State in the event of a dispute between the parent and the authority) the pupil shows no reasonable promise of profiting.

Transfer from Primary to Secondary Education

30. An education authority may at any time, and shall if and when so required by the Secretary of State, prepare and submit for his approval under section seventy of this Act a revised scheme or modification of an existing scheme (hereinafter referred to as a "transfer scheme") relating to the schools under their management and showing the methods to be adopted for transferring pupils from primary schools or departments to secondary schools or departments and for enabling an opinion to be formed as to the courses from which each pupil shows reasonable promise of profiting and a decision to be made, after taking into account the wishes of the parent, as to the course to which the pupil is to be admitted.

Transfer
schemes.

Duty of Parents to provide Education for their Children

31. It shall be the duty of the parent of every child of school age to provide efficient education for him suitable to his age, ability and aptitude either by causing him to attend a public school regularly or by other means.

Duty of
parents to
provide
education for
their children.

32.—(1) Subject to the provisions of subsections (2) and (4) of this section and of section thirty-three of this Act, the expression "school age" means any age between the age of five years and the age of fifteen years; and accordingly a person shall be deemed to be of school age if he has attained the age of five years and has not attained the age of fifteen years, and a person shall be deemed to be over school age if he has attained the age of fifteen years.

School age.

PART II

(2) As soon as the Secretary of State is satisfied that it is practicable to raise the upper limit of the school age to sixteen years, he shall make regulations prescribing that subsection (1) of this section shall have effect with the substitution of references to the age of sixteen years for references to the age of fifteen years.

(3) Any person who, whether before or after the passing of this Act, has ceased to be of school age shall not in the event of any subsequent change in the upper limit of school age again become a person of school age.

(4) Where an education authority have decided under section fifty-five of the Act of 1946 or section sixty-four of this Act that a child requires special educational treatment and the child is in attendance at a special school, he shall, unless the said decision is rescinded, be deemed to be of school age until he attains the age of sixteen years although the upper limit of school age in relation to other children is less than sixteen years.

Dates for
commencing
and termina-
ting school
attendance.

33.—(1) The Secretary of State may from time to time require an education authority to fix for their area any or all of the following dates (hereinafter referred to as “fixed dates”)—

(a) two or more fixed dates for commencing school attendance; and

(b) two school leaving dates:

Provided that—

(i) in pursuance of any requirement under paragraph (b) of this subsection an education authority may fix different dates for different schools in their area; and

(ii) if the Secretary of State is satisfied, on the application of the education authority for any area, that, having regard to all the circumstances, it is desirable that for any school in that area three school leaving dates should be fixed, he may require the authority to fix three (but not more than three) school leaving dates for that school.

(2) The education authority shall when required by the Secretary of State submit proposals for fixed dates to him, and the Secretary of State may approve the proposals or may after consultation with the authority and with such other persons as he thinks fit direct the authority to fix other dates. The authority shall thereupon fix the dates approved by the Secretary of State or the dates specified in the said direction as the case may be.

(3) A child who does not attain the age of five years on a fixed date for commencing school attendance shall for the purpose of such attendance be deemed to attain that age on the fixed date next following the fifth anniversary of his birth.

(4) A pupil who was at any time within the period of twelve months preceding the fifteenth anniversary of his birth in attend-

PART II

ance at school and who does not attain the age of fifteen years on a school leaving date shall be deemed to be of school age until the school leaving date next following the fifteenth anniversary of his birth or, where that school leaving date falls within a holiday period, until the first day of that holiday period or the fifteenth anniversary of his birth, whichever is the later.

(5) In the last foregoing subsection "school leaving date" and "holiday period" in relation to any person mean respectively a school leaving date and a holiday period fixed for the school at which the person was last in attendance before attaining the age of fifteen years; and the said subsection shall apply to a person for whom the upper limit of school age is sixteen years, with the substitution for the words "fifteen" and "fifteenth", wherever those words occur, of the words "sixteen" and "sixteenth" respectively.

(6) In this section the expression "holiday period" means a period of more than nine consecutive days in which no meeting of the school is held, but does not include any period during which the school is closed for exceptional reasons unless the holiday period and the period of closure for exceptional reasons are consecutive. Exceptional reasons include national or local rejoicing or mourning, national or local emergency and the prevention of the spread of disease.

34.—(1) When after due inquiry an education authority are satisfied that by reason of any circumstances existing at his home it would cause exceptional hardship to require a child over fourteen years of age to attend school, they may grant exemption from the obligation to attend school to enable the said child to give assistance at home upon such conditions, if any, as to the amount and manner of further attendance at school until the child reaches the upper limit of the school age as the authority think fit. Exemption from school attendance.

(2) No exemption granted under the last foregoing subsection shall extend beyond the date for commencing school attendance next following the date upon which the exemption was granted:

Provided that the authority may if they think fit renew an exemption, so however that the provisions of this section shall apply to such renewal in like manner as they apply to the original grant.

(3) An exemption granted under this section shall exempt the parent of the child concerned from any prosecution or other proceeding under this Act for neglecting to provide for the education of the said child.

(4) The education authority shall keep a register of exemptions granted under this section wherein shall be entered the name of each child so exempted and a statement of the circumstances in which and the conditions upon which such exemption was granted.

PART II

Failure of Parents to provide Education for their Children

Failure by
parent to
secure regular
attendance by
his child at a
public school.

35.—(1) Where a child of school age who has attended a public school on one or more occasions fails without reasonable excuse to attend regularly at the said school, then, unless the education authority have consented to the withdrawal of the child from the school (which consent shall not be unreasonably withheld), his parent shall be guilty of an offence against this section.

(2) A child shall be deemed to attend regularly at a day school if he attends every meeting at which attendance is compulsory. He shall be deemed to attend regularly at a boarding school if he is present at the school throughout the school term except when he is granted leave of absence by the head teacher or by another person duly authorised by him.

(3) For the purposes of this section, a child who has been required to discontinue for any period his attendance at a school on account of his parent's refusal or failure to comply with the rules, regulations or disciplinary requirements of the school, shall, unless the court otherwise determines, be deemed to have failed without reasonable excuse to attend regularly at the school.

Power of
education
authority and
of juvenile
court in
relation to
irregular
attendance of
child at a
public school.

36.—(1) It shall be the duty of the education authority if they consider that a parent has committed an offence against the last foregoing section in respect of a child resident in their area, to serve a notice on the parent requiring him, within such time as may be specified in the notice (not being less than forty-eight hours or more than seven days from the service thereof) to appear (with or without the child) before the authority and explain the reason for the absence of the child from school. If the parent fails to satisfy the authority that he had a reasonable excuse, the authority may instruct that he be prosecuted forthwith under section forty-three of this Act, or may warn the parent and postpone for a period not exceeding six weeks a decision as to whether to prosecute.

(2) Where an education authority in the exercise of the powers conferred upon them by the last foregoing subsection postpone a decision as to whether to prosecute a parent, they may, if the child is still of school age, make an attendance order in respect of the child in accordance with the provisions of section thirty-eight of this Act requiring the parent to cause the child to attend the public school which he has been attending, or, if the child has changed his residence, a school attended by children residing in the same neighbourhood as the child.

(3) Without prejudice to the institution of proceedings for an offence against the last foregoing section or the exercise of the power conferred by subsection (1) of section forty-four of this Act, where a child of school age has failed to attend a public school regularly, the education authority may, if satisfied that it

is necessary so to do for the purpose of securing the regular attendance of the child at school, direct that the child be brought before a juvenile court.

PART II

(4) A juvenile court before which a child is brought under the last foregoing subsection may, if it is satisfied that it is necessary to do so for the purpose of securing the regular attendance of the child at school, make any order which a juvenile court has power to make under section sixty-six of the Act of 1937, in the case of children and young persons in need of care or protection who are brought before that court under that section.

(5) For the purposes of the Act of 1937, any child with respect to whom a direction has been given under subsection (3) of this section that he be brought before a juvenile court shall be deemed to be a child about to be brought, or brought, before such a court under section sixty-six of that Act, and any order made by a juvenile court under this section shall be deemed to be an order made under that section, and all the provisions of that Act shall have effect accordingly, but subject to the modification that in relation to any such child subsection (1) of section seventy-one of the said Act shall have effect as if the words "A constable, or" were omitted therefrom.

37.—(1) Where a child of school age has not attended a public school in the area in which his parent is residing, or has attended such a school and has been withdrawn therefrom with the consent of, or excluded by, the education authority, then, if the authority are not satisfied that the parent is providing efficient education for him suitable to his age, ability and aptitude, it shall be the duty of the authority to serve a notice on the parent requiring him within such time as may be specified in the notice (not being less than seven or more than fourteen days from the service thereof) either—

- (a) to appear (with or without the child) before the authority and give such information as the authority may require regarding the means, if any, he has adopted for providing education, or
- (b) in the option of the parent, to give such information to the authority in writing.

(2) If a parent on whom a notice has been served in pursuance of the last foregoing subsection fails to satisfy the authority that he is providing efficient education for the child suitable to his age, ability and aptitude or that there is reasonable excuse for his failure to do so, the authority shall make an attendance order in respect of the child in accordance with the provisions of the next following section.

PART II**Making of
attendance
orders.***Attendance Orders*

38.—(1) References in the two last foregoing sections, and in the following provisions of this Act, to an attendance order in respect of a child are references to an order in writing requiring the parent of the child to cause the child to attend a school named in the order, being a school the managers of which are willing to receive the child.

(2) In an attendance order in respect of a child—

(a) a school at which the parent will be required to pay fees shall not be named except at the request of the parent ; and

(b) a special school shall not be named unless a certificate issued under subsection (2) of section fifty-five of the Act of 1946 or subsection (2) of section sixty-four of this Act is in force certifying that the child is suffering from such disability as to require special educational treatment.

(3) Before making an attendance order under either of the two last foregoing sections, the education authority shall consider any views expressed by the parent as to the school which he desires his child to attend.

(4) The authority shall cause a copy of any attendance order made by them under either of the two last foregoing sections to be served upon the parent, and it shall thereupon be the duty of the parent, subject to an appeal to the sheriff under the next succeeding subsection, to cause the child to attend regularly at the school named in the order.

(5) A parent aggrieved by the making of an attendance order by an education authority may within fourteen days after the date upon which a copy of the order was served upon him under the last foregoing subsection appeal against it to the sheriff, who may confirm, vary or annul the order and whose decision shall be final.

**Amendment
and revocation
of attendance
orders.**

39.—(1) An education authority who have made an attendance order in respect of any child may at any time while the order is in force serve upon the parent of the said child a notice of their intention to amend the order by substituting the name of another school for that named in the order.

(2) Where a child in respect of whom an attendance order is in force moves his residence, the education authority of the area to which the child has moved may serve upon the parent of the said child a notice of their intention to amend that order by substituting for the name of the school appearing in the order the name of a school attended by children residing in the same neighbourhood as the child.

(3) The parent may within fourteen days of the service of a notice under subsection (1) or subsection (2) of this section intimate in writing to the authority any objections he may have

PART II

to the proposed amendment. After the expiry of the said period of fourteen days and after considering any objections made by the parent, the authority may amend the attendance order, and subsections (2), (4) and (5) of the last foregoing section shall apply in the case of the amended attendance order as they apply in the case of an attendance order.

(4) If at any time while an attendance order is in force with respect to any child the parent of the child makes application to the authority by whom the order was made or amended requesting that another school be substituted for that named in the order, or requesting that the order be revoked on the ground that arrangements have been made for the child to receive efficient education suitable to his age, ability and aptitude at a school other than that named in the order or elsewhere than at school, the authority shall amend or revoke the order in compliance with the request unless they are of opinion that the proposed change of school is unreasonable or inexpedient in the interests of the child, or that the arrangements made for the education of the child at a school other than that named in the order or elsewhere than at school are not satisfactory, as the case may be; and, if a parent is aggrieved by a failure of the authority to reach a decision upon his application within one month after the date thereof or by refusal of the authority to comply with any such request, he may appeal to the sheriff, who shall give such direction as he thinks fit.

40. An attendance order made in respect of any child shall, subject to any amendment thereof made by an education authority or variation made by the sheriff, and unless revoked by an authority or annulled by the sheriff, continue in force so long as the child is of school age: Period of operation of attendance orders.

Provided that if a certificate under subsection (2) of section fifty-five of the Act of 1946 or subsection (2) of section sixty-four of this Act certifying that a child is suffering from such disability as to require special educational treatment is withdrawn, any attendance order requiring the attendance of that child at a special school shall be deemed to be annulled.

41. Where an attendance order has been made and is in force in respect of any child, and a copy of such order has been served on the parent of the child, the parent shall, if the order is not complied with, be guilty of an offence against this section unless he satisfies the court that he has a reasonable excuse. Failure to comply with attendance order.

Reasonable Excuses

42.—(1) For the purposes of sections thirty-five, thirty-six, thirty-seven, forty-one and forty-four of this Act, there shall be deemed to be a reasonable excuse if— Reasonable excuses.

- (a) there is within walking distance of the child's home measured by the nearest available route no public or

PART II

other school the managers of which are willing to receive the child and to provide him with free education, and either—

- (i) no arrangements have been made by the education authority under section fifty of this Act with regard to the child, or
- (ii) any arrangements so made are such as to require the child to walk more than walking distance in the course of any journey between his home and school ; or
- (b) the child has been prevented by sickness from attending school or receiving education as the case may be ; or
- (c) there are other circumstances which in the opinion of the education authority or the court afford a reasonable excuse.

(2) The fact that an application to an education authority, or an appeal to the sheriff, has been made under subsection (4) of section thirty-nine of this Act in relation to an attendance order in respect of a child shall not be deemed to be a reasonable excuse for failure to cause the child to attend regularly at the school named in the order.

(3) When a parent alleges that his child has been prevented by sickness from attending school or receiving education as the case may be, the parent shall, if required by the education authority, permit a medical officer of the education authority to examine the child, and any parent who fails to do so shall be guilty of an offence against this section.

(4) In this section the expression “walking distance” means, in the case of a child who has not attained the age of eight years, two miles, and, in the case of any other child, three miles.

*Prosecutions*Prosecutions
and penalties.

43.—(1) Any person guilty of an offence against section thirty-five or section forty-one or section forty-two of this Act shall be liable, on conviction by a court of summary jurisdiction, in the case of a first conviction to a fine not exceeding one pound, in the case of a second conviction, whether in respect of the same or of another child, to a fine not exceeding five pounds, and in the case of a third or subsequent conviction, whether in respect of the same or of another child, to a fine not exceeding ten pounds or to imprisonment for a term not exceeding one month or to both such fine and such imprisonment.

(2) Proceedings under this section may be taken at the instance either of the public prosecutor of the court of summary jurisdiction in which the proceedings are to be taken or of another person authorised by the education authority to institute proceedings on their behalf.

44.—(1) If the court before which a prosecution is brought for an offence against section thirty-five or section forty-one or section forty-two of this Act is satisfied that the child has failed without reasonable excuse to attend regularly at school, then, whether or not the parent is convicted, the court may direct that the child be brought before a juvenile court by the education authority of the area in which the child resides, and the court shall so direct if the education authority so request. PART II
Powers of
Courts in
relation to
child.

(2) If the court before which a prosecution is brought for an offence against section thirty-five of this Act is satisfied that a child has failed without reasonable excuse to attend regularly at school, but does not, in the exercise of the powers conferred upon it by the last foregoing subsection, direct that the child be brought before a juvenile court, the court may, if the child is still of school age, make an attendance order in respect of the child requiring the parent to cause the child to attend the public school which he has been attending, or, if the child has changed his residence, a school attended by children residing in the same neighbourhood as the child; and subsections (2) and (3) of section thirty-eight, and sections thirty-nine to forty-one, of this Act shall apply with any necessary modifications to an attendance order made by a court under this section as they apply to an attendance order made by an education authority.

(3) Any juvenile court before which a child is brought under subsection (1) of this section shall have in respect of the child the like power as is conferred on such a court by subsection (4) of section thirty-six of this Act.

(4) The provisions of subsection (5) of section thirty-six of this Act shall apply in relation to any child with respect to whom a direction has been given under subsection (1) of this section as they apply in relation to a child with respect to whom a direction has been given under subsection (3) of that section.

Attendance at Junior Colleges

45.—(1) It shall be the duty of every education authority to serve on every young person ordinarily resident in their area who is not exempt from compulsory further education a notice (hereinafter referred to as an "attendance notice") directing him to attend a junior college named in the notice, and it shall be the duty of every young person upon whom such a notice is served to attend at the junior college in accordance with the requirements specified in the notice. The authority shall serve a copy of the notice and of any amendment thereof upon the parent of the young person. Attendance
at junior
colleges.

(2) Subject to the provisions of the next following subsection, the requirements specified in an attendance notice shall be such

PART II as to secure the attendance at a junior college of the young person upon whom the notice is served—

- (a) for one whole day, or two half-days, in each of forty-four weeks in every year while he remains a young person ; or
- (b) for one continuous period of eight weeks, or for two continuous periods of four weeks each in every such year, if the authority are satisfied that continuous attendance would be more suitable for the said young person ;

and in this section the expression “ year ” means, in relation to any young person, in the case of the first year, the period of twelve months beginning with the first day on which he is required by an attendance notice served on him to attend a junior college, and in the case of every subsequent year the period of twelve months beginning immediately after the expiration of the last preceding year :

Provided that—

- (i) in respect of the year in which the young person attains the age of eighteen the requirements specified in the notice shall be reduced to such extent as the education authority think expedient for securing that the attendances required of him until he attains that age shall be as nearly as may be proportionate to those which would have been required of him during a full period of twelve months ; and
- (ii) the Secretary of State may from time to time require an education authority to fix for their area two or more dates for terminating attendance at junior colleges. The education authority shall intimate to the Secretary of State the dates which they propose to fix, and the Secretary of State may approve the said dates or may, after consultation with the authority and with such other persons as he thinks fit, require the authority to fix other dates. The authority shall fix dates in accordance with the approval or requirement of the Secretary of State, and thereupon a young person resident in the area shall for the purpose of attendance at a junior college be deemed to attain the age of eighteen on the fixed date next following the day when he actually attains that age.

(3) If by reason of the nature of the employment of any young person or of other circumstances affecting him the education authority are satisfied that attendance in accordance with the provisions of the last foregoing subsection would not be suitable in his case, an attendance notice may, with the consent of the young person, require his attendance in accordance with such other arrangements as may be specified in the notice, so,

PART II

however, that the requirements specified in the notice in accordance with such arrangements as aforesaid shall be such as to secure the attendance of the young person for periods amounting in the aggregate to three hundred and thirty hours in each year, or, in the case of the year in which he attains the age of eighteen, to the proportionately reduced number of hours.

(4) Except where continuous attendance at a junior college involves residence at the college or at a hostel, no attendance notice shall require a young person to attend a junior college on a Sunday or during any holiday or half-holiday to which by any enactment regulating his employment or by agreement he is entitled, or, so far as practicable, during any holiday or half-holiday which is allowed in accordance with any custom of his employment, or between the hours of six in the evening and half past eight in the morning:

Provided that the Secretary of State may, on the application of an education authority, direct that in relation to young persons in their area or in any part thereof employed at night or otherwise employed at abnormal times this subsection shall have effect as if for the reference to the hours of six in the evening and half past eight in the morning there were substituted a reference to such other times as may be specified in the direction.

(5) The place, days, times and periods of attendance required of a young person and the period for which the notice is to be in force shall be specified in any attendance notice served on him; and the requirements of any such notice may be amended as occasion may require either by the authority by whom it was served or by any other education authority in whose area he may for the time being reside, so, however, that the provisions of every such notice shall be such as to secure that the requirements imposed on the young person during each year while he remains a young person shall comply with the provisions of the last three foregoing subsections.

(6) In determining what requirements shall be imposed upon a young person by an attendance notice or by any amendments to such a notice, the education authority shall have regard, so far as practicable, to any preference which he and, in the case of a young person under the age of sixteen years, his parent may express, to the circumstances of his employment or prospective employment, and to any representations that may be made to the authority by his employer or any person proposing to employ him.

(7) If a pupil satisfies the education authority that any religious observance or any part of the instruction at a junior college which the pupil is required to attend is contrary to his religious belief or likely to give offence to his religious feelings, the education authority shall permit the pupil to withdraw from such observance or instruction and shall, so far as practicable,

PART II arrange for him to be suitably occupied while such observance or instruction is in progress.

(8) The following persons shall be exempt from compulsory attendance at a junior college, that is to say—

- (a) any person who is in full-time attendance at any school or other educational establishment (not being a junior college) approved by the Secretary of State for the purpose ;
- (b) any person who is shown to the satisfaction of the education authority to be receiving suitable and efficient instruction in some other manner either full-time or for such times as in the opinion of the authority are equivalent to not less than three hundred and thirty hours instruction in a period of twelve months ;
- (c) any person who having been exempt under either of the last two foregoing paragraphs did not cease to be so exempt until after he had attained the age of seventeen years and eight months ;
- (d) any person who is undergoing a course of training approved by the Secretary of State for the mercantile marine or the sea fishing industry or who, having satisfactorily completed such a course, is engaged in the mercantile marine or in the sea fishing industry ;
- (e) any person to whom, by reason of section one hundred and forty or section one hundred and forty-one of this Act, the duties of education authorities do not relate ;
- (f) any person who attained the age of fifteen years before the date when the scheme for the provision of junior colleges came into force.

(9) If any person is aggrieved by a decision of an education authority given under paragraph (b) of the last foregoing subsection, he may refer the question to the Secretary of State, who shall give such direction thereon as he thinks fit.

(10) If any young person upon whom an attendance notice has been served fails to comply with any requirement of the notice, he shall be guilty of an offence against this section unless he proves either—

- (a) that he was exempt from compulsory attendance for further education, or
- (b) that he was prevented from complying with the requirement by reason of sickness or any other unavoidable cause,

or unless the court is satisfied that there was some other reasonable cause for such failure.

46.—(1) For the purpose of facilitating the execution by education authorities of their functions under the last foregoing section, the following provisions shall have effect, that is to say—

PART II
Provisions
for securing
attendance at
junior colleges.

- (a) every young person who is not exempt from compulsory attendance at a junior college shall at all times keep the education authority concerned informed of his proper address ;
- (b) every person whose employment such a young person as aforesaid enters shall, not later than four days thereafter, if the young person has not then left his employment, notify the education authority concerned that the young person has entered his employment ;
- (c) where a young person whose entry into employment has been notified in pursuance of the last foregoing paragraph leaves that employment, the employer shall within four days thereafter notify the education authority concerned that the young person has ceased to be employed by him ;
- (d) where such a young person as aforesaid enters the employment of an employer by whom he had previously been employed, the employer shall immediately notify such entry to the education authority concerned unless the previous entry was so notified in pursuance of paragraph (b) of this subsection ;
- (e) every person by whom such a young person as aforesaid is employed shall notify the education authority concerned of any change of his address, and, if known to him, of any change of the young person's address.

In this subsection the expression "the education authority concerned" means the education authority in whose area the young person is ordinarily resident.

(2) Any person who fails to comply with any requirement imposed on him by the last foregoing subsection shall be guilty of an offence against this section.

(3) The education authority by whom an attendance notice is served upon any young person shall serve a copy thereof upon any person who notifies the authority that the young person is employed by him.

(4) The Secretary of State may by regulations make provision as to the form of attendance notices, as to consultation and the exchange of information between education authorities, as to the issue of certificates of exemption in respect of young persons who are exempt from compulsory attendance at a junior college, and generally for the purpose of facilitating the administration by education authorities of the provisions of this Act as to attendance at junior colleges.

PART II

(5) The Secretary of State and the Minister of Labour shall give directions to education authorities and to local offices of the Ministry of Labour respectively for ensuring due consultation and exchange of information between such authorities and offices.

Enforcement
of attendance
at junior
colleges.

47.—(1) Any person guilty of an offence against either of the last two foregoing sections shall be liable on conviction by a court of summary jurisdiction in the case of a first offence against that section to a fine not exceeding one pound, in the case of a second offence against that section to a fine not exceeding five pounds, and in the case of a third or subsequent offence against that section to a fine not exceeding ten pounds or to imprisonment for a term not exceeding one month or to both such fine and such imprisonment.

(2) If, in furnishing any information for the purposes of either of the last two foregoing sections, any person makes any statement which he knows to be false in any material particular, or recklessly makes any statement which is false in any material particular, he shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

(3) If the parent of a young person or any person by whom a young person is employed or the servant or agent of any such person has connived at any offence committed by the young person against either of the last two foregoing sections, the person who has connived at the offence shall, whether or not any person is proceeded against or convicted in respect of the offence connived at, be guilty of the like offence and punishable accordingly.

Power to
require
attendance of
unemployed
young persons
at junior
colleges.

48.—(1) If any young person is capable of and available for work but has no work or only part-time or intermittent work, the Secretary of State may require his attendance in accordance with regulations at any junior college at which he can reasonably be expected to attend.

(2) If any young person whose attendance at a junior college has been required by the Secretary of State under this section fails, except by reason of sickness or other unavoidable cause, to attend at that college, he shall be liable on conviction by a court of summary jurisdiction in the case of a first offence to a fine not exceeding one pound, in the case of a second offence to a fine not exceeding five pounds, and in the case of a third or subsequent offence to a fine not exceeding ten pounds or to imprisonment for a term not exceeding one month or to both such fine and such imprisonment.

(3) For the purposes of the last foregoing subsection and of any such proceedings as are therein mentioned, a young person who, by reason of his misbehaviour while attending at a junior

college, has been required to discontinue his attendance thereat for any period shall be deemed to have failed without unavoidable cause to attend at that college.

PART II

(4) An education authority shall have power to assist the Secretary of State with respect to the attendance at junior colleges of young persons who may be, or have been, required by the Secretary of State under this section to attend thereat.

(5) Regulations made by the Secretary of State under this section shall make provision as to the functions to be performed by education authorities with respect to young persons required under this section to attend at junior colleges, and, in particular, shall direct such authorities to make in any attendance notice served on any such young person such modifications as may be provided by the regulations, and shall make provision as to the circumstances in which and the extent to which attendances in pursuance of requirements under this section may be reckoned as attendances in pursuance of the requirements of attendance notices.

(6) The aforesaid regulations may make provision for the establishment of boards of assessors for the purpose of reporting to the Secretary of State as to the advisability of requiring young persons to attend at a junior college.

*Provision to assist Pupils to take Advantage
of Educational Facilities*

49.—(1) Subject to the following provisions of this section an education authority shall have power to grant, on such conditions as may be prescribed, and make payments in pursuance of, bursaries, scholarships or other allowances to persons over school age attending courses of full-time or part-time education (whether held in Great Britain or elsewhere) which are not courses of primary or secondary education or (in the case of courses held outside Great Britain) are not courses of education comparable to primary or secondary education in Great Britain.

Power of
education
authorities
to assist
persons to
take advantage
of educational
facilities.

(2) Subject to the following provisions of this section an education authority shall have power, for the purpose of enabling persons to take advantage without hardship to themselves or their parents of the facilities for primary or secondary education

PART II

available to them, to grant, on such conditions as may be prescribed, and make payments in pursuance of, allowances for the purpose of defraying in whole or in part—

- (a) such expenses of persons attending any school as may be expedient to enable them to take full part in the activities of the school;
- (b) the fees and expenses payable in respect of persons attending schools at which fees are payable;
- (c) the maintenance expenses of persons over school age who are attending schools.

(3) The Secretary of State may make regulations providing that the powers conferred on an education authority by subsections (1) and (2) of this section—

- (a) shall be exercised in accordance with such provisions as may be prescribed by or under the regulations; and
- (b) shall not be exercised in relation to a person who does not fulfil such requirements as to residence in the area of the authority, or as to other matters, as may be specified in the regulations;

and regulations made under this subsection may contain provision for the determination by the Secretary of State of any question whether any such requirements are fulfilled in any particular case.

Education of
pupils in
exceptional
circumstances.

50.—(1) Where in the opinion of an education authority—

- (a) any pupil is, owing to the remoteness of his home or the conditions under which he is living or other exceptional circumstances, unable to receive the full benefit of primary or secondary education unless special arrangements are made for him, or
- (b) primary or secondary education suitable to the age, ability and aptitude of any pupil can best be provided for him at any particular school, or
- (c) compulsory further education should in the case of any pupil be provided by requiring his continuous attendance at a junior college under section forty-five of this Act,

the authority shall, after consultation with the parent and, in any case falling under paragraph (c) of this subsection, with the pupil, make such arrangements of either a temporary or a permanent character as they think best suited to the purpose of enabling that pupil to attend an appropriate school or college.

(2) The arrangements made under the last foregoing subsection may include—

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- (a) the provision of travelling facilities or the payment of travelling expenses under section fifty-one of this Act ; or
- (b) the accommodation of the pupil at a boarding school or at a junior college where boarding is provided, or in a hostel, home or other institution ; or
- (c) other provision of board and lodging, provided that the education authority shall, so far as practicable, give effect to the wishes of the parent with respect to the religious denomination of the person with whom the pupil will reside ; or
- (d) provision for the travelling, board and lodging of teachers.

51.—(1) An education authority shall make such arrangements as they consider necessary for the provision of any of the following facilities in respect of pupils attending schools or other educational establishments—

Provision of
transport and
other facilities.

- (a) for their conveyance without charge for the whole or part of the journey between their homes and the schools or other educational establishments which they are attending ;
- (b) for making bicycles or other suitable means of transport available to the pupils, or to their parents for the use of the pupils, upon such terms and conditions as may be arranged, or for paying money allowances in lieu thereof ;
- (c) for paying the whole or any part, as the authority think fit, of their reasonable travelling expenses,

and any such arrangement may in respect of any pupil make provision for more than one of the facilities specified in the foregoing paragraphs of this subsection.

(2) Where the requirements of pupils, for the conveyance of whom arrangements have been made by an education authority under paragraph (a) of the last foregoing subsection, have been met, it shall be the duty of that authority, where there are any vacant places in any vehicle used for such conveyance, to allow such vacant places to be used without charge by other pupils to be selected by the authority.

PART II

(3) Where as a condition of admission to any educational institution a person is required to attend for examination or interview at a particular place, the education authority may pay the whole or part of the expenses necessarily incurred by that person in respect of such attendance.

Recovery of
cost of board
and lodging.

52. Where an education authority have provided a pupil with board and lodging, whether at a school, junior college or hostel or elsewhere, the authority may, in their discretion, require the parent to pay to them in respect thereof such sums if any not exceeding the cost of such board and lodging as in the opinion of the authority he is able without financial hardship to pay:

Provided that—

- (i) where the board and lodging provided for any pupil were so provided under arrangements made by the authority for any of the reasons specified in subsection (1) of section fifty of this Act, no sum shall be recoverable in respect thereof under this section; and
- (ii) where the board and lodging have been so provided for a young person in voluntary attendance at a junior college or, under section thirteen of this Act, at another educational establishment, the authority, if satisfied that he is in a financial position to pay the whole or any part of a sum recoverable from his parent under this section, may recover that sum or that part thereof from the young person instead of from the parent.

Provision of Food and Clothing

Provision of
food for pupils
at educational
establishments
managed by
education
authorities.

53.—(1) It shall be the duty of an education authority to provide milk and a midday meal, and it shall be lawful for them to provide other meals and refreshments, for pupils in attendance at public schools and junior colleges under their management on days when the schools meet or when the pupils are required by attendance notices to be present at a junior college, as the case may be, and they may make similar provision for the said pupils on other days, for children who have attained the age of five years pending their admission to school and for pupils in attendance at other educational establishments under their management.

(2) Where in the opinion of an education authority any pupil attending a public school in their area would otherwise be unable to take full advantage of the education provided, they shall make such arrangements for such period as they deem necessary for the provision to the pupil of milk and midday meals on days when the school does not meet.

PART II

(3) The Secretary of State may make regulations as to the manner in which and the persons by whom the expense of providing such milk, meals and other refreshments is to be defrayed, as to the facilities to be afforded (including any buildings or other equipment to be provided) and as to such other consequential matters as he considers expedient.

(4) For the purposes of this section, a pupil for whom an education authority have made special arrangements under section fourteen of this Act may, at the discretion of the education authority, be deemed to be in attendance at a public school under their management.

54.—(1) When it is brought to the notice of an education authority that a pupil attending a school under their management is unable by reason of the inadequacy or unsuitability of his clothing to take full advantage of the education provided, the education authority shall make such provision for the pupil for the purpose of ensuring that he is sufficiently and suitably clad as they may deem necessary during such period while the pupil is attending school (including days when the school does not meet) as they may determine.

Provision of
clothing for
pupils at
public schools.

(2) Where an education authority make provision for a pupil in pursuance of this section, they shall be entitled to recover from the parent of the pupil the expense thereby incurred or, if the authority are satisfied that the parent is unable without financial hardship to pay the whole of that expense, such part thereof, if any, as he is, in the opinion of the authority, able without financial hardship to pay.

(3) Without prejudice to any powers conferred upon them by the last two foregoing subsections, an education authority may provide clothing free of charge—

(i) for any pupil who is a boarder at a school, or

(ii) for any pupil in attendance at a nursery school or a nursery class,

under the management of the authority.

(4) For the purposes of this section—

(a) a pupil on attaining the age of five years shall, pending his admission to school, be deemed to be attending a school under the management of the education authority in whose area he is ordinarily resident; and

(b) a pupil for whose education it is the duty of an education authority to provide special educational treatment shall be deemed to be attending a school under the management of that authority.

PART II

Provision of food and clothing for pupils at schools other than public schools.

55. An education authority may, with the consent of the managers of any school in their area which is not a public school, and upon such financial and other terms, if any, as may be determined by agreement between the authority and the managers, make arrangements for securing—

- (a) the provision of milk, meals and other refreshment for pupils in attendance at the school ; and
- (b) the provision, for any pupil in attendance at the school who is unable by reason of the inadequacy or unsuitability of his clothing to take full advantage of the education (including physical exercise) provided by the school, of such clothing as is necessary for the purpose of ensuring that he is sufficiently and suitably clad while he remains a pupil at the school :

Provided that any arrangements made under this section shall be such as to secure, so far as is practicable, that the expense incurred by the authority in connection with the provision of any service or article shall not exceed the expense which would have been incurred by them if the pupils had been pupils at a public school.

Condition of provision of clothing by education authorities.

56. Save as may be otherwise prescribed, provision of clothing by an education authority under any of the powers conferred by this Act may be made in such a way as to confer, at the option of the authority, either a right of property in the clothing or a right to use it only.

Health and Cleanliness of Pupils

Regulations as to medical examination and inspection.

57. The Secretary of State may make regulations as to the conduct of medical examinations and medical inspections for the purposes of this Act. Such regulations may, in particular, prescribe the special qualifications or experience to be possessed by the medical practitioners by whom any class of medical examinations may be conducted, by the persons who may assist in the conduct of such examinations, and by the medical practitioners by or under whose directions any class of medical inspections may be conducted.

Medical inspection, supervision and treatment of pupils.

58.—(1) It shall be the duty of an education authority to provide for the medical inspection, at appropriate intervals, and for the medical supervision of all pupils in attendance at any school or junior college under their management and of all young persons in attendance at any other educational establishment under their management, and an education authority shall have power to provide for such inspection and supervision of other pupils in attendance at any educational establishment under their management who desire such inspection and supervision.

(2) For the purpose of securing the proper medical inspection of the pupils for whom it is their duty to provide such inspection,

PART II

an education authority may require the parent of any pupil in attendance at any such school to submit the pupil for medical inspection in accordance with arrangements made by the authority, and may require any young person in attendance at such junior college or other educational establishment to submit himself to such medical inspection; and any person who fails without reasonable excuse to comply with any such requirement shall be liable on conviction by a court of summary jurisdiction to a fine not exceeding five pounds.

(3) It shall be the duty of an education authority to make such arrangements for securing the provision of free medical treatment for pupils in attendance at any such school and for young persons in attendance at any such junior college or other educational establishment as are necessary for securing that comprehensive facilities for free medical treatment are available to them either under this Act or otherwise, and an education authority shall have power to make such arrangements as aforesaid with respect to other pupils in attendance at any educational establishment under their management who desire such treatment.

59. It shall be the duty of every education authority to make such arrangements as are necessary for securing that there are available for pupils in attendance at any public school and young persons in attendance at any junior college or other educational establishment under their management comprehensive facilities for free dental treatment provided either—

Dental
treatment
of pupils.

- (a) by persons employed or engaged by, and at the expense of, the authority, either regularly (whether whole-time or part-time) or for the purposes of particular cases; or
- (b) under arrangements made by a Regional Hospital Board within the meaning of the National Health Service (Scotland) Act, 1947;

or partly in the one way and partly in the other; and every education authority shall have power to make arrangements for rendering available to other pupils in attendance at any educational establishment under their management any facilities which they have caused to be made available in the discharge of the duty imposed on them by the foregoing provisions of this section.

60.—(1) It shall be the duty of an education authority to make arrangements for encouraging and assisting pupils to take advantage of facilities for medical treatment made available under subsection (3) of section fifty-eight of this Act and of those for dental treatment made available under the last foregoing section:

Supple-
mentary
provisions.

Provided that if the parent of any child or young person gives to the authority notice that he objects to the child or

PART II

young person availing himself of the said facilities, the child or young person shall not be encouraged or assisted so to do.

(2) Where under powers conferred by section fourteen of this Act an education authority make special arrangements for any child or young person to receive primary or secondary education elsewhere than at school, the authority may provide for the medical inspection, supervision and treatment and for the dental treatment of that pupil as if he were in attendance at a school under their management.

(3) An education authority may, with the consent of the managers of any school or other educational establishment in their area which is not under their management, and upon such terms, if any, as may be determined by agreement between the authority and the managers, make arrangements for securing the medical inspection and supervision of, and the provision of medical treatment and of dental treatment for, pupils in attendance at the school or educational establishment:

Provided that the arrangements shall be such as to secure, so far as is practicable, that the expense incurred by the authority in connection with such inspection, supervision and treatment shall not exceed the expense which would have been incurred by them if the pupils had been pupils at a school or educational establishment under their management.

(4) Every education authority shall furnish to the Secretary of State such particulars as he may from time to time require of the arrangements made by the authority in the exercise of their functions relating to medical examination, inspection, supervision and treatment and to dental treatment; and the Secretary of State may give to any such authority such directions as to the discharge by the authority of those functions as appear to him to be expedient.

Power to
ensure
cleanliness.

61.—(1) An education authority may, by directions in writing issued with respect to all schools, junior colleges and other educational establishments under their management or with respect to any of such schools, colleges or establishments named in the directions, authorise a medical officer of the authority to cause examinations to be made of the bodies and clothing of all or any of the pupils in attendance at such schools and young persons in attendance at such colleges or establishments whenever in his opinion such examinations are necessary in the interests of cleanliness.

(2) Any such examination as aforesaid shall be made by the said medical officer or by a person authorised in writing by him to make such examinations (in this section referred to as an "authorised person"), and, if the body or clothing

PART II

of any pupil or young person is found upon such an examination to be infested with vermin or in a foul condition, the medical officer, the authorised person or any officer of the authority on their behalf may serve upon the parent of such pupil or upon the young person a notice requiring the parent to cause the body and clothing of the pupil to be cleansed or the young person to cause himself and his clothing to be cleansed as the case may be.

(3) A notice served under the last foregoing subsection shall inform the person upon whom it is served that, unless within the period limited by the notice, not being more than twenty-four hours after the service thereof, the body and clothing of the pupil or young person to whom the notice relates are cleansed to the satisfaction of the medical officer or an authorised person as may be specified in the notice, the cleansing thereof will be carried out under arrangements made by the education authority; and, if at the expiration of that period the medical officer or an authorised person is not satisfied that the body and clothing of the pupil or young person have been properly cleansed, the medical officer or an authorised person may issue an order directing that the body and clothing of the pupil or young person be cleansed under such arrangements. The order shall be sufficient to authorise any officer of the authority to cause the body and clothing of the pupil or young person named in the order to be cleansed in accordance with such arrangements, and for that purpose to convey him to the premises where the cleansing is to be carried out and to detain him there until such time as the cleansing has been completed.

(4) It shall be the duty of the education authority to make arrangements for securing that any cleansing under this section, whether at the request of a parent or young person or in pursuance of an order issued under this section, may be carried out in suitable premises by suitable persons and with suitable appliances.

(5) If after the cleansing of the body or clothing of any pupil or young person has been carried out under this section his body or clothing is again found to be infested with vermin or in a foul condition at any time while he is in attendance at such school, junior college or other educational establishment, and it is proved that the condition of his body or clothing is due to neglect on the part of his parent, or, in the case of a young person in attendance at a junior college or other educational establishment, to his own neglect, the parent or the young person, as the case may be, shall be liable on conviction by a court of summary jurisdiction in the case of a first conviction to a fine not exceeding one pound, in the case of a second conviction to a fine not exceeding five pounds,

PART II

and in the case of a third or subsequent conviction to a fine not exceeding ten pounds or to a term of imprisonment not exceeding one month or to both such fine and such imprisonment.

(6) Where a medical officer or authorised person has reason to believe that the body or clothing of any pupil or young person in attendance at such school, junior college or other educational establishment is infested with vermin or in a foul condition, but action for the examination or cleansing thereof cannot immediately be taken, he may, if he considers it necessary so to do in the interests either of the pupil or young person or of other children or young persons in attendance at the school, college or other educational establishment, direct that the pupil or young person be excluded from the school, college or other educational establishment until such action has been taken; and such a direction shall be a defence to any proceedings under this Act in respect of the failure of the pupil or young person to attend school or to comply with the requirements of an attendance notice, as the case may be, on any day on which he is excluded in pursuance of the direction, unless it is proved that the issue of the direction was necessitated by the wilful default of the parent or of the young person.

(7) No female shall be examined or cleansed under the powers conferred by this section except by a duly qualified medical practitioner or by a woman authorised for that purpose by a medical officer of an education authority.

Handicapped Children

Classification
and
educational
arrangements.

62. The Secretary of State shall make regulations defining the several categories of pupils requiring special educational treatment and making provision as to the special educational arrangements appropriate for pupils of each category.

Duty of
education
authorities to
ascertain what
children
are suffering
from
disability.

63.—(1) It shall be the duty of an education authority to ascertain what children in their area who have attained the age of five years—

(a) require special educational treatment; or

(b) are suffering from a disability of mind of such a nature or to such an extent as to make them unsuitable for education or training in a special school.

(2) If for the purpose of their duty under the last foregoing subsection an authority consider it necessary that a child should be medically examined, they shall by notice in writing served upon the parent of the child require him to submit the child for

PART II

medical examination by a medical officer of the authority in order to obtain advice as to whether the child is suffering from any disability of mind or body and as to the nature and extent of any such disability; and if a parent upon whom such a notice is served fails without reasonable excuse to comply with the requirements thereof he shall be liable on conviction by a court of summary jurisdiction to a fine not exceeding five pounds.

(3) Before any child is so medically examined as aforesaid, the authority shall cause notice to be given to the parent of the time and place at which the examination will be held, and the parent shall be entitled to be present at the examination if he so desires.

(4) If the parent of any child who has attained the age of two years requests the education authority for the area to cause the child to be so medically examined as aforesaid, the authority shall comply with the request unless in their opinion the request is unreasonable.

(5) It shall be the duty of an education authority to disseminate in their area information as to the educational importance to any child suffering from disability of mind or body of the early ascertainment of his disability, and of the opportunity for medical examination available under this section.

64.—(1) The education authority shall consider the advice given with respect to any child in consequence of the medical examination under the last foregoing section and any reports or information which they are able to obtain from teachers or other persons with respect to the ability and aptitude of the child, and, if the authority decide that the child requires special educational treatment, they shall give to the parent notice of their decision and shall ensure that any education provided for the child is by means of special educational treatment.

(2) The advice given with respect to any child in consequence of any such medical examination as aforesaid shall be communicated to the parent of the child, and the medical practitioner by whom the examination was made shall, if required by the parent or by the authority so to do, issue to the parent and to the authority a certificate in the prescribed form showing whether the child is suffering from any disability of mind or body and, if so, the nature and extent thereof, and any parent who is aggrieved by the terms of the certificate may within fourteen days after the date of issue thereof, refer the case to the Secretary of State:

Provided that an education authority shall not require the issue of such a certificate in respect of any child unless the certificate is, in their opinion, necessary for the purpose of securing that the child shall receive special educational treatment.

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(3) Any certificate issued under the last foregoing subsection may be withdrawn by the Secretary of State or by a medical officer of the education authority, and upon the withdrawal of such a certificate the decision of the education authority under subsection (1) of this section in regard to the child with respect to whom the certificate was issued shall be deemed to have been rescinded, and the education authority shall cease to provide special educational treatment for the child and shall notify the parent accordingly.

(4) Where an education authority have decided under subsection (1) of this section that a child requires special educational treatment, and where such treatment is being provided for that child in a special school by or with the approval of the authority, the child shall not while of school age be withdrawn from that school without the consent of the authority:

Provided that if the parent of any child is aggrieved by the failure of the authority to reach a decision upon his application for their consent to such withdrawal within one month after the date of his application or by the refusal of the authority to comply with such application, he may within fourteen days after the expiry of the said period of one month or after such refusal, as the case may be, appeal to the sheriff, who shall give such direction as he thinks fit.

Children
unsuitable for
education or
training in a
special school.

65.—(1) If, after considering in accordance with the provisions of subsection (1) of the last foregoing section the advice, reports and information with respect to any child who has attained the age of two years, the education authority decide that the child is suffering from a disability of mind of such a nature or to such an extent as to make him unsuitable for education or training in a special school, it shall (subject to the next following subsection) be the duty of the authority to issue to the local health authority a report of their decision, together with a copy of any document which was taken into account for the purposes of the decision.

(2) Before issuing a report under this section with respect to any child, the education authority shall give to the parent of the child not less than twenty-one days' notice in writing of their intention to do so, and if within that period the parent refers to the Secretary of State the question whether such a report should be issued the report shall not be issued except by his direction.

(3) Any notice under subsection (2) of this section shall contain a statement of the functions of the local health authority with respect to the making of arrangements for the treatment, care or training of the child in the event of the report being issued, and, if known to the education authority, a statement of the arrangements proposed to be made by the local health authority in the discharge of those functions.

(4) Where a report has been issued under subsection (1) of this section in respect of a child—

PART II

- (a) the parent of the child may, at any time (but not earlier than twelve months after the date of the issue of the report nor more often than once in any subsequent period of twelve months) by notice in writing request the education authority to review the decision ; and
- (b) if at any time it appears to the local health authority, or to any authority or body responsible for the management of an institution in which the child is under care, that the decision ought to be reviewed, they shall give notice to that effect to the education authority ;

and thereupon the education authority shall cause the child to be medically examined, and the provisions of subsections (2) and (3) of section sixty-three of this Act shall apply for the purpose of such examination in like manner as they apply for the purpose of the duty of the authority under subsection (1) of the said section.

(5) If, after considering the advice given by the medical officer and any reports or information from the local health authority or from the parent of the child or from the authority or body responsible for the management of the institution in which the child is under care or from other persons, the education authority decide that the child is suitable for education in a school other than a special school or education or training in a special school, they shall cancel their original report and shall intimate the cancellation to the authority to whom the report was originally issued, to any other authority or body concerned, and to the parent.

(6) If, after considering the advice and reports referred to in the last foregoing subsection, the education authority refuse to cancel a report, they shall intimate such refusal to the authority to whom the report was originally issued, to the authority or body responsible for the management of the institution in which the child is under care and to the parent of the child, and it shall be competent to such authority, body or parent, within fourteen days after receipt of such intimation to appeal against such refusal to the Secretary of State.

(7) On any appeal under the last foregoing subsection the Secretary of State may require the education authority to cancel the report or may confirm their refusal to do so.

66.—(1) Where the education authority decide that a child in attendance at a school in their area or under their management, or at a special school, is suffering from mental deficiency to such an extent that he may, on leaving school, benefit from services which the local health authority have power to provide, it shall be the duty of the education authority to issue to the parent of the child and to the local health authority, not earlier than six months

Children who may benefit by local health authority services after leaving school.

PART II

before the child ceases to be of school age, a report of their decision together, in the latter case, with a copy of any document which was taken into account for the purposes of the decision.

(2) The provisions of subsections (2) and (3) of section sixty-three of this Act shall apply for the purpose of the duty of an education authority under the last foregoing subsection in like manner as those provisions apply for the purpose of the duty of the authority under subsection (1) of the said section.

PART III

ADMINISTRATION AND FINANCE

Central Administration

Inspection of
educational
establish-
ments.

67.—(1) It shall be the duty of the Secretary of State to cause inspection to be made of every educational establishment being a school or junior college at such intervals as appear to him to be appropriate, and to cause a special inspection of any such school or junior college to be made whenever he considers such an inspection to be desirable, and he may from time to time cause inspection to be made of any other educational establishment, and such inspections shall be made by Her Majesty's Inspectors or other persons appointed by the Secretary of State for the purpose.

(2) It shall be no part of the duty of a person authorised under this section to make an inspection of any educational establishment, to inquire into instruction in religious subjects given therein or to examine any pupil in religious knowledge or in any religious subject or book.

(3) If any person obstructs any person authorised to make an inspection in pursuance of this section in the execution of his duty, he shall be liable on summary conviction to a fine not exceeding twenty pounds or in the case of a second or subsequent conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

Local
inquiries.

68. The Secretary of State may cause a local inquiry to be held for the purpose of the exercise of any of his functions under this Act, and the provisions of the First Schedule to this Act shall have effect with regard to any such inquiry.

Power to
require
submission to
medical
examination.

69. Where any question is to be decided by the Secretary of State under this Act or under any rule, regulation or order made thereunder, then, if in the opinion of the Secretary of State the medical examination of any pupil would assist the determination

PART III

of the question, the Secretary of State may by notice in writing served on the parent of that pupil, if the pupil is enrolled at a school, or on the pupil himself if he is enrolled at a junior college or other educational establishment, require the parent to submit him, or require the pupil to submit himself, as the case may be, for such examination; and if any person on whom such a notice is served fails without reasonable excuse to comply with the requirements thereof, he shall be liable on summary conviction to a fine not exceeding five pounds.

70.—(1) The Secretary of State may, after considering any representations made to him on the subject and the report of any local inquiry which may have been held under section sixty-eight of this Act, approve, either as submitted or with such modifications and amendments as he thinks proper, any scheme or revised scheme or modification of an existing scheme (in this section referred to as “the scheme”) submitted to him under this Act by an education authority; and thereupon it shall be the duty of the education authority to carry the scheme into effect as so approved.

Approval and
carrying out
of schemes.

(2) If an education authority inform the Secretary of State that they are aggrieved by his approval with modifications or amendments of the scheme, the Secretary of State shall cause the scheme as so approved to be laid before Parliament as soon as may be thereafter together with the report of any local inquiry which may have been held under section sixty-eight of this Act. If either House of Parliament within the period of forty days beginning with the day on which the scheme is laid before it resolves that the approval of the scheme be annulled, the scheme as so approved shall cease to have effect, but without prejudice to anything previously done thereunder or to the submission and approval with or without modifications and amendments of any new scheme, revised scheme or modification of an existing scheme.

(3) In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

71. If the Secretary of State is satisfied, either on complaint by any person interested or otherwise, that an education authority, the managers of a school or educational establishment, or other persons have failed to discharge any duty imposed on them by or for the purposes of this Act, the Secretary of State may make an order declaring them to be in default in respect of that duty and requiring them before a date stated in the order to discharge that duty. If by the said date the education authority, managers or

Powers to
enforce duty
of education
authorities and
other persons.

PART III other persons have not discharged the duty, one or other of the following steps may be taken to secure the discharge thereof—

- (a) the Secretary of State may make such arrangements as he thinks fit for the discharge of the duty, and all expenses incurred by the Secretary of State in so doing shall be recoverable as a debt due by the authority, managers or other persons to the Secretary of State ; or
- (b) the Court of Session may, on the application of the Lord Advocate, order specific performance of the duty.

**Annual
report.**

72. The Secretary of State shall in every year cause to be laid before both Houses of Parliament a report of his proceedings under this Act during the preceding year.

Advisory Councils

**Advisory
councils.**

73.—(1) It shall be lawful for Her Majesty by Order in Council to establish an advisory council consisting, as to not less than two-thirds of the members, of persons qualified to represent the views of various bodies interested in education, for the purpose of advising the Secretary of State on educational matters, and the Secretary of State shall take into consideration any advice or representation submitted to him by the advisory council.

(2) Provision may be made in the said order for the appointment by the advisory council of special committees to deal with remits on particular subjects made to the council by the Secretary of State, for such special committees to be composed of persons nominated by the Secretary of State of whom some shall be members of the council and the remainder shall be persons having special knowledge or experience of the subjects of the respective remits, and for the reports of special committees to be submitted to the Secretary of State by the advisory council, who shall be entitled in submitting the reports to make such comments thereon as they think fit.

(3) The Secretary of State may, after consultation with education authorities and other persons interested, by order establish a regional advisory council for any branch of education, to advise the education authorities and other managers of schools, junior colleges and other educational establishments in the region as to the development of the branch of education for which the council is appointed.

Finance

PART III

74.—(1) The expenses incurred by the Secretary of State in the exercise of his functions under this Act shall, in so far as they are not met under subsection (2) of section one of the Reorganisation of Offices (Scotland) Act, 1939, be defrayed out of moneys provided by Parliament.

Expenses of
Secretary of
State.

(2) Any sum by which any grants under this Act are increased by reason of the powers and duties conferred and imposed by the provisions of section forty-eight of this Act on education authorities shall be defrayed out of moneys provided by Parliament.

75.—(1) The Secretary of State may, out of moneys provided by Parliament, apply such sums as he thinks necessary to the following purposes, that is to say:—

Application
of moneys
provided by
Parliament
for education
in Scotland.

(a) to defraying the expenses incurred by him in conducting examinations for the award of certificates relating to secondary education ;

(b) to defraying the expenses (other than administrative expenses) incurred by him in carrying Part IV of this Act and the Teachers (Superannuation) Regulations into effect ;

(c) to making payments of grants in aid of retiring allowances to teachers.

(2) The Secretary of State may, out of moneys provided by Parliament, apply such sums as he thinks necessary to making payment to the universities of Scotland, in addition to any sums otherwise payable to them under any Act, of such sums in respect of yearly maintenance expenditure as he, on application by the university courts or any of them, may determine after consideration of the results of such inquiries as he may from time to time direct to be made by a special committee appointed by him :

Provided that each university court shall make an annual report to him as to the mode in which it has applied any sum so granted.

(3) The Secretary of State may, out of moneys provided by Parliament, apply in accordance with regulations made by him such sums as he thinks necessary to the purposes specified in the next following subsection :

Provided that no grant shall be made in respect of any school to which the provisions of subsection (1) of section sixteen of

PART III this Act apply unless the school has been transferred to the education authority.

(4) The purposes referred to in the last foregoing subsection are the following purposes, that is to say—

- (a) to making payment of such sums as the Secretary of State may think necessary for the purposes of promoting the progressive development of education and educational establishments and of promoting educational research ;
- (b) to making payment to central institutions in respect of either capital or maintenance expenditure of such sums as he may determine, being in respect of maintenance sums not less in amount than the sums paid to such institutions respectively for the like purpose in the year ending the thirty-first day of March, nineteen hundred and nine, by county councils and town councils from the amounts received by such councils under sub-paragraph (b) of paragraph (iii) of section two of the Local Taxation (Customs and Excise) Act, 1890 ;
- (c) to making payment of such sums as he may determine to any committee or other body for the training of teachers constituted under section eighty-one of this Act ;
- (d) to making payment of grants in aid of the expenditure of education authorities, not being relevant expenditure for the purposes of Part I of the Local Government and Miscellaneous Financial Provisions (Scotland) Act, 1958 ;
- (e) to making payment of grants in aid of the expenditure of the managers of schools and other educational establishments, and of other persons providing educational services approved by him ;
- (f) to making payment of grants in respect of any residential institution not under the management of an education authority which is shown to his satisfaction to be either—
 - (i) a special school attended largely by pupils whose parents or guardians are resident outwith the education area in which the school is situated, or
 - (ii) an orphanage required for the proper education of pupils destitute of efficient guardianship ;
- (g) to making payment of sums by way of scholarships, bursaries and other allowances to persons attending courses of education ; and

- (h) to providing for any other educational expenditure approved by him. PART III

76.—(1) The Secretary of State may by regulations make provision that any payment which he is required or authorised to make by or under this Act shall be subject to such conditions as may be prescribed in the regulations, and that education authorities and other persons to whom such payments have been made shall comply with such requirements as may be specified in the regulations. Payment of grants to be subject to conditions.

(2) Where the Secretary of State is satisfied that the persons to whom any grant is payable under this Act are, by reason of the provisions of any trust deed or other instrument, unable to fulfil any condition or comply with any requirement imposed under this section, he may, after consultation with them, by order make such modifications of the said provisions as may be necessary for the purpose of enabling the said persons to fulfil that condition or comply with that requirement; and any such trust deed or other instrument shall, during such period as may be specified in the order, have effect subject to any modifications so made.

(3) Nothing in this Act shall affect any grants in aid of university education payable out of moneys provided by Parliament otherwise than in accordance with the provisions of this Act.

77. The annual sums mentioned in the Second Schedule to this Act shall be charged on the Consolidated Fund of the United Kingdom, and the Treasury shall by equal half-yearly payments in every year pay out of that Fund or the growing produce thereof to the education authority of every education area named in the first column of the said Schedule the annual sum which in the second column of that Schedule is placed opposite to the name of such area. Highland schools grant.

Accounts and Audit

78.—(1) It shall be lawful for the Secretary of State to appoint during his pleasure a duly qualified person to be accountant, to perform the duties herein required. Appointment of accountant.

(2) The accountant shall have an office in Edinburgh, and shall be remunerated in such manner as the Secretary of State, with the consent of the Treasury, shall determine.

79. Save as may be otherwise prescribed, it shall be a condition of the payment by the Secretary of State of a grant to the managers of a school or other educational establishment Examination of accounts.

PART III not under the management of an education authority or to other persons providing educational services approved by the Secretary of State that the accounts of the income and expenditure of such managers or persons in respect of such school, educational establishment or service shall be set out according to a form prescribed by the Secretary of State and shall together with the relative vouchers and other documents be submitted for examination and report to the accountant.

Accountant's annual report. **80.—**(1) The accountant shall prepare and submit to the Secretary of State an annual report which shall include abstracts in such detail as the Secretary of State may require of the accounts of—

- (a) all education authorities, including the accounts of educational endowments within the meaning of Part VI of this Act administered by them ;
- (b) all governing bodies of grant-aided schools and other grant-aided educational establishments ;
- (c) all other bodies providing educational services in respect of which they receive grant ;
- (d) all governing bodies of educational endowments whose accounts the accountant is empowered to examine under subsection (4) of section one hundred and twenty-four of this Act ; and
- (e) all bodies of managers of approved schools within the meaning of the Act of 1937 :

Provided that the Secretary of State may direct that abstracts of the accounts of any body or category of bodies falling within the description in paragraph (b) or paragraph (c) may be omitted from the report.

(2) The report of the accountant shall be laid before Parliament as soon as may be after it has been submitted to the Secretary of State.

Teachers

Training of teachers and certificates of competency.

81.—(1) Subject to the provisions of this section, the Secretary of State may award—

- (a) certificates of competency to teach in schools or other educational establishments, and
- (b) documents recognising persons as competent to fulfil the duties of leaders in service in connection with organised cultural, social and physical training and other leisure-time occupation.

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(2) The Secretary of State may by regulations constitute, alter the constitution of, incorporate and dissolve committees and other bodies for the training of teachers and leaders and may prescribe the duties to be performed by the said committees or other bodies, may confer upon them such powers as may seem appropriate, and may make such consequential, ancillary and incidental provisions as may appear to him to be expedient.

(3) Without prejudice to the generality of the provisions of the last foregoing subsection, regulations under this section may—

(a) prescribe the courses of education and training to be provided by the said committees or other bodies, and may delegate to the said committees or other bodies the power to award any of the certificates or documents which the Secretary of State is empowered to award under subsection (1) of this section ;

(b) empower any such committee or other body—

(i) to provide short courses, or to arrange conferences, for teachers, leaders or other persons either by such committee or other body alone or in co-operation with education authorities or other bodies ; and

(ii) to give assistance or advice to education authorities or other bodies in the provision by them of such courses or the arrangement of such conferences as aforesaid ; and

(c) prescribe the types of certificates and documents which may be awarded under this section, the qualifications which such certificates and documents may attest, the conditions to be fulfilled to qualify for the award of such certificates and documents and the circumstances in which the Secretary of State may suspend or withdraw such certificates and documents.

82.—(1) The function of appointing teachers for service in public schools and other educational establishments under the management of an education authority shall be in the education authority, and every appointment shall be during the pleasure of the authority. Appointment of teachers.

(2) No woman shall be disqualified for employment as a teacher in any school, junior college or other educational establishment under the management of an education authority or be dismissed from such employment by reason only of marriage.

PART III
**Salaries of
teachers.**

83.—(1) It shall be the duty of every education authority to pay to the teachers appointed by them salaries in accordance with such scales as may from time to time be prescribed by regulations made by the Secretary of State. An education authority shall not pay additional remuneration to any teacher in respect of services already remunerated in accordance with the prescribed scale.

(2) It shall be lawful for an education authority to pay such salary as they think fit to any teacher to whose salary no prescribed scale is for the time being applicable.

(3) Regulations made under this section may include provisions as to the application of any scales prescribed therein to the salaries of teachers, and may make such consequential, ancillary and incidental provisions as appear to the Secretary of State to be necessary or desirable.

(4) Before making regulations under this section, the Secretary of State shall intimate his intention to make such regulations to any council or other body which include among their objects the making of recommendations with regard to the salaries of teachers, being a council or other body constituted with his approval by agreement between the education authorities and the teachers employed by them, or, failing such agreement, by him, and he shall have regard to any recommendations made by the said council or other body.

**Retiring
allowances.**

84.—(1) An education authority may permit any teacher in a public school or other educational establishment under their management to resign his office upon the condition of receiving a retiring allowance, and may award and pay to such teacher such retiring allowance as they think fit.

(2)—(a) The governing body of any school, administered under a scheme approved in terms of the Act of 1882, or under any Act, or any Provisional Order confirmed by Act of Parliament,

(b) the governing body of a central institution, and

(c) a committee or other body for the training of teachers constituted under section eighty-one of this Act—

shall, notwithstanding anything contained in any scheme, Act, or Order, have the like power as an education authority to award and pay retiring allowances to teachers out of the funds administered by them respectively.

85.—(1) No resolution of an education authority for the dismissal from their service of a certificated teacher other than a teacher who has completed forty-five years of first class service or of first class service and second class service within the meaning of the Teachers (Superannuation) Regulations shall be valid unless—

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Dismissal of
teachers.

- (a) written notice of the motion for his dismissal shall, not less than three weeks before the meeting at which the resolution is adopted, have been sent to the teacher and to each member of the education authority; and
- (b) not less than one half of the members of the education authority are present at the meeting; and
- (c) the resolution is agreed to by two-thirds of the members so present.

(2) Where a county or town council delegate to their education committee the power of dismissing a certificated teacher from their service, the provisions of the last foregoing subsection shall apply with the substitution of the education committee for the education authority.

(3) If at any time within six weeks after the adoption of a resolution to which subsection (1) of this section applies a petition is presented to the Secretary of State by the said teacher, praying for an inquiry into the reasons for the dismissal, the Secretary of State shall make such inquiry as he sees fit, and if as the result of such inquiry he is of opinion that the dismissal is not reasonably justifiable he shall communicate such opinion to the education authority with a view to reconsideration of the resolution, and in the event of the education authority not departing from the resolution within six weeks thereafter may attach to the resolution the condition that the education authority shall pay to the teacher such sum not exceeding one year's salary as the Secretary of State may determine; and any sum so determined may be recovered by the teacher as a debt from the education authority.

(4) Notwithstanding anything in this Act, it shall be lawful for an education authority and for any sub-committee appointed under section one hundred and nine of the Local Government (Scotland) Act, 1947 (which relates to the constitution of sub-committees of the education committee of an education authority for the management of educational establishments under the control of the authority) summarily to suspend any teacher from the exercise of his duties in any school under their management; but such suspension shall not affect the teacher's rights to the salary or other emoluments attached to his office.

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(5) Subsections (1), (3) and (4) of this section shall apply in like manner as they apply to an education authority and certificated teachers in their service to—

- (a) the governing body of any school other than an independent school and the certificated teachers employed therein;
- (b) any committee or other body for the training of teachers constituted under section seventy-seven of the Act of 1946 or section eighty-one of this Act and the certificated teachers employed by them in a school; and
- (c) the managers of an approved school within the meaning of the Act of 1937, and the certificated teachers employed therein.

Administrative and Other Staff

Appointment
of director of
education.

86.—(1) The education authority shall employ a director of education, who shall be the chief education officer of the authority, and, on a vacancy occurring in the office, shall appoint a suitable person to fill the vacancy. The director of education shall not, except with the approval of the Secretary of State, hold any other office or appointment under the education authority whether in its capacity as such authority or in its capacity as a county or town council.

(2) The director of education shall hold office during the pleasure of the education authority, so, however, that he shall not be removed from office except by a resolution of the authority passed by not less than two-thirds of the members present at a meeting of the authority of which written notice stating that the removal from office of the director of education is to be considered shall have been given to each member of the authority and to the director at least three weeks before the meeting.

Pensions, etc.
for education
authority
officers other
than teachers.

87. Nothing in this Act shall render it illegal for an education authority to grant pensions, gratuities or retiring allowances to officers and servants of the education authority, other than teachers, who are incapacitated by age or infirmity.

Local Administration

Minutes of
education
committee
meetings.

88. The minutes of proceedings of the education committee of an education authority shall be open to the inspection of any local government elector for the area at all reasonable hours on payment of a fee not exceeding one shilling, and any such local government elector may make a copy thereof or an extract therefrom.

89. The estimates (including supplementary estimates) of capital and revenue expenditure relating to education shall be in the prescribed form, and approval by the education authority of those estimates and authorisation of the expenditure included therein shall be sufficient authority to the education committee to incur, on purposes falling within the description of any head in the prescribed form, expenditure not exceeding in amount the total under that head in the estimates so approved. Savings under one head may not be used to defray expenditure under another head without the consent of the education authority.

PART III

Education
estimates.

90. Where an education authority require to incur expenditure in the exercise of any of the powers conferred upon them by subsection (1) of section twenty of this Act, or in purchasing any moveable property, or in making any other payment, and the authority are of opinion that the expenditure cannot conveniently be met out of revenue, they shall report the position to the Secretary of State, and if he considers that by reason of—

Borrowing
powers.

- (a) the permanent character of the works involved,
- (b) the length of time for which the moveable property may be expected to remain serviceable, or
- (c) the purpose for which such other payment is to be made,

the expenditure may properly be met by borrowing, and that the repayment of the loan should be spread over a term of years, the authority may borrow money for the purpose.

91.—(1) It shall be lawful for an education authority to pay such reasonable expenses incidental to the proper discharge of their duties as may be sanctioned by regulations made by the Secretary of State.

Incidental
expenses of
education
authorities.

(2) Without prejudice to the generality of the last foregoing subsection the expenses which may be authorised under the said subsection may include—

- (a) contributions to any association of education authorities concerned in the consideration of educational questions;
- (b) travelling and other expenses necessarily incurred by a teacher or other officer of the education authority with the approval of that authority in the performance of, or for the purpose of, his functions as a teacher or officer, as the case may be; and
- (c) expenses of removal and of the temporary accommodation of any such teacher or officer ordinarily resident in the area of another education authority who has been appointed to the service of the authority concerned.

PART III

Education
authorities
may receive
and administer
bequests.

92. Every education authority shall be at liberty to accept any bequest or gift of property or funds for behoof of any school or other educational establishment under their management, whether generally or for the promotion of any particular branch or branches of education or instruction, or for increasing the income of any teacher, and it shall be the duty of the authority to administer such property, funds or money according to the wishes and intentions of the donors, and in such manner as to raise the standard of education and otherwise increase the educational efficiency of the school or other educational establishment intended to be benefited.

Funds for
behoof of
public schools
etc., to be
transferred to
education
authorities.

93.—(1) Where property or money has been or shall be vested in any persons as trustees for behoof of a public school or other educational establishment under the management of an education authority, or for the promotion of any branch of education in such school or educational establishment, or to increase the income of any teacher therein, the free income of such property or money shall be accounted for and paid to the education authority, and shall be applied and administered by the education authority according to the trusts attaching thereto.

(2) It shall be lawful for the education authority, with the approval of the Secretary of State, to vary or depart from the said trusts, with a view to increasing the efficiency of the school or educational establishment by raising the standard of education therein or by other means.

Education
authorities
to administer
revenues of
endowments
applicable to
bursaries.

94. When any part of the annual revenue administered under a scheme approved in terms of the Act of 1882, or under any Provisional Order confirmed by Act of Parliament, is applicable to the granting of bursaries, or to the payment of fees, such part of the revenue, if not on the average exceeding fifty pounds per annum, shall be paid over in each year by the governing body of the endowment to the education authority of the education area, to be applied to the granting of bursaries in conformity with the regulations made by the Secretary of State under section forty-nine of this Act, and, if on the average exceeding fifty pounds but not exceeding one thousand pounds per annum, shall, notwithstanding any provision of the scheme regulating the number, amount, conditions of tenure or method of award of the bursaries, be applied by the governing body to the granting of bursaries in conformity with the said regulations. Any question arising under this section as to the interpretation of the said regulations, or as to what revenues from an endowment are applicable to the granting of bursaries or to the payment of fees, shall be determined by the Secretary of State:

Provided that—

- (i) when under the scheme a bursary is reserved for the benefit of any particular parish or district, or for any

PART III

pecially privileged class of persons, or is restricted in tenure to any particular school, college or university, and when duly qualified applicants therefor are forthcoming, the same reservation and the restriction shall hold good with regard to the said bursary by whomsoever granted, notwithstanding anything that may be contained in the said regulations, to such extent as funds derived from the endowment may be available; and

- (ii) when the governing body of any such endowment are of opinion that this section is inapplicable or is unfair in its application in the case of the endowment administered by them, they may represent their views to the Secretary of State, who, after making such inquiry as he may deem fit, may make an order either exempting the revenue of the said endowment from the provisions of the section or confirming the application of the section to such revenue.

95. The amount of every property or fund held by an education authority on a separate trust shall be kept separate. Trust funds to be kept separate.

96. Every education authority shall make such reports and returns and give such information to the Secretary of State as he may from time to time require. Reports by education authorities.

97.—(1) Every registrar of births, deaths, and marriages shall make to an education authority such returns of particulars with regard to the births and deaths of children registered by him as may be required by the authority with the approval of the Registrar-General of Births, Deaths and Marriages in Scotland. Returns by registrars of births, deaths, and marriages to education authorities.

(2) The education authority by whom any return is required under the foregoing subsection shall provide the form on which it is to be made and shall pay to the registrar (a) such fee as may be agreed upon between them not exceeding twopence for every birth or death included in the return; and (b) the cost of transmission thereof by post.

Procedure and Evidence

98. Any notice or other document required or authorised by this Act to be served on or sent to any person may be served or sent— Service of notices.

(a) by delivering it to him personally; or

(b) by leaving it for him at his dwelling-place or place of business with some person resident or employed therein

PART III

or, if he has no known dwelling-place or place of business, at any other place in which he may at the time be resident, or, in the case of a master of or seaman or person employed in any ship or vessel, in the hands of a person on board thereof and connected therewith, or in the case of a company, association or incorporation, at their ordinary place of business in the hands of a partner, director, secretary or other official thereof, or in the case of a body of trustees in the hands of one of their number or of their known solicitor; or

- (c) by sending it in a prepaid registered letter or by the recorded delivery service addressed to him at his dwelling-place or last known place of residence, or in the case of a company, association or incorporation at their ordinary place of business, or in the case of a body of trustees at the dwelling-place or last known place of residence of one of their number or at the office of their known solicitor.

Certificates
of birth.

99.—(1) Where the age of any person is required to be ascertained or proved for the purposes of this Act or of any enactment relating to the employment of children or young persons, the registrar of births, deaths and marriages having the custody of the register of births containing the entry relating to the birth of that person shall, upon being presented by any person with a written requisition in such form and containing such particulars as may be prescribed and upon payment of a fee of sixpence, supply that person with a copy of the entry certified under his hand.

(2) Every registrar shall, upon being requested so to do, supply free of charge a form of requisition for the purposes of this section.

Presumption
of age.

100. Where in any proceedings under this Act the prosecutor alleges that any person whose age is material to the proceedings is under, of, or over, any age, then, unless the contrary is proved, the court may presume that person to be under, of, or over, the age alleged.

Admissibility
of documents.

101. In any legal proceedings any document purporting to be—

- (a) a document issued by an education authority, and to be signed by the clerk of that authority or by the director of education of that authority or by any other officer of the authority authorised to sign it;
- (b) an extract from the minutes of the proceedings of an education authority or of any committee or sub-committee thereof, and to be signed by the chairman

of the authority or of the committee or sub-committee or by the officer having the custody of the minutes ;

PART III

- (c) a certificate giving particulars of the attendance of a pupil at a school or junior college, and to be signed by the head teacher of the school or college ;
- (d) a certificate issued by a medical officer of an education authority, and to be signed by such an officer ;
- (e) a certificate issued by an education authority that an attendance order has been made by the authority and a copy thereof served upon the parent of the child to whom the order relates, and to be signed by the clerk to the authority or by the director of education or by any other officer authorised to sign it ; or
- (f) a certificate, in the prescribed form, of exemption from attendance at a junior college, and to be authenticated in the prescribed manner ;

shall be received in evidence and shall, unless the contrary is proved, be deemed to be the document which it purports to be, and to have been signed by the person by whom it purports to have been signed, without proof of his identity, signature or official capacity, and any such extract or certificate as is mentioned in paragraph (b) (c) (d) (e) or (f) of this section shall, in the absence of evidence to the contrary, be sufficient evidence of the matters therein stated.

PART IV

SUPERANNUATION OF TEACHERS

102.—(1) The Secretary of State may make regulations providing for the superannuation of teachers. The said regulations (hereinafter referred to as “ the Teachers (Superannuation) Regulations ”) shall include regulations to give effect to the provisions set forth in Part I of the Third Schedule to this Act, and may include regulations to give effect to the provisions set forth in Part II of the said Schedule. The regulations set forth in Part III of the said Schedule shall be incorporated at the appropriate places in the said regulations.

Teachers
(Superannua-
tion) Regula-
tions.

PART IV

(2) The Teachers (Superannuation) Regulations shall prescribe the date upon which the regulations are to come into operation, and different dates may be prescribed for different parts of the regulations, and any date so prescribed may be a date earlier than the date upon which the regulations are made, so, however, that so much of any regulations as provides that any provision thereof is to have effect from a date prior to the making of the regulations shall not place any teacher affected by them in a worse position than he would have been if the regulations had been made to have effect only as from the date of the making thereof.

(3) The Teachers (Superannuation) Regulations including the regulations set forth in Part III of the Third Schedule to this Act may be amended or revoked by regulations made under this section.

Application
of Teachers
(Superannua-
tion) Regula-
tions.

103.—(1) Subject to the provisions of subsections (2) to (4) of this section the Teachers (Superannuation) Regulations shall apply to the teachers prescribed therein including—

- (a) every teacher to whom the superannuation scheme made in pursuance of section fourteen of the Act of 1908 applied on the twenty-ninth day of May, nineteen hundred and nineteen ;
- (b) every teacher who was in first class service within the meaning of the Teachers Superannuation Scheme on the first day of April, nineteen hundred and twenty-six ;
- (c) every teacher who has been in such first class service after the last mentioned date ;
- (d) every teacher who having been in such first class service before the last mentioned date has been employed on or after that date in such employment as may be prescribed ;
- (e) every teacher who was in first class service within the meaning of the Teachers (Superannuation) Regulations on the fifteenth day of March, nineteen hundred and fifty-seven ;
- (f) every teacher who has been or shall be in first class service after the last mentioned date ; and
- (g) every teacher who, having been in first class service before the last mentioned date, has been or shall be employed after that date in such employment as may be prescribed.

(2) Where a teacher—

PART IV

- (a) who was in first class service within the meaning of the Teachers Superannuation Scheme on the first day of April, nineteen hundred and twenty-six, or
- (b) who, having discontinued such service before the said day, returned to such service after the said day but before the fifteenth day of March, nineteen hundred and fifty-seven, or returned to first class service within the meaning of the Teachers (Superannuation) Regulations on or after the said fifteenth day of March,

gave relevant notice as described in the next following subsection to the Secretary of State within three months of the said first day of April, or gave such notice within three months of his return to first class service within the meaning of the Teachers Superannuation Scheme or gave or gives such notice within three months of his return to first class service within the meaning of the Teachers (Superannuation) Regulations, as the case may be, then Part III of the Teachers (Superannuation) (Scotland) Regulations, 1957, and the provisions of Parts I, II and V applicable thereto or the provisions of the Teachers (Superannuation) Regulations made under section one hundred and two of this Act corresponding to the said Part III and the last mentioned provisions of the Teachers (Superannuation) (Scotland) Regulations, 1957, as the case may be, shall apply to that teacher:

Provided that the teacher shall, notwithstanding the giving of the said notice, be entitled to elect that any provision included in the Teachers (Superannuation) Regulations by virtue of the Teachers (Superannuation) Act, 1956, or of the provisions of this Act cited in the Fourth Schedule to this Act shall apply to him.

(3) Relevant notice for the purposes of the last foregoing subsection in relation to any teacher means notice that he elects—

- (i) that the Teachers Superannuation Scheme as modified by amendments taking effect after the said first day of April shall not apply to him, or
- (ii) that Part IV of the Teachers Superannuation Scheme, 1952, and the provisions of Parts I, II and V applicable thereto shall not apply to him, or
- (iii) that Part IV of the Teachers (Superannuation) (Scotland) Regulations, 1957, and the provisions of Parts I, II and V applicable thereto shall not apply to him, or

PART IV

- (iv) that the provisions of the Teachers (Superannuation) Regulations made under section one hundred and two of this Act corresponding to those referred to in paragraph (iii) of this subsection shall not apply to him.

(4) In any case where the special circumstances seem to the Secretary of State to justify an extension of the period of three months under subsection (2) of this section, he may grant such extension as he thinks fit.

Power of governing bodies to fulfil conditions.

104. Notwithstanding any provisions regulating the trusts or management of a school (including an approved school) or other educational establishment, the governing body of such school or educational establishment shall have power to fulfil any conditions which may require to be fulfilled in order that employment as a teacher in such school or educational establishment may be recorded as first class service for the purposes of the Teachers (Superannuation) Regulations.

Contributions towards benefits under Teachers (Superannuation) Regulations.

105.—(1) In respect of every teacher employed in first class service the following contributions shall be paid to the Secretary of State towards the cost of providing benefits under the Teachers (Superannuation) Regulations, that is to say:—

- (a) an amount to be paid by the teacher equal to six per cent. of his salary for the time being; and
- (b) an amount to be paid by the education authority, governing body or other body of managers by whom the teacher is employed, equal to six per cent. of the salary for the time being of the teacher:

Provided that—

- (i) no contribution shall be payable in respect of a teacher after he has completed forty-five years of employment in first class service or in first class service and second class service for the purpose of calculating the amount of the annual allowance payable to him;
- (ii) where a teacher suffers a reduction in his salary while continuing to be employed, or upon being re-employed, in first class service, or upon being employed in first class service after employment in second class service, the teacher may, with the approval of the Secretary of State, elect that for the purposes of this Act and of the Teachers (Superannuation) Regulations his salary during any period while he is employed in first class service (not having withdrawn his election by a notice

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in writing given to the Secretary of State) shall be taken to be the salary at which he was last employed before the reduction or at which he is for the time being employed, whichever is the higher; and

- (iii) where a teacher by reason of sickness is receiving part only of his salary, the amount of any contribution payable in respect of him shall be calculated as if that part were his salary, or, during any period to which the last foregoing paragraph of this proviso applies, as if he were receiving a proportionate part of the salary which is taken to be his salary by virtue of the said paragraph.

(2) Where the Government Actuary's report of any inquiry made under subsection (2) of section one hundred and seven of this Act specifies in accordance with the provisions of subsection (3) of the said section a rate at which further contributions supplementary to those payable under the last foregoing subsection are required, the contributions to be paid by the employer under the last foregoing subsection in respect of any period after the expiration of the accounting period in which the report is made, and before the expiration of the accounting period in which the next subsequent report is made in pursuance of subsection (2) of the said section, shall include supplementary contributions calculated in relation to the salary for the time being of the teacher at the rate specified in the report.

(3) Where the teacher is one to whom the provisions of Regulation 22 or of Regulation 42 of the Teachers (Superannuation) (Scotland) Regulations, 1957 (which provisions relate to the reduction of pensions in consequence of national insurance) or corresponding provisions of the Teachers (Superannuation) Regulations made under section one hundred and two of this Act apply, the amounts payable by the teacher and by his employer under subsection (1) of this section after the date on which the said provisions first applied to the teacher shall, unless the Teachers (Superannuation) Regulations otherwise require, each be reduced by an amount calculated at the rate of two pounds eight shillings a year in the case of contributions in respect of a teacher who is a man and at the rate of two pounds nineteen shillings a year in the case of contributions in respect of a teacher who is a woman.

(4) The amounts payable by the teacher and his employer under subsection (1) of this section, as reduced under the last foregoing subsection if appropriate, shall in respect of any period of service which is participating employment each be reduced by amounts calculated in accordance with the annual rate specified in the Fifth Schedule to this Act.

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(5) The payments due under this section shall be collected by the Secretary of State from the education authority, governing body or other body of managers either directly or by deduction from any grants that may accrue under any enactment, or under any regulations made by the Secretary of State, to the body or education authority, or, in the case of an education authority which is a joint county council, to any constituent council thereof, and it shall be lawful for each education authority, governing body or other body of managers to deduct from the salary of every teacher in their employment the payment due by that teacher under this section:

Provided that, where any payment due by a teacher has not been so deducted and collected, the same (together with compound interest thereon from the date when the payment became due, calculated at four per cent. per annum with yearly rests) shall be recoverable by the Secretary of State either directly from the teacher or by deduction from any sum payable to him or to his personal representatives under the Teachers (Superannuation) Regulations.

(6) For the purposes of this section the salary of a teacher shall be calculated in accordance with the Teachers (Superannuation) Regulations or rules made thereunder.

(7) All sums collected or recovered by the Secretary of State under this section shall be paid into the Exchequer.

(8) The power under subsection (4) of section sixty-nine of the National Insurance Act, 1946, to modify enactments shall extend to this section.

Increase of
annual
allowances.

106. For the purpose of determining the amount of the annual allowance granted under the Teachers (Superannuation) Regulations to any person whose service included service during the whole or any part of the period beginning on the first day of October, nineteen hundred and thirty-one, and ending with the thirtieth day of June, nineteen hundred and thirty-five, there shall be ascertained the amount of the annual allowance which would have been payable to him if, during that period, no reduction had been made in his salary in pursuance of Article 1 of the National Economy (Education) (Scotland) Order, 1931, or otherwise on account of the national economic conditions by reason whereof that Order was made; and the annual allowance accruing to him shall be increased by such amount, if any, as is necessary to secure that the allowance shall not be less than ninety-eight per cent. of the amount so ascertained.

Account and
actuarial
inquiries.

107.—(1) There shall be kept in accordance with the directions contained in the Sixth Schedule to this Act an account (in this Part of this Act referred to as "the teachers superannuation account") in such form and prepared in such manner as may be determined by the Secretary of State, after consultation with

the Treasury, of all revenue and expenditure under Part IV of the Act of 1946, and under this Part of this Act. There shall be included in the said revenue or expenditure any sums which are under the said Schedule to be deemed respectively to be revenue or expenditure and any amounts which for the purposes of any provisions relating to accounts and actuarial investigations contained in regulations made by the Secretary of State under subsection (1) of section sixty-six of the National Health Service (Scotland) Act, 1947, are treated as if they were payable by or to the Secretary of State.

PART IV

(2) The Secretary of State shall cause an actuarial inquiry to be made by the Government Actuary at the end of the accounting period ending on the thirty-first day of March, nineteen hundred and sixty-one and of every fifth subsequent accounting period for the purpose of determining whether, on the basis of the teachers superannuation account, the contributions payable under this Part of this Act are sufficient, or more than sufficient or less than sufficient, to support the expenditure required to be included in that account so far as attributable to service on or after the first day of June, nineteen hundred and twenty-two.

(3) If on the making of an inquiry in pursuance of the last foregoing subsection it appears that the value at the end of the period for which the inquiry is made of the expenditure attributable to service on or after the first day of June, nineteen hundred and twenty-two, required to be included in the teachers superannuation account after the end of that period in respect of teachers who then were, or had previously been, employed in service exceeds the aggregate of—

- (a) the value at the end of that period of the contributions payable after the end of that period in respect of such teachers and of the sums falling to be credited to the teachers superannuation account after the end of that period in accordance with sub-paragraphs (3) and (5) of paragraph 2 of the said Sixth Schedule ; and
- (b) the balance of revenue over expenditure remaining in the said account at the end of that period,

the Government Actuary's report of the inquiry shall specify the rate per cent. (being a rate of one quarter of one per cent. or of a multiple of one quarter of one per cent.) at which further contributions supplementary to those payable under subsection (1) of section one hundred and five of this Act are required in order to make good the deficiency by the expiration of the period of forty years beginning with the accounting period next after that in which the report by the Government Actuary is made.

PART IV

(4) The Secretary of State shall cause a report of every inquiry under this section to be laid before both Houses of Parliament.

**Payment of
deferred
annuities.**

108. All deferred annuities payable in respect of Scottish contributions to the deferred annuity fund established under the Elementary School Teachers (Superannuation) Act, 1898, shall be paid by the Secretary of State; and any sums required by the Secretary of State for making payments under this section shall be charged on and issued out of the Consolidated Fund.

**Functions of
Government
Actuary.**

109. Any functions of the Government Actuary under this Act may be performed by the Deputy Government Actuary.

**Interpretation
of Part IV.**

110.—(1) In this Part of, and in the Third Schedule to, this Act, unless the context otherwise requires—

- (a) "Accounting period" has the meaning assigned to it by paragraph 1 of the Sixth Schedule to this Act;
- (b) "Act of 1922" means the Education (Scotland) (Superannuation) Act, 1922;
- (c) "Act of 1925" means the Education (Scotland) (Superannuation) Act, 1925;
- (d) "Act of 1937" means the Teachers (Superannuation) Act, 1937;
- (e) "Benefit" includes any retiring allowance, additional annual payment or lump sum, gratuity, death gratuity or return of contributions under the superannuation scheme framed under the Act of 1908 or the Teachers Superannuation Scheme or the Teachers (Superannuation) Regulations as the case may be;
- (f) "Her Majesty's dominions" includes any territory which is under Her Majesty's protection or in respect of which a mandate is being exercised by the Government of any part of Her Majesty's dominions;
- (g) "Participating employment" means any employment in respect of which a person is liable to pay graduated contributions under the National Insurance Act, 1959, or would be liable to pay such contributions if his remuneration exceeded the amount first mentioned in paragraph (b) of subsection (1) of section one of that Act;
- (h) "Pensionable salary" in relation to a teacher means the amount representing the average salary of the teacher during such number of years as may be prescribed, being years immediately before—
 - (i) the day on which he retired, or
 - (ii) if he served after completing forty-five years of first class service or of first class service and second class service for the purpose of calculating

the amount of the annual allowance payable to him, the day upon which he completed the said forty-five years of first class service or of first class service and second class service:

PART IV

Provided that—

(i) if under paragraph (ii) of the proviso to subsection (1) of section one hundred and five of this Act the contributions in respect of any teacher are during any part of the prescribed period calculated upon a higher salary than the salary he is actually receiving, the said higher salary shall as respects that part of the prescribed period be taken into account in calculating the average salary of the teacher; and

(ii) if during any part of the prescribed period a teacher by reason of sickness receives part only of his salary, the salary which he would but for the said reason have received shall as respects that part of the said period be taken into account in calculating the average salary of the teacher; and

(i) "Prescribed" means prescribed by the Teachers (Superannuation) Regulations or by rules made under the said regulations;

(2) Other expressions not specially defined in this Act shall have the meanings respectively assigned thereto in the Teachers (Superannuation) Regulations.

(3) A teacher shall be deemed to be in receipt of a retiring allowance if the Secretary of State, after application made, has given direction for the payment of the allowance.

PART V

INDEPENDENT SCHOOLS

111.—(1) The Secretary of State shall appoint one of his officers to be the Registrar of Independent Schools in Scotland (hereinafter in this Part of this Act referred to as "the Registrar"), and it shall be the duty of the Registrar to keep a register of independent schools, which shall be open to public inspection at all reasonable times, and the Registrar shall register therein—

Registration
of independent
schools.

(a) where the proprietor of an independent school makes application for the purpose and furnishes the information required by regulations made under this section, such of the particulars prescribed by regulations so made as the Secretary of State may direct, and

PART V

- (b) every order of an Independent Schools Tribunal or of the Secretary of State imposing or removing any disqualification under Part V of the Act of 1946 or this Part of this Act:

Provided that—

- (i) no independent school shall be registered if, by virtue of an order made under the provisions hereinafter contained, the proprietor is disqualified from being the proprietor of an independent school, or if the school premises are disqualified from being used as a school, or if the school premises are used or proposed to be used for any purpose for which they are disqualified by virtue of any such order; and
- (ii) the registration of any school shall be provisional only until the Secretary of State, after the school has been inspected on his behalf under section sixty-seven of this Act, gives notice to the proprietor that the registration is final.

(2) If any person—

- (a) conducts an independent school which is not a registered school or a provisionally registered school, or
- (b) being the proprietor of an independent school does any act calculated to lead to the belief that the school is a registered school while it is a provisionally registered school,

he shall be liable on summary conviction to a fine not exceeding twenty pounds or in the case of a second or subsequent conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

(3) The Secretary of State shall make regulations—

- (a) prescribing the particulars information as to which is to be furnished to the Registrar by the proprietors of independent schools and the manner in which it shall be so furnished;
- (b) requiring the notification to the Registrar of any changes in such particulars;
- (c) prescribing the circumstances in which the name of a school may be deleted from the register if the Registrar is unable to obtain sufficient information of such changes; and
- (d) dealing with such incidental matters as the Secretary of State may deem expedient.

112.—(1) If at any time the Secretary of State is satisfied that any registered or provisionally registered school is objectionable PART V
Complaints.
upon all or any of the following grounds—

- (a) that efficient and suitable instruction is not being provided at the school, having regard to the ages and sex of the pupils attending thereat ;
- (b) that the school premises or any parts thereof are unsuitable for a school ;
- (c) that the accommodation provided at the school premises is inadequate or unsuitable, having regard to the number, ages and sex of the pupils attending the school ;
- (d) that the proprietor of the school or any teacher employed therein is not a proper person to be the proprietor of an independent school or to be a teacher in any school, as the case may be,

the Secretary of State shall serve upon the proprietor of the school a notice of complaint stating the grounds of complaint together with full particulars of the matters complained of, and, except in so far as any of such matters are stated in the notice to be in the opinion of the Secretary of State irremediable, the notice shall specify the measures necessary in the opinion of the Secretary of State to remedy the matters complained of, and shall specify the time, not being less than six months after the service of the notice, within which such measures are thereby required to be taken.

(2) If it is alleged by any notice of complaint served under this section that any person employed as a teacher at the school is not a proper person to be a teacher in any school, that person shall be named in the notice and the particulars contained in the notice shall specify the grounds of the allegation, and a copy of the notice shall be served upon him at the same time as the notice is served.

(3) Every notice of complaint served under this section shall limit the time, not being less than one month after the service of the notice, within which the complaint may be referred to an Independent Schools Tribunal under the provisions hereinafter contained.

113.—(1) Any person upon whom a notice of complaint or Determination a copy of such a notice is served under the last foregoing section of complaints. may, within the time limited by the notice, appeal therefrom by referring the complaint, in such manner as may be provided by rules made under Part V of the Act of 1946 or this Part of this Act, to an Independent Schools Tribunal constituted in accordance with the provisions of the Seventh Schedule to this Act.

PART V

(2) Upon a complaint being referred to an Independent Schools Tribunal the tribunal shall, after affording to all parties concerned an opportunity of being heard, and after considering such evidence as may be tendered by them or on their behalf, have power—

- (a) to order that the complaint be annulled ;
- (b) to order that the school in respect of which the notice of complaint was served be struck off the register ;
- (c) to order that the school be so struck off unless the requirements of the notice, with such modifications, if any, as may be specified in the order, are complied with to the satisfaction of the Secretary of State before the expiration of such time as may be specified in the order :

Provided that where the Secretary of State intimates that he is not satisfied that such requirements are complied with, the person upon whom the notice of complaint or a copy thereof has been served may, within fourteen days after such intimation, refer the matter to the tribunal, who shall have power to dispose of the reference in such manner as shall appear to them to be just ;

- (d) if satisfied that the premises alleged by the notice of complaint to be unsuitable for use as a school or any part of such premises are in fact unsuitable for such use, by order to disqualify the premises or part from being so used, or, if satisfied that the accommodation provided at the school premises or any part thereof is inadequate or unsuitable having regard to the number, ages and sex of the pupils attending the school, by order to disqualify the premises or the said part, as the case may be, from being used as a school or part of a school for pupils exceeding such number or of such age or sex as may be specified in the order ;
- (e) if satisfied that any person alleged by the notice of complaint to be a person who is not proper to be the proprietor of an independent school or to be a teacher in any school is in fact such a person, by order to disqualify that person from being the proprietor of any independent school or from being a teacher in any school, as the case may be.

(3) Where a notice of complaint has been served under Part V of the Act of 1946 or this Part of this Act on the proprietor of any school and the complaint is not referred by him to an Independent Schools Tribunal within the time limited in that behalf by the notice, the Secretary of State shall have power to make

any order which such a tribunal would have had power to make if the complaint had been so referred: **PART V**

Provided that—

- (i) if the Secretary of State makes any such order as is mentioned in paragraph (c) of the last foregoing subsection, the proviso to the said paragraph shall apply in like manner as if the order had been made by the tribunal; and
- (ii) if it was alleged by the notice of complaint that any person employed as a teacher at the school is not a proper person to be a teacher in any school and that person has, within the time limited in that behalf by the copy of the notice served upon him, referred the complaint to an Independent Schools Tribunal, the Secretary of State shall not have power to make an order requiring his dismissal or disqualifying him from being a teacher in any school.

(4) Where by virtue of an order made by an Independent Schools Tribunal or by the Secretary of State any person is disqualified either from being the proprietor of an independent school or from being a teacher in any school, then, unless the order otherwise directs, that person shall, by virtue of the order, be disqualified both from being the proprietor of an independent school and from being a teacher in any school.

114.—(1) Where an order is made by the Secretary of State or by an Independent Schools Tribunal, directing that any school be struck off the register, the Registrar shall as from the date on which the direction takes effect strike the school off the register. **Enforcement of orders.**

(2) If any person uses any premises for purposes for which they are disqualified by virtue of any order made under this Part of this Act, that person shall be liable on summary conviction to a fine not exceeding twenty pounds or in the case of a second or subsequent conviction, whether in respect of the same or of other premises, to a fine not exceeding fifty pounds, or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

(3) If any person acts as the proprietor of an independent school, or accepts or endeavours to obtain employment as a teacher in any school, while he is disqualified from so acting or from being so employed by any such order as aforesaid, he shall be liable on summary conviction to a fine not exceeding twenty pounds, or in the case of a second or subsequent conviction to a fine not exceeding fifty pounds, or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

PART V

(4) For the purposes of the foregoing provisions of this Part of this Act, a person who is disqualified by an order made under Part III of the Education Act, 1944, from being the proprietor of an independent school or from being a teacher in any school shall be deemed to be so disqualified by an order made under this Part of this Act.

**Removal of
disqualifica-
tions.**

115.—(1) If on the application of any person the Secretary of State is satisfied that any disqualification imposed by an order made under Part V of the Act of 1946 or this Part of this Act is, by reason of any change of circumstances, no longer necessary, the Secretary of State shall by order remove the disqualification.

(2) Any person who is aggrieved by the refusal of the Secretary of State to remove a disqualification so imposed may, within such time after the refusal has been communicated to him as may be limited by rules made under Part V of the Act of 1946 or this Part of this Act, appeal to an Independent Schools Tribunal, who may or may not order the removal of the disqualification, as they think fit.

**Proceedings
before
Independent
Schools
Tribunals and
matters
relating
thereto.**

116.—(1) The Lord President of the Court of Session may, with the concurrence of the Secretary of State, make rules as to the manner of making appeals to Independent Schools Tribunals and as to proceedings before such tribunals and matters incidental to or consequential on such proceedings; and, in particular, such rules may make provision requiring any such tribunal to sit at such places as may be directed in accordance with the rules, and may make provision as to appearance before such tribunals by counsel or solicitor and as to the payment to members of such tribunals, as part of the expenses of the Secretary of State under this Act, of such remuneration and allowances as may, with the consent of the Treasury, be provided by the rules.

(2) Rules under the last foregoing subsection may make provision for reference to the Court of Session, by way of stated case, of any question of law arising in such proceedings.

(3) An Independent Schools Tribunal shall have power to make such orders as to expenses, and as to such other consequential or incidental matters as appear to the tribunal to be necessary for giving effect to any order made by the tribunal, as the tribunal considers to be just, and any such order as to expenses may be enforced as if it were a recorded decree arbitral.

(4) The power to make rules under this section shall be exercisable by statutory instrument; and the Statutory Instruments Act, 1946, shall apply to a statutory instrument containing rules made under this section in like manner as if the Lord President of the Court of Session were a Minister of the Crown.

PART VI

REORGANISATION OF ENDOWMENTS

117.—(1) The Secretary of State shall appoint one of his **Register of** officers to be Registrar of Educational Endowments, and it shall **educational** be the duty of the Registrar to keep a register of all educational **endowments.** endowments, which shall contain such information as may be prescribed, and shall be open to public inspection at all reasonable times.

(2) Except as hereinafter provided, it shall be the duty of the governing body of every educational endowment within twelve months after the date upon which the deed creating the endowment came into operation, to furnish the Registrar with such information about the endowment as may be prescribed by regulations made by the Secretary of State.

(3) This section shall not apply to a university endowment, to a theological endowment, or to the Carnegie Trust, and regulations made under this section may exempt any endowment or class of endowments from any of the provisions of this section.

118.—(1) Subject to the provisions hereinafter contained, the **Schemes for** Secretary of State shall have power to prepare draft schemes **reorganisation** for the future government and management of educational **of educational** endowments, which schemes may provide— **endowments.**

- (a) for altering the purposes to which such endowments are applied or applicable and the conditions and provisions regarding such application ;
- (b) for the application of the capital or income of such endowments to such educational purposes, mental or physical, moral or social, as the Secretary of State thinks fit having regard to the public interest and to existing conditions, social and educational: Provided always that the capital of any such endowment shall not be expended except on a purpose to which capital may properly be devoted ;
- (c) for grouping, amalgamating, combining or dividing any such endowments ;
- (d) for altering the constitution of the governing body of any such endowment, or uniting two or more existing governing bodies or establishing new governing bodies with such powers as shall seem necessary, and for incorporating any governing body, whether old or new, and for dissolving any governing body whose endowment is transferred to another governing body ; and
- (e) for altering the powers as to the investment of the funds of any such endowment.

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(2) It shall be the duty of the Secretary of State in reorganising any endowment in pursuance of the powers conferred by this Part of this Act to have special regard—

(a) to the spirit of the intention of the founders as embodied either—

(i) in the original deed constituting the endowment where it is still the governing instrument, or

(ii) in the scheme approved under any Act, or in any Provisional Order affecting the endowment ;

(b) to the interest of the locality to which the endowment belongs ;

(c) to the possibility of effecting economy in administration by the grouping, amalgamation or combination of any two or more endowments ; and

(d) to the need for continuing the provision from endowments of competitive bursaries at universities, central institutions, colleges of education or other educational institutions of a similar character.

(3) In every scheme which abolishes or modifies any privileges or educational advantages to which a particular class of persons is entitled, whether as inhabitants of a particular area or as belonging to a particular class in life or otherwise, the Secretary of State shall have regard to the educational interests of such class of persons :

Provided always that, where the governing instrument of any educational endowment has expressly provided for the education of children belonging to the poorer classes, either generally or within a particular area, or otherwise for their benefit, such endowment for such education or otherwise for their benefit shall continue, so far as requisite, to be applied for the benefit of such children.

(4) The powers of the Secretary of State under this section shall not extend—

(a) to a university endowment, or

(b) to the Carnegie Trust, or

(c) to a theological endowment, or

(d) to a new endowment :

Provided that if the founder or the governing body of a theological endowment or of a new endowment shall intimate in writing to the Secretary of State his or their consent to the endowment being dealt with under this section, the said powers shall extend to the endowment.

(5) If the founder or the governing body or the university court of any university, with respect to a university endowment, or the Carnegie Trustees with respect to the Carnegie

Trust, shall intimate in writing to the Scottish Universities Committee of the Privy Council their consent to the endowment or the Trust being dealt with under this section, the Scottish Universities Committee shall have the like powers and duties with regard to the endowment or the Trust as are conferred by this Part of this Act upon the Secretary of State with regard to an educational endowment; so, however, that subsection (7) (in so far as it relates to the presentation of a petition to the Court of Session), paragraph (a) of subsection (8) and subsection (9) of section one hundred and twenty-five and subsection (5) of section one hundred and twenty-seven of this Act shall not apply.

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119.—(1) Where it appears to the Secretary of State to be desirable that a scheme under this Part of this Act should make provision for the sale of any land forming an endowment or part thereof and for the application of the proceeds of sale in accordance with the provisions of the scheme, but that such provision cannot be made by reason of the third proviso to section two of the School Sites Act, 1841 (which provides that if any land granted in accordance with the provisions of that section ceases to be used for the purposes mentioned in that Act, the land shall revert to the grantor), or by reason of any condition of a similar nature relating to the land in any Act, deed or other instrument, he may by order direct that the said proviso or condition shall not have effect in relation to the land:

Sale of land
belonging to
educational
endowments.

Provided that no such direction shall be given in relation to any land unless the Secretary of State is satisfied either—

- (a) that the person to whom the land would revert in accordance with the said proviso or condition cannot after due inquiry be found; or
- (b) that, if that person can be found, he has consented to relinquish his rights in relation to the land under the said proviso or condition, and that, if he has consented so to do in consideration of the payment of a sum of money to him, adequate provision can be made for the payment to him of that sum out of the proceeds of the sale of the land.

(2) A scheme under this Part of this Act relating to any endowment which includes land in respect of which an order has been made under the last foregoing subsection may make provision for the payment out of the proceeds of the sale of the land of any sum which is payable to any person in consideration of the relinquishment of his rights in relation to the land under the said proviso or condition.

(3) For the purpose of this section, any land conveyed under section two of the School Sites Act, 1841, or held under a condition of the nature referred to in subsection (1) of this section

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shall be deemed to be an educational endowment or part thereof notwithstanding anything in the third proviso to that section or in the said condition.

Educational endowments applicable in part to non-educational purposes.

120.—(1) Where an endowment is an educational endowment within the meaning of this Part of this Act, and part of it is applicable or applied to other charitable purposes, the scheme shall be in conformity with the provisions of subsections (2) to (6) of this section (except so far as the governing body of such endowment assent to the scheme departing therefrom).

(2) The proportion of the endowment or annual income for the time being derived therefrom which is applicable to such other charitable purposes shall not be diverted by the scheme from such purposes unless in the opinion of the Secretary of State—

- (i) there are no persons who are entitled to benefit out of such part of the endowment ; or
- (ii) the purposes of such part of the endowment have failed altogether or have become obsolete or useless or are otherwise sufficiently provided for ; or
- (iii) such purposes have become insignificant in comparison with the magnitude of such part of the endowment ; or
- (iv) such purposes have become prejudicial to the public welfare.

(3) The proportion of the endowment or annual income for the time being so applicable to such other charitable purposes shall be deemed to be the proportion which, in the opinion of the Secretary of State, is the proportion which has according to the average of such number of years as the Secretary of State shall determine been appropriated as regards capital or applied as regards income to such purposes, or if that proportion differs from the proportion which ought to have been so appropriated or applied according to the express directions of the instrument of foundation or the decree of any competent court or the statutes or regulations governing such endowment, the proportion applicable to such other charitable purposes shall be the proportion which ought, according to the express directions of such instrument, or such decree or such statutes or regulations, to have been appropriated or applied to such other charitable purposes.

(4) If the proportion applicable to other charitable purposes amounts to or exceeds one half of the whole of the endowment, the governing body of such endowment existing at the date of the scheme shall, so far as regards its non-educational purposes, remain unaltered by the scheme.

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(5) Where the governing body remains so unaltered, that body shall pay or apply for educational purposes such proportion as under the former provisions of this section is applicable to those purposes, or such less sum as may be fixed by the Secretary of State.

(6) When any portion of the endowment or the annual income of such portion has been accumulated and not applied to any purpose, the Secretary of State shall determine whether, and in what proportion, such portion or income is to be considered for the purposes of this section as having been appropriated or applied for educational purposes or for other charitable purposes.

(7) Subject to the foregoing provisions of this section, the Secretary of State shall have power by any scheme to deal with any such endowment, and with the governing body thereof, in the same manner in all respects as if it were an endowment applied wholly to educational purposes.

121.—(1) Where the governing body of any endowment (not being an educational endowment) are of opinion that it is expedient that the endowment should be dealt with by the Secretary of State on any of the following grounds, that is to say:—

Non-
educational
endowments.

- (a) that there are no persons entitled to benefit out of the endowment ; or
- (b) that the purposes of the endowment have failed altogether or have become obsolete or useless or prejudicial to the public welfare, or are otherwise sufficiently provided for, or are insignificant in comparison with the magnitude of the endowment, or are not substantially beneficial to the class of persons for whom the endowment was originally intended ; or
- (c) that it is impossible, owing to the inadequacy of the endowment or to the impracticable character of the founder's intentions, to carry these intentions into effect,

the governing body may intimate in writing to the Secretary of State their consent to the endowment being dealt with under this Part of this Act and thereafter such endowment may be dealt with in all respects as if it were an educational endowment.

(2) Where the Lord Advocate is of opinion on any such ground as is specified in the last foregoing subsection that a scheme should be framed for the future government and management of any endowment which is not an educational

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endowment or of any new endowment the governing body of which have not intimated their consent to its being dealt with under this Act, he may present a petition to the Court of Session for such a scheme, and on any such petition the Court shall have power to frame a scheme for the future government and management of the endowment and for the application of the capital or income of the endowment to any purposes, as nearly as may be analogous to those contained in the governing instrument, as the Court shall think fit.

Provisions
regarding
interests of
individuals.

122.—(1) Where at the third day of August, nineteen hundred and twenty-eight, any individual held a vested interest in any office, place, employment, pension, compensation allowance, bursary or emolument under or arising out of an endowment being dealt with in a scheme, the Secretary of State shall in such scheme save or make due compensation for the said vested interest.

(2) Every interest, right, privilege or preference which any person may acquire or may have acquired since the third day of August, nineteen hundred and twenty-eight, in or relative to any endowment, or in the governing body thereof, or as member of any such governing body, or in or relative to any office, place, employment, pension, compensation allowance, bursary or emolument in the gift of any such governing body, shall be subject to the provisions of any scheme made under this Part of this Act.

Provisions as
to beneficiaries
and teachers.

123.—(1) In framing a scheme for any endowment, the Secretary of State shall—

- (a) provide that in making a selection from amongst those eligible for the benefits of the endowment, due regard shall be paid to diligence, attainment and promise as ascertained in such manner as the Secretary of State shall determine, and
- (b) so far as can be equitably arranged and as the circumstances of each particular locality require, provide for extending to both sexes the benefit of the endowment.

(2) In every scheme the Secretary of State shall provide for the dismissal at pleasure of every officer in the employment of the governing body and of every teacher and officer in any endowed school to which the scheme relates:

Provided that—

- (i) the scheme shall make provision for the application in the case of the dismissal of a certificated teacher

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of the provisions of section eighty-five of this Act, with the substitution of the governing body for the education authority, and with any other necessary modifications ; and

- (ii) the scheme may confer on any such officer or teacher (other than a certificated teacher) as aforesaid a right of appeal to such authority and on such conditions as to the Secretary of State may seem fit.

(3) Any such scheme may contain provision for the removal of any religious test or qualification applicable to teachers.

124.—(1) It shall be the duty of the governing body of every educational endowment administered under a scheme made by the Court of Session which provides for the audit of the accounts of that endowment in such manner as the Secretary of State may prescribe, or administered under a provisional order made under the Act of 1878, or under a scheme made under the Act of 1882, the Acts of 1928 to 1935, Part VI of the Act of 1946 or under this Part of this Act, other than any such endowment to which the provisions of subsection (2) of section one hundred and ninety-six of the Local Government (Scotland) Act, 1947, apply, to comply with the following provisions of this section. Accounts and audit of educational endowments.

(2) The governing body of every endowment to which this section applies shall keep proper accounts and other records in relation to the functioning of that body, and shall prepare in respect of each financial year a statement of accounts in such form as the Secretary of State, or, in the case of a university endowment or the Carnegie Trust, the Scottish Universities Committee of the Privy Council, may by order direct.

(3) The accounts of every endowment to which this section applies shall be audited each year by an auditor appointed by the governing body with the approval of the Secretary of State, or, in the case of a university endowment or the Carnegie Trust, of the Scottish Universities Committee of the Privy Council.

(4) The governing body of every endowment to which this section applies, other than a theological endowment, a university endowment or the Carnegie Trust, shall, within such period after the end of the financial year of the endowment as the Secretary of State may direct, send such copies as the accountant may require of the audited accounts of the endowment to the accountant, who may examine these accounts and call for any other records kept in pursuance of subsection (2) of this section and for such additional information as he may require.

(5) Where the accountant is of the opinion that the governing body of any endowment, the accounts of which he has examined in pursuance of the last foregoing subsection, have not complied in any respect with any enactment, deed or other instrument

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applying to them, he shall so report to that body and shall afford to them an opportunity of satisfying him that they are not in default.

(6) Where the accountant is not satisfied as aforesaid, he shall, unless in his opinion any default is of minor importance, report such default to the Secretary of State.

(7) The accountant shall each year send a copy of the audited accounts of every endowment which he has power to examine under subsection (4) of this section to the Registrar of Educational Endowments, who shall make such accounts available for public inspection at all reasonable times.

(8) Any provision in a governing instrument referred to in subsection (1) of this section prescribing the financial year of an endowment shall remain in operation notwithstanding the repeal by this Act of subsection (2) of section eleven of the Education (Scotland) Act, 1956.

**Procedure in
preparation
of schemes.**

125.—(1) Before preparing the draft of a scheme for any endowment, the Secretary of State may cause a local inquiry to be held, and shall give the governing body an opportunity of being heard at such inquiry. The provisions of the First Schedule to this Act, with the exception of paragraphs 7 and 8 thereof, shall apply to such inquiry.

(2) When the Secretary of State has prepared the draft of a scheme, he shall cause it to be printed, and printed copies of it to be sent to the governing body of the endowment to which it relates, and shall also cause the draft to be published in such manner as he thinks sufficient for giving information to all persons interested.

(3) During one month after the first publication of the draft of a scheme, the Secretary of State shall receive any objections made to him in writing by any public body or persons interested respecting such scheme, and any amendments proposed thereon, and at any time after the expiration of such month the Secretary of State, if he thinks fit, may cause a local inquiry to be held concerning the subject-matter of such scheme, and the provisions of the First Schedule to this Act, with the exception of paragraphs 7 and 8 thereof, shall apply to such inquiry.

(4) As soon as may be after the expiration of the said month or the receipt by the Secretary of State of the report of such inquiry the Secretary of State shall proceed to consider any objections made to him in writing respecting the draft scheme, and any amendments proposed thereon, and the report (if any), and thereupon he shall, if he thinks fit, frame a scheme in such form as he thinks expedient.

(5) The Secretary of State, as soon as may be after framing a scheme shall, before confirming it, cause it to be published

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in such manner as he thinks sufficient for giving information to all persons interested, together with a notice stating that during one month after the first publication of such notice the Secretary of State will receive any objections made to him in writing by any public body or persons interested respecting such scheme. Subject to the provisions of the next following section, the Secretary of State may, after the expiration of the said month, if he thinks fit, confirm the scheme or may frame an amended scheme, and so on from time to time as often as occasion may require. The provisions of this section with regard to the procedure to be followed and to the confirmation of a scheme shall apply to an amended scheme as they apply to a scheme.

(6) (a) Where the Secretary of State causes the draft of a scheme or a scheme or an amended scheme to be printed under this section, he shall prefix to such draft or scheme or amended scheme a memorandum setting forth—

- (i) the reasons for which, in his view, reorganisation of the endowment is necessary;
- (ii) the respects in which the draft or scheme or amended scheme involves any substantial alteration of the purposes to which the endowment is applied or applicable (including any alteration of an existing provision for competitive bursaries); and
- (iii) the reasons for any such alteration.

(b) For the purposes of the provisions of subsections (2) and (5) of this section relating to publication, a memorandum prefixed to the draft of a scheme or to a scheme or to an amended scheme in pursuance of the last foregoing paragraph shall be deemed to be part thereof.

(7) The Secretary of State as soon as he confirms a scheme shall forthwith, in such manner as he thinks sufficient for giving information to all persons interested, publish a notice that the scheme has been confirmed by him and that, unless within one month after the first publication of such notice a petition is presented to the Court of Session or to the Secretary of State as in this section mentioned, the scheme may be approved by Her Majesty by an Order in Council without being laid before Parliament.

(8) During the said month—

- (a) a petition to the Court of Session for amendment of the scheme or for the substitution of a new scheme may be presented by the governing body, or
- (b) a petition to the Secretary of State praying that the scheme may be laid before Parliament may be presented by the governing body, or by the town council

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of any burgh directly affected by the scheme, or by any education authority so affected, or by any ratepayers (not less than twenty) of any burgh or parish or place directly affected by the scheme, or by any person or persons having a vested interest in the endowment or any part of it.

(9) On any petition presented to them under the last foregoing subsection the Court of Session may amend the scheme or may frame a new scheme, and for such purposes the Court shall have the like powers as are conferred by this Part of this Act on the Secretary of State regarding schemes for the future government and management of endowments.

(10) When a petition is presented to the Secretary of State under paragraph (b) of subsection (8) of this section, he shall unless a petition has been presented to the Court of Session under paragraph (a) of the said subsection, cause the scheme to be laid as soon as may be before both Houses of Parliament.

Appeal against
educational
endowment
schemes on
questions of
law.

126. If—

- (a) the governing body of any endowment to which a scheme or an amended scheme relates, or any other person directly affected by any such scheme, feels aggrieved by the scheme on the ground that it is not within the scope of, or is not made in conformity with, this Part of this Act, or
- (b) any person holding any office, place or employment, or receiving any pension, compensation allowance, bursary or emolument under or arising out of any endowment dealt with by such a scheme, feels aggrieved by the scheme on the ground that it does not comply with the provisions of this Part of this Act as to saving or making due compensation for his vested interests,

such governing body or other person may, within one month after the publication of the scheme, appeal to the Court of Session, and, if the Court decides that the scheme is contrary to law on any of the grounds in this section mentioned, the Secretary of State shall not confirm the said scheme, but he may, if he thinks fit, frame an amended scheme.

Approval and
effect of
schemes.

127.—(1) If at the expiration of the month allowed by subsection (8) of section one hundred and twenty-five of this Act for the presentation of a petition to the Court of Session or to the Secretary of State no such petition has been presented, or if the Court of Session have refused the prayer of a petition presented to them under the said subsection, it shall be lawful for Her Majesty, by Order in Council, to approve the scheme without the same being laid before Parliament.

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(2) Where a scheme has been laid before Parliament under subsection (10) of the said section, it shall be lawful for Her Majesty, after it has lain one month before Parliament, by Order in Council—

- (a) to approve such scheme if no Address has been presented within such month by either of the said Houses praying Her Majesty to withhold her approval, or
- (b) to approve any part of the scheme to which any Address so presented does not relate.

(3) A scheme when approved by Her Majesty in Council shall have full operation and effect from the date of such Order in Council, in the same manner as if it had been enacted in this Act; and thereupon every Act of Parliament, letters patent, statute, deed, instrument, trust or direction relating to the subject-matter of the scheme, so far as inconsistent with the provisions thereof, shall be repealed and abrogated.

(4) The Order in Council approving a scheme shall be conclusive evidence that such scheme was within the scope of and made in conformity with this Act, and the validity of such scheme and order shall not be questioned in any legal proceedings whatever.

(5) Where the Court of Session have, in pursuance of the powers conferred upon them by subsection (9) of section one hundred and twenty-five of this Act, amended a scheme or framed a new scheme, the scheme as so amended or the new scheme as so framed shall have the like effect as a scheme approved by Her Majesty in Council.

128. In the case of an educational endowment of less annual value than fifty pounds, the procedure hereinbefore prescribed shall not apply, if the governing body of such endowment frame and submit to the Secretary of State a scheme respecting such endowment. The Secretary of State may approve such scheme with or without any modifications as he thinks fit. In framing and approving such scheme the same powers may be exercised, and subject to the same conditions, as nearly as may be, as in the case of any scheme under this Part of this Act; and such scheme, when approved by the Secretary of State, shall have effect as if it were a scheme approved by Order in Council under this Part of this Act. Schemes for small endowments.

129. Schemes may be from time to time framed and approved for amending any scheme approved under the Acts of 1928 to 1935 or under Part VI of the Act of 1946, or under this Part of this Act, and all the provisions of this Part of this Act relative to an original scheme shall, with any necessary modifications, apply also to an amending scheme. Amending schemes.

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Cost of
publishing
scheme, etc.

130. The cost of publishing and circulating any draft scheme, or scheme, or amended scheme, under this Part of this Act shall be paid out of the funds of the endowment or endowments to which the same relates :

Provided that, if the Secretary of State causes any draft scheme, or scheme, or amended scheme, to be published in the Edinburgh Gazette, no fees shall be exigible in respect of such publication.

Reports by
governing
body.

131. Every governing body shall make such reports and returns and give such information to the Secretary of State as he may from time to time require.

Quorum of
governing
body.

132. The majority of members of a governing body who are present at a meeting of their body duly constituted shall have power to do anything that may be required to be done by a governing body for the purposes of this Part of this Act :

Provided that this power shall be in addition to and not in restraint of any power which any meeting of such governing body may have independently of this Part of this Act.

Provision
for default
of governing
body.

133. If the governing body of any educational endowment fail to give effect to the provisions of any Provisional Order or of any scheme approved under the Act of 1882 or the Acts of 1928 to 1935 or Part VI of the Act of 1946 or this Part of this Act, it shall be lawful for the Secretary of State, after such inquiry as he shall think proper, to send a requisition to such governing body, requiring them to give effect to the provisions of the Provisional Order or scheme, and the governing body shall comply with the said requisition without undue delay, and, if they fail, may be summarily compelled to do so by the Court of Session, on the application of the Lord Advocate.

Judgment of
Court of
Session final.

134. In any proceeding before the Court of Session authorised by this Part of this Act—

- (a) the judgment or deliverance of the Court shall be final and not subject to review ; and
- (b) the Court shall dispose of all questions of expenses, and may, if they think fit, direct the expenses or any part thereof (including the expenses of the Secretary of State) to be paid out of the funds of the educational endowment to which the proceeding relates : Provided always that it shall not be lawful for the Court to find the Secretary of State liable in expenses.

135.—(1) In this Part of this Act, unless the context otherwise requires—

PART VI
Interpretation
of Part VI.

- (a) “Carnegie Trust” means the property vested in the Carnegie Trustees for the Universities of Scotland;
- (b) “Educational endowment” means any endowment which has been applied or is applicable in whole or in part, whether by the declared intention of the founder, or by the consent of the governing body, or in pursuance of any scheme approved under any Act or of any Provisional Order or by custom or otherwise, to educational purposes;
- (c) “Educational purposes” includes—
 - (a) the payment of apprenticeship fees,
 - (b) the advancement in life, and
 - (c) the maintenance, clothing, and other provision for the benefit,
of poor persons under the age of twenty-one years;
- (d) “Endowment” means any property, heritable or moveable, dedicated to charitable purposes, but shall not, except with the consent of the governing body, include the funds, whether capital or revenue, of any incorporation or society contributed or paid by the members of such incorporation or society by way of entry moneys or other fixed or stated payments, nor burgess or guildry fines paid to any such incorporation or society, nor funds bequeathed or given to any such incorporation or society for the benefit solely of members or widows or families of members of such incorporation or society;
- (e) “Governing body” means the managers, governors or trustees of any endowment or other person having the administration of the revenue thereof;
- (f) “Governing instrument” means, with regard to any endowment, the scheme approved under any Act or any Provisional Order, in accordance with which the endowment is governed and managed or, where there is no such scheme or Provisional Order, the deed constituting the endowment;
- (g) “Provisional Order” means Provisional Order confirmed by Act of Parliament and Provisional Order made under the Act of 1878;
- (h) “Theological endowment” means an endowment solely or mainly applicable or applied for the purposes of theological instruction or belonging to any theological institution;
- (i) “University endowment” means an endowment vested in, or administered by, or in the gift of any of the

PART VI

universities of Scotland or any of the colleges of such universities.

(2) An educational endowment shall be deemed to be a "new endowment" until the expiry of twenty years from the date when the deed creating the endowment comes into operation, so, however, that where part of an endowment has been given at one time and another part has been given at a later time and the two portions cannot in the opinion of the Secretary of State be conveniently separated from each other, the date of the older part of the endowment shall be held to be the date of the endowment.

PART VII**MISCELLANEOUS PROVISIONS***Employment*

Children not to be employed in factories, mines, or quarries.

136. No child shall be employed—

- (a) in any factory to which the Factories Act, 1961, applies ;
or
- (b) at any mine or quarry within the meaning of the Mines and Quarries Act, 1954 ;

and those Acts respectively shall have effect as respects Scotland as if this section, so far as it relates to the subject matter thereof, were incorporated therein.

Power of education authorities to prohibit or restrict employment of children.

137.—(1) If it appears to an education authority that the employment of a child attending a school under their management is or is likely to be prejudicial to his health or otherwise to render him unfit to obtain the full benefit of the education provided for him, the authority shall serve upon the parent and upon any person who is employing him for the time being a notice prohibiting the employment of the child in any employment or imposing such restrictions upon the employment of the child as appear to them to be expedient in the interests of the child :

Provided that if the parent or the employer feels aggrieved by the prohibition or restriction, he may appeal to the Secretary of State, who shall have power to confirm, vary or annul the notice as he thinks fit.

(2) An education authority may, by notice in writing served upon the parent or employer of any child attending a school under their management, require the parent or employer to provide the authority, within such period as may be specified in the notice, with such information as appears to the authority to be necessary for the purpose of enabling them to ascertain whether the child is being employed in such a manner as to be or to be likely to be prejudicial to his health or to render him unfit to obtain the full benefit of the education provided for him.

PART VII

(3) Any person who knowingly employs a child in contravention of any prohibition or restriction imposed under subsection (1) of this section, or who fails to comply with the requirements of a notice served under subsection (2) of this section, shall be guilty of an offence against this section, and liable on conviction by a court of summary jurisdiction to a fine not exceeding five pounds, or, in the case of a second or subsequent offence, not exceeding twenty pounds.

(4) Subsections (1) and (3) of section thirty-six of the Act of 1937 (which relate to powers of entry for the enforcement of the provisions of Part III of that Act with respect to the employment of children), shall apply with respect to the provisions of any notice served under this section as they apply with respect to the provisions of the said Part III.

138.—(1) Where a young person is employed in any employment with respect to which a limitation upon the number of working hours during which he may be employed in that employment otherwise than by way of overtime in any week is imposed by or under any enactment, any period of attendance at a junior college required of him during that week by an attendance notice served on him shall, for the purposes of the limitation, be deemed to be time during which he has been so employed in that week.

Effect of attendance notices on computation of working hours.

(2) Where a young person employed in any employment is entitled by or under the provisions of any enactment or of any agreement to overtime rates of pay in respect of any time during which he is employed in that employment on any day or in any week in excess of any specified number of hours or before or after any specified hour, any period of attendance at a junior college required of him on that day or during that week by an attendance notice served on him shall, for the purposes of those provisions, be deemed to be a period during which he was employed in that employment otherwise than in excess of the specified number of hours or before or after the specified hour, as the case may be.

139.—(1) For the purpose of any enactment relating to the prohibition or regulation of the employment of children or young persons, any person who is not for the purposes of this Act over school age shall be deemed to be a child within the meaning of that enactment.

Adaptation of enactments relating to employment of children and young persons.

(2) For the purposes of any byelaws under Part III of the Act of 1937, the expression "child" shall have the same meaning as it has for the purposes of the said Part III.

Savings and Exceptions

140. No power or duty conferred or imposed by this Act on the Secretary of State, on education authorities, on parents or on young persons shall be construed as relating to any child or

Saving as to persons in the service of the Crown.

PART VII

young person who is employed by or under the Crown in any service or capacity with respect to which the Secretary of State certifies that, by reason of the arrangements made for the education of children and young persons employed therein, the exercise and performance of those powers and duties with respect to such children and young persons is unnecessary.

Saving as to persons suffering from mental disorder and persons detained by order.

141.—(1) Unless the context otherwise requires, no power or duty conferred or imposed by this Act on the Secretary of State, on education authorities or on parents or young persons shall be construed as relating to any person to whom this section applies:

Provided that nothing in this section shall prevent an education authority from providing or securing the provision of education for any such person if he is in their opinion capable of deriving benefit therefrom.

(2) The persons to whom this section applies are:—

- (a) any person who is receiving treatment for mental disorder as an in-patient in a hospital within the meaning of the Mental Health (Scotland) Act, 1960;
- (b) any person who is for the time being the subject of a report in force under section fifty-six of the Act of 1946 or section sixty-five of this Act; and
- (c) any person who is detained in pursuance of an order made by any court or of an order of recall made by the Secretary of State.

General

Amendment of enactments.

142.—(1) In relation to any young person punishable under this Act or under section seventy-eight of the Unemployment Insurance Act, 1935, section fifty-eight of the Act of 1937 (which relates to the substitution of other punishments for imprisonment), shall have effect as if references therein to a young person included references to any person who has not attained the age of eighteen years.

(2) Any reference in an enactment passed before the second day of July, nineteen hundred and forty-five, to a school in receipt of a parliamentary grant shall, unless the context otherwise requires, be construed as a reference to a school other than an independent school.

Orders in Council.

143. Any Order in Council made under section twenty of the Act of 1918 or section sixty-eight of the Act of 1946 or section seventy-three of this Act may be revoked or varied as occasion requires by a subsequent Order in Council.

144.—(1) Any power conferred by this Act on the Secretary of State to make regulations shall be exercisable by statutory instrument. PART VII
Regulations
etc.

(2) Subject to the provisions of the next following subsection, the Secretary of State shall, not less than forty days before making regulations under this Act, cause a draft of the regulations to be published and send a copy thereof to every education authority, and shall have regard to any representations made by an education authority or by any person interested before he makes the regulations. The regulations may be made in the same form as in the published draft or in an amended form.

(3) Where the Secretary of State certifies that on account of urgency or any special reason any regulations ought to come into immediate operation, he may make such regulations to come into operation immediately as provisional regulations, and shall include a regulation prescribing a period for which the provisional regulations are to remain in force. The provisional regulations shall cease to have effect at the end of the said period unless continued in force by regulations made in accordance with the provisions of the last foregoing subsection or by further provisional regulations.

(4) Any statutory instrument containing regulations made by the Secretary of State under this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) Any regulation, rule or order made or direction given by the Secretary of State or an education authority under the provisions of this Act may be varied or revoked by a further rule, regulation or order made or direction given by the Secretary of State or that authority, as the case may be :

Provided that where the power to make or give any such regulation, rule, order or direction is exercisable only upon the application or with the consent of any person, or after consultation with or intimation to any person or is otherwise subject to any conditions, no regulation, rule, order or direction made or given under such power shall be varied or revoked except upon the like application, with the like consent, after the like consultation or intimation or subject to the like conditions, as the case may be.

145. In this Act, unless the context otherwise requires, the following expressions have the meanings respectively assigned to them :— General
definitions.

- (1) “ Accountant ” means the accountant appointed in pursuance of section seventy-eight of this Act and includes any person appointed from time to time by the Secretary of State for the purpose of exercising the powers or performing the duties conferred or imposed upon the accountant or of any of such powers or duties ;

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- (2) "Act of 1878" means the Endowed Institutions (Scotland) Act, 1878 ;
- (3) "Act of 1882" means the Educational Endowments (Scotland) Act, 1882 ;
- (4) "Act of 1908" means the Education (Scotland) Act, 1908 ;
- (5) "Act of 1918" means the Education (Scotland) Act, 1918 ;
- (6) "Acts of 1928 to 1935" means the Educational Endowments (Scotland) Acts, 1928 to 1935 ;
- (7) "Act of 1937" means the Children and Young Persons (Scotland) Act, 1937, except in Part IV and the Third Schedule ;
- (8) "Act of 1946" means the Education (Scotland) Act, 1946 ;
- (9) "Attendance order" has the meaning assigned to it by section thirty-eight of this Act ;
- (10) "Central institution" means an educational establishment for the provision of further education recognised as a central institution by regulations made by the Secretary of State ;
- (11) "Certificated teacher" means a teacher holding or who is deemed to hold a certificate of competency issued in accordance with regulations made under the Education (Scotland) Acts, 1872 to 1945, or under subsection (2) of section seventy-seven of the Act of 1946 or section eighty-one of this Act ;
- (12) "Child" means a person who is not over school age ;
- (13) "Clothing" includes boots and other footwear ;
- (14) "College of education" means one of the colleges administered by a governing body constituted by the Teachers (Training Authorities) (Scotland) Regulations, 1958 ;
- (15) "County" means a county inclusive of any burgh situate therein other than a county of a city ;
- (16) "Education authority" means—
 - (a) in relation to a burgh being a county of a city, the town council ;
 - (b) in relation to counties combined for the purposes mentioned in subsection (1) of section one hundred and eighteen of the Local Government (Scotland) Act, 1947, the joint county council ; and

(c) in the case of any other county the county council; PART VII

and "area" in relation to an education authority shall be construed accordingly;

(17) "Educational establishment"—

(i) means a school, a junior college and any other institution for the provision of any form of further education and the premises of such school, junior college or institution, and

(ii) without prejudice to the foregoing generality, includes a central institution, a college of education, a hostel used mainly by pupils attending such schools or junior colleges or institutions, and a residential institution conducted under a scheme under the Acts of 1928 to 1935, or Part VI of the Act of 1946, or Part VI of this Act, but

(iii) does not include a university, a theological college, a hostel or other residence used exclusively by students attending a university or a theological college, or a club or other centre conducted by a voluntary society or body for the purpose of providing facilities or organising activities of a character similar to those which may be provided by an education authority under subsection (1) of section six of this Act, unless the society or body are in receipt of a grant from the Secretary of State or of a contribution from an education authority or apply in writing to the Secretary of State for the club or centre to be treated in all respects as an educational establishment;

(18) "Employment" includes employment in any labour exercised by way of trade or for purposes of gain whether the gain be to the child or to the young person or to any other person, and a person who assists in a trade or occupation carried on for profit shall be deemed to be employed notwithstanding that he receives no reward for his labour; and "employ" shall be construed accordingly;

(19) "Employer" includes a parent who employs his children;

(20) "Functions" includes powers and duties;

(21) "Further education" includes the facilities described in subsection (4) of section one and the forms of instruction, occupation and teaching described in section four, both of this Act;

(22) "Grant-aided school" means a school in respect of which grants are made by the Secretary of State to the

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managers of the school other than grants in aid of the managers' contributions under Part IV of this Act, but does not include a public school ;

- (23) "Independent school" means a school at which full-time education is provided for five or more pupils of school age (whether or not such education is also provided for pupils under or over that age), not being a public school or a grant-aided school ;
- (24) "Her Majesty's inspectors" means the inspectors of schools appointed by Her Majesty on the recommendation of the Secretary of State ;
- (25) "Junior college" has the meaning assigned to it by paragraph (a) of section four of this Act ;
- (26) "Managers", in relation to an educational establishment, means the governing body, trustees, or other person or body of persons responsible for the management of the establishment but does not include an education authority ;
- (27) "Medical examination" means examination by a duly qualified medical practitioner : Provided that in conducting an examination of any such class as may be prescribed, such practitioner may be assisted by other persons having such special qualifications or experience as may be prescribed ;
- (28) "Medical inspection" and "medical supervision" mean, respectively, inspection and supervision by or under the directions of a duly qualified medical practitioner or in appropriate cases by a person registered under the Dentists Act, 1957 ;
- (29) "Medical officer" means, in relation to any education authority, a duly qualified medical practitioner employed or engaged, whether regularly or for the purposes of any particular case, by that authority ;
- (30) "Medical treatment" includes prevention and treatment of diseases by any duly qualified medical practitioner, and the supply of appliances on the recommendation of such practitioner, but does not, in relation to any pupil other than a pupil receiving primary or secondary education elsewhere than at school under arrangements made by an education authority under section fourteen of this Act, include treatment in that pupil's home ;
- (31) "Nursery school" and "nursery class" have the respective meanings assigned to them by paragraph (a) of subsection (2) of section two of this Act ;
- (32) "Officers" includes servants ;

PART VII

- (33) "Parent" includes guardian and any person who is liable to maintain or has the actual custody of a child or young person ;
- (34) "Premises" in relation to any educational establishment includes the site of such establishment, any building in which pupils attending such establishment are boarded whether managed by the managers of such establishment or by any other person by arrangement with such managers, and any playing fields used in connection with such establishment whether contiguous to or detached therefrom ;
- (35) "Prescribed", except in Part IV of this Act, means prescribed by the Secretary of State ;
- (36) "Primary education" has the meaning assigned to it by subsection (2) of section two of this Act ;
- (37) "Proprietor" in relation to an independent school means the managers of such school, and for the purposes of the provisions of this Act relating to applications for the registration of independent schools includes any person or body of persons proposing to be the managers ;
- (38) "Provisionally registered school" means an independent school registered in the register of independent schools whereof the registration is provisional only ;
- (39) "Public school" means any school under the management of an education authority ;
- (40) "Pupil" where used without qualification means a person of any age for whom education is or is required to be provided under this Act ; and a pupil shall be deemed to be attending or in attendance at a school if he is shown by the register of admission and withdrawal kept at the school in accordance with regulations made under this Act, or by any other register approved by the Secretary of State and kept for a similar purpose, to have been admitted to, but not to have been withdrawn from, or to have been readmitted to, and not thereafter to have been withdrawn from, the school ; and similar expressions, whether relating to schools or to other educational establishments, shall be similarly interpreted ;
- (41) "Registered school" means an independent school the registration of which in the register of independent schools is final ;
- (42) "School" means an institution for the provision of primary or secondary education or both primary and secondary education being a public school, a grant-aided school or an independent school, and includes a

PART VII

nursery school and a special school; and the expression "school" where used without qualification includes any such school or all such schools as the context may require, but does not include an approved school within the meaning of the Act of 1937;

- (43) "School age" has the meaning assigned to it by subsection (1) of section thirty-two of this Act;
- (44) "Secondary education" has the meaning assigned to it by subsection (2) of section three of this Act;
- (45) "Special educational treatment" has the meaning assigned to it by subsection (1) of section five of this Act;
- (46) "Special school" includes special classes forming part of primary schools or secondary schools, child guidance clinics and occupational centres;
- (47) "Teachers Superannuation Scheme" means the superannuation scheme framed and approved under the Education (Scotland) (Superannuation) Acts, 1919 to 1939, or under Part IV of the Act of 1946, and any amendment thereof;
- (48) "Teachers (Superannuation) Regulations" means regulations made, or deemed under section one hundred and forty-seven of this Act to have been made, under section one hundred and two of this Act; and
- (49) "Young person" means a person over school age who has not attained the age of eighteen years.

Interpretation. 146.—(1) In this Act, unless the context otherwise requires, references to any enactment or any provision of any enactment shall be construed as references to that enactment or provision as amended by any subsequent enactment, including this Act, or to that enactment or provision as appearing in any enactment in which that enactment or provision is consolidated as amended by any subsequent enactment.

(2) In this Act, unless the context otherwise requires, references to any statutory instrument or to any provision of a statutory instrument shall be construed as references to that statutory instrument or provision as amended by any subsequent statutory instrument, or to that statutory instrument or provision as appearing in any statutory instrument in which that statutory instrument or provision is consolidated as amended by any subsequent statutory instrument.

Repeals. 147. The enactments set out in the Eighth Schedule to this Act are hereby repealed to the extent specified in the third column of the said Schedule:

Provided that without prejudice to the provisions of section thirty-eight of the Interpretation Act, 1889— PART VII

- (a) any rule, regulation, order or scheme made, any appointment made or certificate, notice, direction or approval given, or thing done under any enactment repealed by this Act shall, if in force immediately before the commencement of this Act, continue in force notwithstanding such repeal in like manner as if it had been made, given or done under this Act and, in so far as it could have been made, given or done under a particular provision of this Act, shall be deemed to have been made, given or done under that provision;
- (b) nothing in this repeal shall affect—
 - (i) the title of an education authority to any property vested in or held in trust for them immediately before the commencement of this Act; or
 - (ii) the terms and conditions upon which any officer of an education authority holds his office or the powers of an education authority in relation thereto; and
- (c) a conviction for an offence against any enactment repealed and re-enacted (whether with or without modification) by this Act, shall for the purposes of any provision of this Act relating to penalties be deemed to be a conviction for an offence against the enactment as so re-enacted.

148.—(1) This Act, except the provisions set forth in the second column of the Ninth Schedule, shall come into operation on the first day of October, nineteen hundred and sixty-two. Commence-
ment.

(2) The provisions of this Act set forth in the second column of the Ninth Schedule shall respectively come into operation on the days mentioned opposite to them in the third column of the said Schedule, and, where days are to be appointed by the Secretary of State for the coming into operation of any of the said provisions, he may appoint different days for different purposes and different provisions.

149.—(1) This Act may be cited as the Education (Scotland) Act, 1962. Citation and
extent

(2) This Act shall extend to Scotland only.

(3) The Education (Scotland) (War Service Superannuation) Act, 1939, the Education (Scotland) Act, 1945, the Education (Scotland) Act, 1946, the Education (Exemptions) (Scotland) Act, 1947, the Education (Scotland) Act, 1949, and this Act shall be construed as one and may be cited together as the Education (Scotland) Acts, 1939 to 1962.

SCHEDULES

Section 68.

FIRST SCHEDULE

LOCAL INQUIRIES

1. The Secretary of State shall appoint a person to hold the inquiry and to report thereon to him.

2. The person appointed shall notify the bodies and persons appearing to him to be interested of the time when and the place where the inquiry is to be held.

3. The person appointed may by notice in writing require any person—

(a) to attend at the time and place set forth in the notice to give evidence or to produce any books or documents in his custody or under his control which relate to any matter in question at the inquiry ; or

(b) to furnish within such reasonable period as is specified in the notice such information relating to any matter in question at the inquiry as the person appointed may think fit and as the person so required is able to furnish :

Provided that—

(i) no person shall be required in obedience to such a notice to attend at any place which is more than ten miles from the place where he resides unless the necessary expenses are paid or tendered to him ; and

(ii) nothing in this paragraph shall empower the person appointed to hold the inquiry to require any person to produce any book or document or to answer any question which he would be entitled, on the ground of privilege or confidentiality, to refuse to produce or to answer if the inquiry were a proceeding in a court of law.

4. The person appointed to hold the inquiry may administer oaths and examine witnesses on oath and may accept, in lieu of evidence on oath by any person, a statement in writing by that person supported by a declaration of the truth thereof in such form as the person appointed may require.

5. The inquiry shall unless the Secretary of State otherwise directs be held in public.

6. Any person who refuses or wilfully neglects to attend in obedience to a notice issued under paragraph 3 of this Schedule, or who wilfully alters, suppresses, conceals, destroys or refuses to produce any book or document which he may be required to produce by any such notice, or who refuses or wilfully neglects to comply with any requirement of the person appointed to hold the inquiry under paragraph 3 of this Schedule, shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a period not exceeding three months.

7. The Secretary of State may make orders as to the expenses incurred by the parties appearing at the inquiry and as to the parties by whom such expenses shall be paid.

1st Sch.

8. Any order by the Secretary of State under paragraph 7 of this Schedule requiring any party to pay expenses may be enforced in like manner as a recorded decree arbitral.

SECOND SCHEDULE

Section 77.

ANNUAL SUMS CHARGED ON THE CONSOLIDATED FUND

<i>Serial number</i>	<i>Education Area</i>	<i>Annual sum £</i>
1. Argyll		353
2. Banff		30
3. Caithness		58
4. Inverness		128
5. Orkney		30
6. Perth		62
7. Ross and Cromarty		149
8. Sutherland		89
		£899

THIRD SCHEDULE

Section 102.

TEACHERS (SUPERANNUATION) REGULATIONS

PART I

PROVISIONS TO WHICH THE TEACHERS (SUPERANNUATION)
REGULATIONS SHALL GIVE EFFECT*Provisions to be included in Regulations*

1. The Teachers (Superannuation) Regulations shall include provision for the purposes set forth in the following paragraphs of this Part of this Schedule.

Payment of retiring allowances

2. Provision shall be made for the payment on retirement after attaining the prescribed age, or on retirement in case of permanent incapacity, of a retiring allowance which shall be—

- (1) an annual allowance during life not exceeding an amount calculated by reference to the whole period of first class service of a teacher at the rate of one-eightieth of his pensionable salary for a year of first class service, and

3RD SCH.

- (2) by way of additional allowance, a lump sum not exceeding an amount calculated by reference to the whole period of first class service of the teacher at the rate of three-eightieths of the pensionable salary of the teacher for a year of first class service:

Provided that—

- (i) a retiring allowance shall not be granted to a teacher who has given less than ten completed years of first class service or of first class service and second class service; and
- (ii) a retiring allowance shall not be granted on grounds of permanent incapacity to a teacher who has qualified for a retiring allowance on grounds of age; and
- (iii) the amount of the additional allowance in respect of the period before the first day of October nineteen hundred and fifty-six shall be calculated at the rate of one-thirtieth of the pensionable salary of the teacher for a year of first class service.

Calculation of length of service

3. Provisions shall be made for securing that the period of first class service or of first class service and second class service of which account may be taken shall not exceed forty-five years, of which, for the calculation of the annual allowance, not more than forty shall be years before the teacher attained the age of sixty years; that where a teacher is granted a retiring allowance in case of permanent incapacity and has not completed twenty years of first class service or of first class service and second class service, his retiring allowance shall be calculated as it would have been if he had completed twenty years of first class service or such shorter period as he would have completed if he had continued to be employed in first class service until the prescribed age; and for such consequential, transitional and other matters as appear to the Secretary of State to be necessary for the carrying out of the purposes of this paragraph.

Gratuities to infirm teachers

4. Provision shall be made for the payment on retirement in case of permanent incapacity, after first class service for a prescribed period less than ten years, of a gratuity not exceeding the prescribed proportion of the pensionable salary of the teacher.

Death gratuities

5. Provision shall be made for the payment to the personal representatives of a teacher who dies in first class service after completing the prescribed period of first class service, of a death gratuity of an amount calculated in the prescribed manner.

Return of contributions made by teacher to Scottish Teachers Superannuation Fund

6. Provision shall be made for the return to a teacher of any contributions made by him to the Scottish Teachers Superannuation Fund established in accordance with section fourteen of the Act of 1908.

*Return of contributions under the Education (Scotland)
Superannuation Act, 1922 and subsequent Acts*

3RD SCH.

7. Provision shall be made for the repayment to a teacher or to his personal representatives, in circumstances and on conditions to be prescribed, of contributions made by him in terms of the Act of 1922, the Act of 1925, the Act of 1946 or of this Act, together with compound interest on each contribution as from the prescribed date calculated at the rate of three per cent per annum with yearly rests, and for the cancellation on such repayment of the service in respect of which the said contributions were paid.

Repayment by teachers of contributions returned to them

8. Provision shall be made for permitting a teacher in circumstances and on conditions to be prescribed to repay the sums repaid to him under provisions included in the Teachers Superannuation Scheme by virtue of section two of the Act of 1922 or paragraph (a) of subsection (1) of section four of the Act of 1925, or sub-paragraph (5) of paragraph 2 of Part I of the Third Schedule to the Act of 1946, or under provisions included in the Teachers (Superannuation) Regulations by virtue of the said sub-paragraph (5) as read with subsection (3) of section one hundred and one of the Act of 1946 as set out in section ten of the Education (Scotland) Act, 1956, or of the last foregoing paragraph, together with compound interest thereon calculated from the date of repayment to him at the rate of three and half per cent per annum with yearly rests, and for the restoration to such teacher, on such repayment by him, of such claims under the Teachers Superannuation Scheme or the Teachers (Superannuation) Regulations as he would have had if no repayment had been made to him.

Minimum amount of benefits

9. Provision shall be made for securing that the total amount of benefit payable under the Teachers (Superannuation) Regulations to any teacher or to his personal representatives together with compound interest on any benefit calculated from the date of payment at three per cent per annum with yearly rests shall not (save as may be otherwise provided in cases where benefit is payable also under the Teachers (Superannuation) Acts, 1918 to 1956), be less than the total amount of the contributions paid by him under the Act of 1922, the Act of 1925, the Act of 1946 and this Act together with compound interest on such contributions from the prescribed date calculated at three per cent per annum with yearly rests.

Exchange of part of annual allowance for other benefits

10. Provision shall be made for securing that, in such circumstances and subject to such conditions as to proof of good health and other matters as may be prescribed, a teacher who has attained the age of sixty years shall be allowed to surrender as from the date of commencement of an annual allowance granted or to be granted to him under the Teachers (Superannuation) Regulations such part not exceeding one third of the allowance as may be specified, in return for benefits to be prescribed, and for enabling the Secretary of State to grant, in return for such surrender as aforesaid, according as

3RD SCH. the teacher may in conformity with rules made under the Teachers (Superannuation) Regulations elect, either—

- (1) to the spouse or to a dependant of the teacher a pension payable in respect of the period, if any, for which the spouse or dependant survives the teacher ; or
- (2) to the teacher an annuity payable as from the date of commencement of the annual allowance in respect of the period of the joint lives of himself and his spouse and to the spouse a pension payable in respect of the period, if any, for which the spouse survives the teacher :

Provided that—

- (i) for the purposes of this paragraph a teacher who dies in first class service after having surrendered part of the annual allowance to be awarded to him, shall be deemed to have been granted the annual allowance which would have been granted to him if he had retired on the day before his death ;
- (ii) the amount of the said pension or the amounts of the said annuity and pension, as the case may be, shall be such that the value or the aggregate value shall be actuarially equivalent (according to tables to be prepared from time to time by the Government Actuary), at the date of the commencement of the annual allowance, to the value of that part of the allowance which is surrendered ; and
- (iii) in ascertaining for the purpose of the last foregoing sub-paragraph of this proviso the actuarial equivalent of the part of the annual allowance which is surrendered by the teacher before retirement, it shall be assumed that there has been no change in the teacher's state of health between the date on which he makes the surrender and the date as from which the annual allowance is awarded or deemed to be awarded.

Calculation of benefits where part of annual allowance has been surrendered

11. Provision shall be made for determining, in the case where a teacher has surrendered part of a retiring allowance under any provision included in the Teachers Superannuation Scheme by virtue of subsection (3) of section four of the Act of 1937, or of sub-paragraph (8) of paragraph 2 of Part I of the Third Schedule to the Act of 1946, or under any provision included in the Teachers (Superannuation) Regulations by virtue of the said sub-paragraph (8) as read with subsection (3) of section one hundred and one of the Act of 1946 as set out in section ten of the Education (Scotland) Act, 1956, or of the last foregoing paragraph, how the amounts of any payments to him or his personal representatives are to be calculated for the purpose of any provision of the Teachers (Superannuation) Regulations, and for applying any provision of the said Regulations, with or without modifications, in respect of pensions and annuities granted under subsection (3) of section four of the Act of 1937 or under any provisions included in the Teachers (Superannuation) Regulations by virtue of the said sub-paragraph (8) or of the last foregoing paragraph and of persons entitled thereto.

Reckoning of breaks in service as service

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12. Provision shall be made for enabling a teacher whose first class service is discontinued—

(1) for a period not exceeding five years, or not exceeding such longer period as the Secretary of State may in any case direct, in the case of a teacher who during that period is employed—

(a) as a teacher in any part of Her Majesty's dominions outside the United Kingdom, or

(b) as a teacher in any school in a foreign country which is shown to the satisfaction of the Secretary of State to be a school in which it is expedient to facilitate the employment of British teachers, or

(c) in an educational service outside the United Kingdom in employment which to a substantial extent involves the control or supervision of teachers, or

(d) as a teacher in any school maintained within the United Kingdom by the Government of any part of Her Majesty's Dominions outside the United Kingdom; or

(2) for such period not exceeding five years as the Secretary of State may approve for the purpose of enabling a teacher to gain special experience of value in teaching; or

(3) for a period not exceeding one year in any other case,

to pay to the Secretary of State with his consent sums equal to the aggregate of the contributions which would have been payable if the teacher had continued to be employed in first class service at his salary as at the date of discontinuing first class service; for enabling the said period to be reckoned as a period of first class service; and for determining the amount of such payments which shall be reckoned as contributions by the teacher.

Reckoning of periods of experience of value to teachers as service

13. Provision shall be made for enabling the Secretary of State on the application of a teacher who entered first class service or second class service after gaining experience which, in the opinion of the Secretary of State, is or is likely to be of value to him as a teacher, to approve the said experience and to intimate to the teacher the period not exceeding five years which, in respect of the said experience, may be deemed a period of first class service and the purposes for which and the conditions (including payment of additional contributions) on which the said first class service may be recorded; and, if the teacher intimates his agreement and undertakes to fulfil the said conditions, for the said period to be deemed a period of first class service and to be recorded accordingly; and for such consequential and other matters as may appear to the Secretary of State to be necessary for the carrying out of this paragraph:

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Provided that a period during which the teacher was undergoing whole-time education or whole-time training for the teaching profession or apprenticeship to a profession or trade or was engaged in service by virtue of an enlistment notice or a training notice served under Part I of the National Service Act, 1948, or any work or training in pursuance of an order made or direction given under the said Part I in respect of a conditionally registered conscientious objector shall not be so approved.

Additional provisions

14. Provision shall be made for such other matters as appear necessary to carry out the purposes of Part IV of this Act.

PART II

PROVISIONS TO WHICH THE TEACHERS (SUPERANNUATION)
REGULATIONS MAY GIVE EFFECT*Provisions which may be included in Regulations*

15. The Teachers (Superannuation) Regulations may, without prejudice to the generality of paragraph 14 of Part I of this Schedule, include provisions for the purposes set forth in the following paragraphs of this Part of this Schedule.

Adjustment of interests under earlier schemes

16. Provision may be made for the adjustment of existing interests under the Elementary School Teachers (Superannuation) Act, 1898, or the scheme framed in pursuance of section fourteen of the Act of 1908.

Resumption of service by retired teachers

17. Provision may be made for the adjustment of retiring allowances, gratuities or death gratuities in the case of teachers re-entering service after retirement therefrom.

Age of retirement

18. Provision may be made for the retirement from first class service at a prescribed age of teachers to whom the Teachers (Superannuation) Regulations apply.

Retirement from posts of special responsibility

19. Provision may be made for a teacher who holds a post of special responsibility within the meaning of the regulations for the time being in force made by the Secretary of State under section seventy-nine of the Act of 1946 or section eighty-three of this Act and will not, on completion of forty-five years of first class service or of first class service and second class service, have attained the age for retirement prescribed under the last foregoing paragraph, to be deemed to have offered to resign from the said post on the day on which he completes the said forty-five years, and for the retirement of the teacher from the said post on the said day if his resignation is accepted, so, however, that nothing in any provision included in the

Teachers (Superannuation) Regulations under this paragraph shall prevent the employer from offering and the teacher from accepting appointment to another post.

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Pensions for widows, widowers, children and dependants of teachers

20. Provision may be made for the payment of pensions of such amounts, in such cases and subject to such conditions as may be prescribed, to and for the benefit of the widows or widowers and the children (including children over school age) or other dependants of teachers who die after such date as may be prescribed and who when they die are in receipt of or eligible for an annual allowance or are employed in first class service and are in such circumstances that, if they had not died, they could have established a claim to an annual allowance on the grounds of infirmity, or, having been employed for not less than ten years in first class service or in first class service and second class service, die within such period after ceasing to be so employed as may be prescribed. Provision may be made for the application of such provisions in so far as they relate to pensions for widows, widowers and children, irrespective of election, to male teachers or to both male and female teachers who enter first class service or second class service on or after such date as may be prescribed, and to such male and female teachers to whom such provisions so relating do not apply as may elect that such provisions so relating shall apply to them or as do not elect that such provisions shall not apply to them. Provision may be made for the application of such provisions in so far as they relate to pensions for dependants to such male and female teachers as may elect that such provisions so relating shall apply to them or as do not elect that such provisions shall not apply to them. Provision may be made for the surrender or repayment in exchange for the said pensions of so much of the lump sums or death gratuities payable or paid, or of contributions returnable or returned, to or in respect of the said teachers as may be prescribed as being sufficient in the opinion of the Secretary of State to support the said pensions, and for such consequential and other matters as may appear to the Secretary of State to be necessary for the carrying out of the purposes of this paragraph :

Provided that the power to include in the Teachers (Superannuation) Regulations provisions for the purposes of this paragraph shall not be exercised except with the approval of the Treasury and after consultation with representatives of education authorities and of teachers.

Exchange of lump sum for additional pension

21. Provision may be made for enabling a teacher to whom a retiring allowance is awarded to surrender, subject to such conditions as may be prescribed, the lump sum, or so much thereof as remains after a surrender under the last foregoing paragraph, in exchange for an additional annual allowance which shall be actuarially equivalent to the value of the lump sum surrendered under this paragraph ; and for such consequential and other matters (including the adaptation of enactments) as may appear to the Secretary of State to be necessary for the carrying out of the purposes of this paragraph.

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Teachers guilty of misconduct

22. Provision may be made for the refusal, reduction or suspension of any benefit in the case of any teacher who has been guilty of misconduct.

Protection of benefits against diligence of creditors

23. Provision may be made for the protection of benefits against the diligence of creditors.

Proof of title of personal representatives of teacher

24. Provision may be made for dispensing with the necessity for confirmation before payment of benefits to the personal representatives of a deceased teacher.

Mutual arrangements with countries of Her Majesty's dominions

25. Provision may be made for giving effect to any arrangements made with any authority administering any statutory scheme of superannuation for school teachers in any part of Her Majesty's dominions, providing for the extension (whether with or without modification) of the Teachers (Superannuation) Regulations to service in the capacity of a teacher in that part of Her Majesty's dominions and for the extension of such statutory scheme to first class service within the meaning of the Teachers (Superannuation) Regulations.

Extension of Regulations to teachers in schools not otherwise within scope of Regulations

26. Provision may be made for applying on such conditions and with such modifications in regard to contributions and otherwise as may be prescribed the provisions of the Teachers (Superannuation) Regulations to teachers in schools which are not otherwise within the scope of the said Regulations:

Provided that the contributions payable by and in respect of such teachers shall be at rates prescribed from time to time after consultation with the Government Actuary with a view to securing that the contributions paid shall be equal in value to the benefits to be accorded in respect of such contributions.

Calculation of length of first class service of temporary teachers

27. Provision may be made where the part of the salary of a teacher which has vested in him in respect of a day of first class service after the thirty-first day of March, nineteen hundred and fifty-two, is greater than one three-hundred-and-sixty-fifth part of the annual rate of his salary on that day, that that day shall be reckoned in the calculation of the length of first class service of the teacher as a day and such fraction of a day as the Secretary of State may determine:

Provided that the teacher shall not be credited in any year beginning on the first day of April with a greater number of days of first class service than there are days in that year.

Power to make Rules

28. Provision may be made for the making by the Secretary of State of rules for the purpose of giving effect to the provisions of Part IV of this Act and for carrying the Teachers (Superannuation) Regulations into effect.

Power to apply Acts and Provisional Orders

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29. Provision may be made for applying, with such modifications as appear necessary, any provisions contained in any Act of Parliament or Provisional Order confirmed by Parliament dealing with superannuation, including any penal provisions thereof.

Power to settle questions

30. Provision may be made for the final settlement by the Secretary of State of any questions which may arise as to the application of any part of the scheme framed in pursuance of section fourteen of the Act of 1908 or of the Teachers Superannuation Scheme or of the Teachers (Superannuation) Regulations to any person, or as to the amount of any benefit, or as to the payment, refusal, reduction or suspension of any benefit, or as to the return of any contribution to the Scottish Teachers Superannuation Fund established in accordance with section fourteen of the Act of 1908, or as to the reckoning of any service.

*Modifications consequential on National Insurance
Acts 1946 to 1959*

31. Provision may be made for making modifications upon the Teachers (Superannuation) Regulations consequential upon the passing of the National Insurance Acts 1946 to 1959.

Matters arising under National Health Service (Scotland) Act, 1947

32. Provision may be made for such other matters as appear necessary to carry out the purposes of the National Health Service (Scotland) Act, 1947.

PART III

REGULATIONS TO BE INCORPORATED IN THE TEACHERS
(SUPERANNUATION) REGULATIONS*Regulations to be incorporated*

33. The following regulations shall, subject to the provisions of subsection (3) of section one hundred and two of this Act, be incorporated in the Teachers (Superannuation) Regulations:—

Independent superannuation schemes

“1.—(1) Notwithstanding anything in any enactment, a teacher employed in first class service within the meaning of these Regulations shall not be subject to an independent superannuation scheme in respect of that service.

(2) Where a teacher who becomes employed in first class service within the meaning of these Regulations,—

(a) has, not more than one year before he so becomes employed in such first class service, been subject to an independent superannuation scheme, and

(b) would, but for the foregoing paragraph, be subject to such a scheme in respect of the first class service in which he so becomes employed,

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the first class service in which he so becomes employed shall not be treated as first class service within the meaning of these Regulations, and he shall be subject to the independent superannuation scheme accordingly:

Provided that if any teacher who is subject to an independent superannuation scheme by virtue of the foregoing provisions of this paragraph elects within the prescribed time and in the prescribed manner to withdraw from the scheme, the said provisions shall not have effect in relation to any first class service in which he is employed after the election takes effect.

(3) Where any teacher makes such an election, the election shall take effect as from the time when he entered the first class service in which he is for the time being employed.

(4) Where any such election is made by a teacher who is a contributory employee or a local Act contributor as defined by the Local Government Superannuation (Scotland) Act, 1937, he shall be entitled to receive out of the appropriate superannuation fund a sum equal to the aggregate amount of his contributions to that fund calculated in accordance with subsection (5) of section ten of the said Act of 1937, or, as the case may be, in accordance with the corresponding provision of the local Act scheme, together with compound interest on those contributions, calculated to the date on which he ceases to be a contributory employee or a local Act contributor at the rate of three per cent per annum with half-yearly rests.

(5) In this Regulation the expression "independent superannuation scheme" means:—

- (a) any superannuation scheme other than these Regulations (including a superannuation scheme established by or under any public general or local Act of Parliament or Provisional Order confirmed by Act of Parliament) which provides for the payment of contributions to a fund by any local authority or the persons responsible for the management of any educational establishment or other educational institution, and for the payment out of that fund, in respect of service rendered to the authority or to those persons, of benefits on disablement, retirement, attainment of any specified age, or death; and
- (b) any system of superannuation (not being a system established by or under any public general or local Act of Parliament or Provisional Order confirmed by Act of Parliament) operated jointly by a number of educational establishments or other educational institutions for the purpose of providing such benefits as aforesaid in respect of the service of persons employed by them.

Recording of employment not previously recordable

2.—(1) Subject to the provisions of this Regulation, where a teacher who is or has been employed in first class service within the meaning of these Regulations after the second day of July, nineteen hundred and forty-five, by an education authority has before the said day been in whole-time paid employment in connection with education in Scotland, such employment shall, if he makes application to the Secretary of State for that purpose within the prescribed

time and in the prescribed manner, be treated for the purposes of these Regulations as if it had been first class service within the meaning thereof :

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Provided that if upon making such an application he requests that his employment before any date specified by him shall not be treated as if it had been first class service within the meaning of these Regulations, his said employment before that date shall not be so treated by virtue of this Regulation.

(2) Where an application made by a teacher under this Regulation relates, whether wholly or in part, to employment after the thirty-first day of May, nineteen hundred and twenty-two, he shall be liable to pay the appropriate contributions to the Secretary of State in respect of that employment in accordance with rules made by the Secretary of State ; and no employment after the said date shall be treated as first class service within the meaning of these Regulations by virtue of this Regulation unless the appropriate contributions are so paid in respect thereof.

(3) For the purposes of this Regulation, the appropriate contributions are the contributions which would have been payable by the teacher in respect of the employment in question under the Education (Scotland) (Superannuation) Acts, 1919 to 1939, or the Education (Scotland) Act, 1946, or the Education (Scotland) Act, 1962, if that service had been first class service within the meaning of these Regulations.

(4) Where a teacher has ceased to be in employment which is treated as first class service within the meaning of these Regulations by virtue of this Regulation in order to undertake war service, the provisions of the Education (Scotland) (War Service Superannuation) Act, 1939, shall have effect accordingly with respect to his period of war service, including any such period which falls after the second day of July, nineteen hundred and forty-five.

Employer's contributions in respect of service not previously recorded

3.—(1) Subject to the provisions of this Regulation, where any period of employment after the fifteenth day of May, nineteen hundred and twenty-three, including any period of war service, is treated as first class service within the meaning of these Regulations by virtue of the last foregoing Regulation, the contributions (hereinafter referred to as "employer's contributions") which would have been payable under the Education (Scotland) (Superannuation) Acts, 1919 to 1939, or the Education (Scotland) Act, 1946, or the Education (Scotland) Act, 1962, by the teacher's employer in respect of that employment shall be paid to the Secretary of State by the education authority by whom the teacher in question is employed in first class service within the meaning of these Regulations when he first becomes entitled to make an application under the last foregoing Regulation.

(2) Where a teacher who has been a contributory employee or a local Act contributor as defined by the Local Government Superannuation (Scotland) Act, 1937 (hereinafter referred to as a Local Government Superannuation Act employee), becomes, not more than one year after ceasing to be a Local Government Superannuation Act employee, entitled to make an application under the last

3RD SCH. foregoing Regulation, no employer's contributions shall be payable in respect of any employment which he was, immediately before he last ceased to be a Local Government Superannuation Act employee, entitled to reckon for superannuation purposes under the said Act of 1937 or under any local Act scheme as defined by that Act.

(3) In lieu of the employer's contributions which would have been payable in respect of any employment but for the last foregoing paragraph, there shall be paid to the Secretary of State in respect of that employment, out of the appropriate superannuation fund, a sum equivalent to the difference between the sum which has become or will become payable out of that fund in respect of the past contributions of the teacher who made the application (including any sum payable as interest upon such contributions) and the transfer value which would have been payable out of that fund under section twenty-four of the Local Government Superannuation (Scotland) Act, 1937, if, after he last ceased to be entitled to participate in the benefits of the fund, the said teacher had forthwith become entitled to participate in the benefits of some other superannuation fund maintained under that Act or under a local Act scheme as defined by that Act:

Provided that the sum paid to the Secretary of State by virtue of this paragraph in respect of any employment shall not exceed the aggregate amount of the contributions which would have been payable under the Education (Scotland) (Superannuation) Acts, 1919 to 1939, or the Education (Scotland) Act, 1946, or the Education (Scotland) Act, 1962, by the teacher's employer in respect of that employment.

(4) For the purpose of the last foregoing paragraph—

- (a) the appropriate superannuation fund is the fund in the benefits of which the teacher in question was last entitled to participate as a Local Government Superannuation Act employee before becoming entitled to make the application under the last foregoing Regulation; and
- (b) the expression "past contributions" includes in relation to a contributory employee all such contributions as are mentioned in subsection (5) of section ten of the Local Government Superannuation (Scotland) Act, 1937, and in relation to a local Act contributor shall be construed accordingly.

(5) Where a teacher ceased to be employed in any capacity in respect of which he was a Local Government Superannuation Act employee in order to undertake service which he was entitled to reckon for superannuation purposes by virtue of the Education (Scotland) (War Service Superannuation) Act, 1939, paragraphs (2), (3) and (4) of this Regulation shall have effect as if he had continued to be a Local Government Superannuation Act employee during the period of service which he was so entitled to reckon.

(6) Any reference in this Regulation to the contributions which would have been payable under the Education (Scotland) (Superannuation) Acts, 1919 to 1939, or the Education (Scotland) Act, 1946, or the Education (Scotland) Act, 1962, by the teacher's employer in respect of the employment of any teacher shall, in relation to a period of war service, be construed as a reference to

such employer's contributions only as would have been payable in respect of his service during that period, if immediately before undertaking war service he had been employed by an education authority, governing body or other body of managers.

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Contributions returnable exceeding death gratuities

4. A death gratuity shall not be payable to the personal representative of a teacher where the amount thereof would be less than the amount of the contributions made by the teacher in terms of the Education (Scotland) (Superannuation) Acts, 1919 to 1939, and Part IV of the Education (Scotland) Act, 1946, and Part IV of the Education (Scotland) Act, 1962, together with compound interest on each contribution as from the prescribed date calculated at the rate of three per cent per annum with yearly rests, but under deduction of—

- (1) any contributions returned to the teacher and not repaid by him, and
- (2) any other sums paid or payable under these Regulations to him or to his personal representative."

FOURTH SCHEDULE

Section 103(2)

ELECTION BY CERTAIN TEACHERS FOR APPLICATION TO THEM OF
PROVISIONS RELATING TO RETIRING ALLOWANCES INTRODUCED IN 1956

Serial Number	Subject	Provisions of this Act
1	Definition of "pensionable salary".	Section 110 in so far as it defines "pensionable salary".
2	Payment of retiring allowances.	Schedule III, Part I, paragraph 2.
3	Service of which account may be taken for the calculation of annual allowances.	Schedule III, Part I, paragraph 3.
4	Surrender of part of annual allowance in exchange for benefits for spouse or dependants.	Schedule III, Part I, paragraph 10.
5	Reckoning of breaks in service as service.	Schedule III, Part I, paragraph 12.
6	Reckoning of periods spent in gaining experience of value to teachers as first class service.	Schedule III, Part I, paragraph 13.
7	Retirement of teachers in posts of special responsibility on completion of 45 years of service.	Schedule III, Part II, paragraph 19.
8	Pensions for widows, widowers, children and dependants of teachers.	Schedule III, Part II, paragraph 20.
9	Surrender of lump sums for additional annual allowances.	Schedule III, Part II, paragraph 21.
10	Calculation of number of days of first class service in special cases.	Schedule III, Part II, paragraph 27.

Section 105 (4).

FIFTH SCHEDULE

REDUCTION OF CONTRIBUTIONS OF TEACHERS IN
PARTICIPATING EMPLOYMENT

Annual rate of salary						Annual rate of reduction of contributions		
						£	s.	d.
Up to £468						Nil.		
Over £468 but not exceeding £520						8		
" £520 " " " £572						1 5 0		
" £572 " " " £624						2 2 0		
" £624 " " " £676						2 19 0		
" £676 " " " £728						3 16 0		
" £728 " " " £780						4 13 0		
" £780 " " " "						5 2 0		

Section 107.

SIXTH SCHEDULE

TEACHERS SUPERANNUATION ACCOUNT

1. The accounting periods for which the account shall be made up shall be from the first day of April in each year to the thirty-first day of March in the next year.

2. There shall be treated as having been paid into the revenue for each accounting period—

- (1) by teachers the amount of teachers' contributions attributable to the period, and by the education authorities, governing bodies or other bodies of managers by whom such teachers are employed the amount of the employers' contributions attributable to the period, including any supplementary contributions ;
- (2) out of moneys provided by Parliament a sum equal to the expenditure during the period upon superannuation and other allowances attributable to service before the first day of June, nineteen hundred and twenty-two ;
- (3) a sum representing interest at the rate of three and a half per cent. per annum on the mean balance, if any, of revenue over expenditure during the period ; such mean balance being calculated by adding together one half of the balance (exclusive of any interest under this paragraph) remaining at the end of the period and one half of the balance, if any, carried forward from the last preceding accounting period ;
- (4) the amount of any balance of revenue over expenditure remaining at the end of the last preceding accounting period ; and

(5) any other revenue attributable to the period.

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3. There shall be shown the expenditure upon allowances and gratuities attributable to service before the first day of June, nineteen hundred and twenty-two, separately from expenditure upon allowances, gratuities, and the return of contributions attributable to service since that date.

4. There shall be shown in such manner as may be determined by the Secretary of State after consultation with the Treasury the expenditure incurred by the Secretary of State in respect of payments in lieu of contributions made under the National Insurance Act, 1959.

SEVENTH SCHEDULE

Section 113 (1).

CONSTITUTION OF INDEPENDENT SCHOOLS TRIBUNALS

1. For the purpose of enabling Independent Schools Tribunals to be constituted as occasion may require, there shall be appointed by the Secretary of State a panel (hereinafter referred to as the "educational panel") of persons to act when required as members of any such tribunal.

2. No officer of any government department and no person employed by an education authority in any capacity other than that of a teacher shall be qualified to be appointed to the educational panel, and no person shall be so qualified unless he has had such experience in teaching or in the conduct, management or administration of schools as the Secretary of State considers suitable.

3. Any person appointed to be a member of the educational panel shall hold office for such period and subject to such conditions as may be determined by the Secretary of State.

4. Where any complaint is required to be determined by an Independent Schools Tribunal, the tribunal shall consist of the sheriff (or, if he is unable to act, a person qualified for appointment as sheriff nominated by the Lord President of the Court of Session), who shall be chairman, and two other members appointed from the educational panel by the Secretary of State, of whom at least one shall be a woman in the case of a complaint concerning a school for girls or a complaint concerning the proprietor of a school, or a teacher therein, who is a woman.

5. In this Schedule the expression "sheriff" does not include sheriff-substitute, and means the sheriff of the county in which the school to which the complaint relates is situated, or, in the case of an appeal against a refusal to remove a disqualification, the sheriff of the county where the appellant resides.

Section 147.

EIGHTH SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
8 & 9 Geo. 5. c. 48.	The Education (Scotland) Act, 1918.	The whole Act so far as unrepealed.
9 & 10 Geo. 6. c. 72.	The Education (Scotland) Act, 1946.	The whole Act so far as unrepealed.
10 & 11 Geo. 6. c. 27.	The National Health Service (Scotland) Act, 1947.	Eleventh Schedule, Part I, in so far as it relates to the Education (Scotland) Act, 1946.
12, 13 & 14 Geo. 6. c. 19.	The Education (Scotland) Act, 1949.	The whole Act.
12, 13 & 14 Geo. 6. c. 94.	The Criminal Justice (Scotland) Act, 1949.	Twelfth Schedule, in so far as it relates to the Education (Scotland) Act, 1946.
4 & 5 Eliz. 2. c. 53.	The Teachers (Superannuation) Act, 1956.	Sections twenty-seven to thirty-six so far as unrepealed; in section forty, the words "or the Education (Scotland) Acts, 1939 to 1956".
4 & 5 Eliz. 2. c. 75.	The Education (Scotland) Act, 1956.	The whole Act.
6 & 7 Eliz. 2. c. 64.	The Local Government and Miscellaneous Financial Provisions (Scotland) Act, 1958.	In section five, subsections (1) and (3); section fourteen; in the Fourth Schedule, in Part I, paragraph 6; in Part III, paragraph 24, in so far as it relates to paragraph 6 of Part I; in the Fifth Schedule, paragraphs 2 to 7.
7 & 8 Eliz. 2. c. 72.	The Mental Health Act, 1959.	The Eighth Schedule, Part II, in so far as it relates to the Education (Scotland) Act, 1946.
8 & 9 Eliz. 2. c. 61.	The Mental Health (Scotland) Act, 1960.	Section eleven; the First Schedule; the Fifth Schedule, in so far as it relates to the Education (Scotland) Act, 1945, the Education (Scotland) Act, 1946, the Education (Scotland) Act, 1949.
10 & 11 Eliz. 2. c. 12.	The Education Act, 1962.	Sections five, six and ten.

NINTH SCHEDULE

Section 148.

POSTPONEMENT OF THE COMMENCEMENT OF CERTAIN PROVISIONS

Serial number	Provision	Day upon which the provision shall come into operation
1	In section one, subsection (3) so far as relating to compulsory further education and junior colleges.	Such day as the Secretary of State may by statutory instrument appoint.
2	In section ten, subsection (1) so far as relating to junior colleges.	do.
3	Section eleven so far as relating to junior colleges.	do.
4	Section twenty-four so far as relating to junior colleges.	Such day as the Secretary of State may by statutory instrument appoint.
5	Sections thirty-two and thirty-three.	1st August, 1963.
6	Sections forty-five to forty-seven.	Such day as the Secretary of State may by statutory instrument appoint, being as early a day as he considers practicable.
7	Section forty-eight.	Such day as the Secretary of State may by statutory instrument appoint.
8	Section fifty so far as relating to junior colleges and in subsection (1), paragraph (c).	do.
9	Section fifty-two so far as relating to junior colleges.	do.
10	Section fifty-three so far as relating to junior colleges.	do.
11	Section fifty-eight so far as relating to junior colleges.	do.
12	Section sixty-one so far as relating to junior colleges.	do.
13	Section sixty-seven so far as relating to junior colleges.	do.
14	Section sixty-nine so far as relating to junior colleges.	do.
15	In section seventy-four, subsection (2).	do.
16	Section eighty-two so far as relating to junior colleges.	do.
17	Section one hundred and one so far as relating to junior colleges.	do.
18	Section one hundred and thirty-six.	do.
19	Section one hundred and thirty-eight.	Such day as the Secretary of State may by statutory instrument appoint, being as early a day as he considers practicable.
20	In section one hundred and forty-five, paragraph (43).	1st August, 1963.

9TH SCH.

Serial number	Provision	Day upon which the provision shall come into operation
21	Eighth Schedule so far as relating to— The Education (Scotland) Act, 1946, section thirty-two, section thirty-three, in section one hundred and forty-three, subsection (1) so far as it relates to the interpretation of the expression "school age", and subsection (2); The Education (Scotland) Act, 1949, section three and section five and the Schedule, Part I, so far as they relate to section thirty-two of the Education (Scotland) Act, 1946; and The Education Act, 1962, section ten.	1st August, 1963. do. do.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
School Sites Act, 1841	4 & 5 Vict. c. 38.
Endowed Institutions (Scotland) Act, 1878 ...	41 & 42 Vict. c. 48.
Educational Endowments (Scotland) Act, 1882	45 & 46 Vict. c. 59.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Local Taxation (Customs and Excise) Act, 1890	53 & 54 Vict. c. 60.
Elementary School Teachers (Superannuation) Act, 1898	61 & 62 Vict. c. 57.
Education (Scotland) Act, 1908	8 Edw. 7. c. 63.
Education (Scotland) Act, 1918	8 & 9 Geo. 5. c. 48.
Education (Scotland) Superannuation Act, 1922	12 & 13 Geo. 5. c. 48.
Education (Scotland) Superannuation Act, 1925	15 & 16 Geo. 5. c. 55.
Unemployment Insurance Act, 1935	25 & 26 Geo. 5. c. 8.
Children and Young Persons (Scotland) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 37.
Teachers (Superannuation) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 47.
Factories Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 67.
Local Government Superannuation (Scotland) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 69.
Unemployment Insurance Act, 1938	1 & 2 Geo. 6. c. 8.
Reorganisation of Offices (Scotland) Act, 1939	2 & 3 Geo. 6. c. 20.
Education (Scotland) (War Service Superannuation) Act, 1939	2 & 3 Geo. 6. c. 96.
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Education (Scotland) Act, 1945	8 & 9 Geo. 6. c. 37.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
National Health Service (Scotland) Act, 1947...	10 & 11 Geo. 6. c. 27.
Education (Exemptions) (Scotland) Act, 1947	11 & 12 Geo. 6. c. 36.

Table of Statutes referred to in this Act—cont.

Short Title	Session and Chapter
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	11 & 12 Geo. 6. c. 42.
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Education (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 19.
Criminal Justice (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 94.
Mines and Quarries Act, 1954	2 & 3 Eliz. 2. c. 70.
Teachers (Superannuation) Act, 1956	4 & 5 Eliz. 2. c. 53.
Education (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 75.
Dentists Act, 1957	5 & 6 Eliz. 2. c. 28.
Local Government and Miscellaneous Financial Provisions (Scotland) Act, 1958	6 & 7 Eliz. 2. c. 64.
National Insurance Act, 1959	7 & 8 Eliz. 2. c. 47.
Mental Health Act, 1959	7 & 8 Eliz. 2. c. 61.
Mental Health (Scotland) Act, 1960	8 & 9 Eliz. 2. c. 61.
Factories Act, 1961	9 & 10 Eliz. 2. c. 34.
Local Government (Financial Provisions etc.) (Scotland) Act, 1962	10 & 11 Eliz. 2. c. 9.
Education Act, 1962	10 & 11 Eliz. 2. c. 12.

Table of Statutory Instruments referred to in this Act

Short Title	Year, Number and Volume Reference
The National Economy (Education) (Scotland) Order, 1931.	S.R. & O. 1931/812 (1931, p. 394).
The Teachers (Superannuation) (Scotland) Regulations, 1957.	S.I. 1957/356 (1957 I, p. 733).
The Teachers (Training Authorities) (Scotland) Regulations, 1958.	S.I. 1958/1634 (1958 I, p. 1025).

CHAPTER 48

An Act to amend the law with respect to civil proceedings between husband and wife.

[1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, each of the parties to a marriage shall have the like right of action in tort against the other as if they were not married.

Actions in
tort between
husband
and wife.